

Authorised Version No. 238
Magistrates' Court Act 1989

No. 51 of 1989

Authorised Version incorporating amendments as at
15 April 2026

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No. 51 of 1989

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The Parliament of Victoria enacts as follows:

Part 1—Preliminary

1 Purposes

The main purposes of this Act are—

- (a) to establish the Magistrates' Court of Victoria; and
- (b) to amend and consolidate for the purposes of the new Court the law relating to the jurisdiction and procedure of Magistrates' Courts; and
- (c) to provide for the fair and efficient operation of the Magistrates' Court; and
- (d) to abolish inefficient and unnecessary court process and procedures; and
- (e) to allow for the Magistrates' Court to be managed in a way that will ensure—
 - (i) fairness to all parties to court proceedings; and
 - (ii) the prompt resolution of court proceedings; and
 - (iii) that optimum use is made of the Court's resources.

2 Commencement

This Act comes into operation on a day or days to be proclaimed.

3 Definitions

(1) In this Act—

S. 3(1) def. of
*Aboriginal
elder or
respected
person*
inserted by
No. 27/2002
s. 4.

Aboriginal elder or respected person means a person who holds office as an Aboriginal elder or respected person under section 17A;

S. 3(1) def. of
Aborigine
inserted by
No. 27/2002
s. 4.

Aborigine means a person who—

- (a) is descended from an Aborigine or Torres Strait Islander; and
- (b) identifies as an Aborigine or Torres Strait Islander; and
- (c) is accepted as an Aborigine or Torres Strait Islander by an Aboriginal or Torres Strait Island community;

S. 3(1) def. of
accused
inserted by
No. 68/2009
s. 97(Sch.
item 82.1).

accused has the same meaning as in the **Criminal Procedure Act 2009**;

S. 3(1) def. of
*appropriate
dispute
resolution*
inserted by
No. 47/2010
s. 88(b).

appropriate dispute resolution has the same meaning as it has in the **Civil Procedure Act 2010**;

S. 3(1) def. of
*appropriate
registrar*
substituted by
No. 64/1996
s. 24(a),
amended by
No. 68/2009
s. 97(Sch.
item 82.2(a)).

appropriate registrar means—

- (a) the registrar at the proper venue of the Court; or
- (b) the registrar at the venue of the Court at which a proceeding is heard and determined in accordance with an order made under section 31 of the **Criminal Procedure Act 2009**;

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Assessment and Referral Court List means the list established by section 4S;

S. 3(1) def. of ***Assessment and Referral Court List*** inserted by No. 12/2010 s. 4(1).

authorised deposit-taking institution has the same meaning as in the Banking Act 1959 of the Commonwealth;

S. 3(1) def. of ***authorised deposit-taking institution*** inserted by No. 11/2001 s. 3(Sch. item 44.1(a)).

bail guarantor has the same meaning as in the **Bail Act 1977**;

S. 3(1) def. of ***bail guarantor*** inserted by No. 28/2023 s. 70(1).

* * * * *

S. 3(1) def. of ***bank*** repealed by No. 11/2001 s. 3(Sch. item 44.1(b)).

* * * * *

S. 3(1) def. of ***chief administrator*** repealed by No. 46/1998 s. 7(Sch. 1).

civil registry court means a venue of the Court that is prescribed by the Rules to be a civil registry court;

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S. 3(1) def. of
*committal
mention date*
inserted by
No. 34/1990
s. 4(Sch. 3
item 1),
substituted by
No. 10/1999
s. 8(1),
repealed by
No. 7/2009
s. 427(1)(a) (as
amended by
No. 68/2009
s. 54(m)).

* * * * *

complaint includes any process by which a civil proceeding in the Court is commenced;

conduct money means a sum of money or its equivalent sufficient to meet the reasonable expenses of a person to whom a witness summons is directed of complying with the summons in relation to the day on which the person is required by the summons to attend;

Court means the Magistrates' Court of Victoria;

court official means—

- (a) the principal registrar of the Court; or
- (b) a registrar or deputy registrar of the Court; or
- (c) any person employed in any of the offices of the Court;

S. 3(1) def. of
defendant
amended by
No. 68/2009
s. 97(Sch.
item 82.2(b)).

defendant means—

* * * * *

- (b) a person against whom a civil proceeding has been commenced in the Court;

S. 3(1) def. of
Department
substituted by
No. 46/1998
s. 7(Sch. 1).

Department means the Department of Justice;

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*	*	*	*	*	S. 3(1) def. of <i>depositions</i> repealed by No. 7/2009 s. 427(1)(a) (as amended by No. 68/2009 s. 54(m)).
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designated place has the same meaning as in the **Victoria Police Act 2013**;

					S. 3(1) def. of <i>designated place</i> inserted by No. 43/2011 s. 34, substituted by No. 37/2014 s. 10(Sch. item 101.1(b)).
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driver licence has the same meaning as in the **Road Safety Act 1986**;

*	*	*	*	*	S. 3(1) def. of <i>election date</i> repealed by No. 68/2009 s. 97(Sch. item 82.2(c)).
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enforcement warrant has the same meaning as in the **Fines Reform Act 2014**;

					S. 3(1) def. of <i>enforcement warrant</i> inserted by No. 47/2014 s. 268(a).
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excluded judicial officer means—

- (a) the Chief Magistrate;
- (b) a Deputy Chief Magistrate;
- (c) a Deputy State Coroner;

					S. 3(1) def. of <i>excluded judicial officer</i> inserted by No. 63/2013 s. 74(1), amended by No. 21/2015 s. 3(Sch. 1 item 32.1).
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execution copy, in relation to a warrant, means the copy issued for the purposes of execution;

S. 3(1) def. of
*family
member*
inserted by
No. 27/2002
s. 4.

family member has the meaning given by
section 3A;

S. 3(1) def. of
*family
violence*
inserted by
No. 77/2004
s. 3(1),
substituted by
No. 52/2008
s. 251(1).

family violence has the meaning given by the
Family Violence Protection Act 2008;

fine includes any penalties, forfeitures, sums of
money and costs ordered to be paid by the
person fined;

S. 3(1) def. of
hearing date
repealed by
No. 7/2009
s. 427(1)(a) (as
amended by
No. 68/2009
s. 54(m)).

* * * * *

S. 3(1) def. of
*homeless
person*
inserted by
No. 51/2006
s. 3(1).

homeless person means—

- (a) a person living in—
 - (i) crisis accommodation; or
 - (ii) transitional accommodation; or
 - (iii) any other accommodation
provided under the Supported
Accommodation Assistance
Act 1994 of the Commonwealth;
or
- (b) a person who has inadequate access to
safe and secure housing within the
meaning of section 4 of the Supported
Accommodation Assistance Act 1994
of the Commonwealth;

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*	*	*	*	*	S. 3(1) def. of <i>informant</i> repealed by No. 7/2009 s. 427(1)(a) (as amended by No. 68/2009 s. 54(m)).
*	*	*	*	*	S. 3(1) def. of <i>Infringements Court</i> inserted by No. 12/2006 s. 169(b), repealed by No. 47/2014 s. 268(b).
*	*	*	*	*	S. 3(1) def. of <i>infringements registrar</i> inserted by No. 12/2006 s. 169(b), repealed by No. 47/2014 s. 268(b).
*	*	*	*	*	S. 3(1) def. of <i>infringement warrant</i> inserted by No. 12/2006 s. 169(b), repealed by No. 47/2014 s. 268(b).
<i>intellectual disability</i> has the same meaning as it has in the Disability Act 2006 ;					S. 3(1) def. of <i>intellectual disability</i> inserted by No. 12/2010 s. 4(1).
<i>judge of the County Court</i> means a judge of the County Court appointed under the County Court Act 1958 , other than the Chief Judge or a reserve judge appointed under that Act;					S. 3(1) def. of <i>judge of the County Court</i> inserted by No. 3/2016 s. 32(1).

S. 3(1) def. of
*Judge of the
Supreme
Court*
inserted by
No. 1/2022
s. 14.

Judge of the Supreme Court means a person
referred to in section 75(3)(d) of the
Constitution Act 1975;

S. 3(1) def. of
*judicial
registrar*
inserted by
No. 19/2005
s. 3.

judicial registrar means a judicial registrar of the
Court appointed under section 16C;

S. 3(1) def. of
*judicial
resolution
conference*
inserted by
No. 50/2009
s. 12,
amended by
No. 34/2010
s. 49(1),
substituted by
No. 47/2010
s. 88(a).

judicial resolution conference has the same
meaning as it has in the **Civil Procedure
Act 2010**;

S. 3(1) def. of
*jurisdictional
limit*
substituted by
No. 64/1996
s. 24(b),
amended by
No. 68/2004
s. 3.

jurisdictional limit in a civil proceeding means
\$100 000;

S. 3(1) def. of
*Koori Court
officer*
inserted by
No. 27/2002
s. 4,
amended by
No. 108/2004
s. 117(1)
(Sch. 3
item 118.1).

Koori Court officer means a person who—

- (a) is employed under Part 3 of the **Public
Administration Act 2004**; and
- (b) exercises powers or performs functions
in relation to the Koori Court Division
of the Court;

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legal practitioner means an Australian legal practitioner;

S. 3(1) def. of *legal practitioner* inserted by No. 18/2005 s. 18(Sch. 1 item 63.1), amended by No. 17/2014 s. 160(Sch. 2 item 59.1).

magistrate includes the Chief Magistrate and a reserve magistrate engaged under section 9C to undertake the duties of a magistrate during any period of engagement or acting under section 9EA;

S. 3(1) def. of *magistrate* inserted by No. 36/2007 s. 3(1), amended by Nos 5/2013 s. 31(1), 63/2013 s. 40, 3/2016 s. 32(2).

Magistrates' Court means the Magistrates' Court of Victoria;

mental illness has the same meaning as it has in the **Mental Health and Wellbeing Act 2022**;

S. 3(1) def. of *mental illness* inserted by No. 12/2010 s. 4(1), amended by Nos 26/2014 s. 455(Sch. item 20.1), 39/2022 s. 845.

mention court means a venue of the Court that is nominated by the Chief Magistrate under section 5A as a mention court;

S. 3(1) def. of *mention court* amended by No. 64/1996 s. 24(c).

* * * * *

S. 3(1) def. of *mention date* repealed by No. 7/2009 s. 427(1)(a) (as amended by No. 68/2009 s. 54(m)).

motor vehicle has the same meaning as in the **Road Safety Act 1986**;

S. 3(1) def. of
Neighbourhood Justice officer
inserted by
No. 51/2006
s. 3(1).

Neighbourhood Justice officer means a person who—

- (a) is employed under Part 3 of the **Public Administration Act 2004**; and
- (b) exercises powers or performs functions in relation to the Neighbourhood Justice Division of the Court;

order includes judgment and conviction;

S. 3(1) def. of
part-time magistrate
inserted by
No. 31/2004
s. 3,
repealed by
No. 63/2013
s. 74(2).

* * * * *

S. 3(1) def. of
part-time service arrangement
inserted by
No. 63/2013
s. 74(1).

part-time service arrangement means an arrangement entered under section 7A;

S. 3(1) def. of
party
inserted by
No. 77/2004
s. 3(1),
substituted by
No. 52/2008
s. 251(1).

party, to a proceeding for a family violence intervention order under the **Family Violence Protection Act 2008** or a proceeding for an offence against that Act, includes, in sections 4J and 4K, an affected family member within the meaning of that Act;

plaintiff means a person who commences a civil proceeding in the Court;

police gaol has the same meaning as in the **Corrections Act 1986**;

S. 3(1) def. of
police officer
inserted by
No. 37/2014
s. 10(Sch.
item 101.1(a)).

police officer has the same meaning as in the **Victoria Police Act 2013**;

prescribed means prescribed by the regulations unless required to be prescribed by rules of court;

S. 3(1) def. of *prescribed* amended by No. 68/2009 s. 97(Sch. item 82.2(d)).

principal registrar means principal registrar of the Court;

prison has the same meaning as in the **Corrections Act 1986**;

prison officer has the same meaning as in the **Corrections Act 1986**;

S. 3(1) def. of *prison officer* inserted by No. 34/1990 s. 4(Sch. 3 item 2).

probationary driver licence has the same meaning as in the **Road Safety Act 1986**;

proceeding means any matter in the Court, including a committal proceeding, but does not include the exercise by a registrar of any jurisdiction, power or authority vested in the registrar under the **Fines Reform Act 2014**;

S. 3(1) def. of *proceeding* amended by Nos 12/2006 s. 169(a), 47/2014 s. 268(d).

process includes witness summons, charge-sheet, summons to answer to a charge, complaint, warrant to arrest, remand warrant, search warrant, warrant to seize property, enforcement warrant, warrant to imprison, warrant to detain in a youth justice centre, warrant of delivery and any other process by which a proceeding in the Court is commenced;

S. 3(1) def. of *process* amended by Nos 33/1994 s. 4, 48/2006 s. 42(Sch. item 22.1(a)), 87/2009 s. 60(1), 47/2014 s. 268(c).

S. 3(1) def. of
proper venue
amended by
Nos 64/1996
s. 24(d),
77/2004
s. 3(2)(a)–(c),
51/2006
s. 3(2)(a)–(c),
52/2008
s. 251(2),
68/2008 s. 78,
68/2009
s. 97(Sch.
item 82.2(e)),
12/2010
s. 4(2) (as
amended by
No. 43/2012
s. 3(Sch.
item 28)),
53/2010
s. 221(Sch.
item 7.1),
53/2016 s. 103,
33/2018 ss 35,
41, 47/2021
s. 27.

proper venue—

- (a) subject to paragraphs (ca), (dc) and (e), in relation to a criminal proceeding or a class of criminal proceeding, means the mention court that has been nominated by the Chief Magistrate under section 5A for the proceeding or class of proceeding, but in the absence of any such nomination is the mention court that is nearest to—
 - (i) the place where the offence is alleged to have been committed; or
 - (ii) the place of residence of the accused; and
 - (b) subject to paragraphs (ca) and (e), in relation to a civil proceeding, means the civil registry court that is nearest to—
 - (i) the place where the subject-matter of the complaint arose; or
 - (ii) the place of residence of the defendant; and
- * * * * *
- * * * * *
- (ca) in relation to a proceeding in respect of which the Specialist Family Violence Court Division has jurisdiction (other than an interim order under the **Family Violence Protection Act 2008**), means the venue of the Court at which the Specialist Family Violence Court Division may sit and act that the Court determines is the most appropriate venue for the matter, having regard to the following—

- (i) the place where the family violence the subject of the proceeding is alleged to have been committed;
 - (ii) the place of residence of the accused, defendant or respondent (within the meaning of the **Family Violence Protection Act 2008**);
 - (iii) the place of permanent or temporary residence of the person against whom the family violence is alleged to have been committed;
 - (iv) the safety of the parties;
 - (v) any other considerations the Court thinks relevant; and
- (d) in relation to a proceeding for an interim order under the **Family Violence Protection Act 2008** or the **Personal Safety Intervention Orders Act 2010** means any civil registry court; and
- (da) in relation to a proceeding under the **Family Violence Protection Act 2008** or the **National Domestic Violence Order Scheme Act 2016**, means—
- (i) a venue of the Court determined in accordance with paragraph (ca), (d) or (e); or
 - (ii) the civil registry court which the Court determines is the most appropriate venue for the matter, having regard to the following—
 - (A) the safety of the parties;

- (B) the need to prevent disclosure of a party's whereabouts;
 - (C) the ability of the parties to attend a particular venue of the court, taking into account their places of work, residence or any childcare requirements;
 - (D) the availability of family violence support services at particular venues of the Court;
 - (E) the need to manage case flow;
 - (F) any other considerations the Court thinks relevant; and
- (db) in relation to a proceeding under the **Personal Safety Intervention Orders Act 2008**, means—
- (i) a venue of the court determined in accordance with paragraph (d) or (e); or
 - (ii) the civil registry court that the Court determines is the most appropriate venue for the matter, having regard to the following—
 - (A) the safety of the parties;
 - (B) the need to prevent disclosure of a party's whereabouts;
 - (C) the ability of the parties to attend a particular venue of the court, taking into account their places of work,

- residence or any childcare requirements;
- (D) the availability of mediation assessment services at particular venues of the Court;
- (E) the need to manage case flow;
- (F) any other considerations the Court thinks relevant; and
- (dc) in relation to a proceeding in respect of which the Assessment and Referral Court List has jurisdiction, means—
 - (i) a venue of the Court determined in accordance with paragraph (a), (b), (ca) or (d); or
 - (ii) a venue of the Court at which the Assessment and Referral Court List may sit and act;
- (dd) in relation to a proceeding under Part 4A of the **Terrorism (Community Protection) Act 2003** (other than a proceeding in respect of an offence under section 22CU of that Act), means—
 - (i) the place of residence of the supported person (within the meaning of that Part) or the person in respect of whom it is proposed that the support and engagement order be made (as the case requires); or

- (ii) the venue of the Court which the Court determines is the most appropriate venue for the matter, having regard to the following—
 - (A) the administrative and other facilities available at particular venues of the Court;
 - (B) the ability of the parties to attend a particular venue of the court, taking into account the respondent's (or supported person's) place of work, residence and any childcare requirements;
 - (C) the need to manage case flow;
 - (D) any other considerations the Court thinks relevant;
- (e) in relation to a proceeding in respect of which the Neighbourhood Justice Division has jurisdiction, means—
 - (i) a venue of the Court determined in accordance with paragraph (a), (b), (ca) or (d); or
 - (ii) a venue of the Court at which the Neighbourhood Justice Division may sit and act;

S. 3(1) def. of
*protective
services
officer*
inserted by
No. 43/2011
s. 34,
substituted by
No. 37/2014
s. 10(Sch.
item 101.1(c)).

protective services officer has the same meaning
as in the **Victoria Police Act 2013**;

Magistrates' Court Act 1989
No. 51 of 1989
Part 1—Preliminary

*	*	*	*	*	S. 3(1) def. of <i>registered valuer</i> repealed by No. 91/1994 s. 36(7)(a).
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registrar means registrar of the Court;

reserve magistrate means a person appointed under section 9A;

S. 3(1) def. of *reserve magistrate* inserted by No. 5/2013 s. 31(2).

*	*	*	*	*	S. 3(1) def. of <i>return date</i> repealed by No. 68/2009 s. 97(Sch. item 82.2(f)).
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Secretary means the Secretary to the Department of Justice;

S. 3(1) def. of *Secretary* inserted by No. 46/1998 s. 7(Sch. 1).

Secretary to the Department of Health means the Department Head (within the meaning of the **Public Administration Act 2004**) of the Department of Health;

S. 3(1) def. of *Secretary to the Department of Health* inserted by No. 29/2010 s. 63(1).

sentence has the same meaning as in the **Criminal Procedure Act 2009**;

S. 3(1) def. of *sentence* inserted by No. 68/2009 s. 97(Sch. item 82.1).

Magistrates' Court Act 1989
No. 51 of 1989
Part 1—Preliminary

S. 3(1) def. of
*sentencing
order*
amended by
Nos 49/1991
s. 119(7)
(Sch. 4
item 13.1),
48/1997 s. 64,
65/2004
s. 4(2),
80/2005 s. 19,
93/2005 s. 10,
30/2009 s. 196,
repealed by
No. 7/2009
s. 427(1)(a) (as
amended by
No. 68/2009
s. 54(m)).

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S. 3(1) def. of
*sexual
offence*
inserted by
No. 8/1991
s. 12,
repealed by
No. 7/2009
s. 427(1)(a) (as
amended by
No. 68/2009
s. 54(m)).
new def. of
*sexual
offence*
inserted by
No. 68/2009
s. 97(Sch.
item 82.1).

sexual offence has the same meaning as in the
Criminal Procedure Act 2009;

S. 3(1) def. of
the rules
amended by
Nos 64/1996
s. 24(e),
20/2022 s. 33.

subordinate instrument has the same meaning
as in the **Interpretation of Legislation
Act 1984;**

the rules means rules of court jointly made by the
Chief Magistrate together with one or more
Deputy Chief Magistrates, whether under the
powers conferred by this Act or otherwise;

youth justice centre means a youth justice centre established under section 478 of the **Children, Youth and Families Act 2005**.

S. 3(1) def. of *youth justice centre* inserted by No. 48/2006 s. 42(Sch. item 22.1(b)).

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S. 3(1) def. of *youth training centre* amended by No. 56/1989 s. 286(Sch. 2 item 11.1 (as amended by No. 93/1990 s. 24(h)(v))), repealed by No. 48/2006 s. 42(Sch. item 22.1(c)).

- (2) If under the **Public Administration Act 2004** the name of the Department of Justice is changed, the reference in subsection (1) in the definitions of *Department* and *Secretary* to that Department must, from the date when the name is changed, be treated as a reference to the Department by its new name.
- (3) If by or under this Act a person is required or permitted to serve a document, the person may serve the document by causing it to be served by another person.

S. 3(2) substituted by No. 46/1998 s. 7(Sch. 1), amended by No. 108/2004 s. 117(1) (Sch. 3 item 118.2).

3A Meaning of *family member*

S. 3A inserted by No. 27/2002 s. 5.

- (1) In this Act, *family member* of a person means—
- (a) the spouse or domestic partner of the person; or
 - (b) a person who has or has had an intimate personal relationship with the person; or
 - (c) a person who is or has been a relative of the person; or

- (d) a child who normally or regularly resides with the person; or
- (e) a child of whom the person is a guardian; or
- (f) another person who is or has been ordinarily a member of the household of the person.

(2) For the purposes of the definition of *family member* in subsection (1)—

(a) *domestic partner* of a person means—

- (i) a person who is in a registered relationship with the person; or
- (ii) an adult person to whom the person is not married but with whom the person is in a relationship as a couple where one or each of them provides personal or financial commitment and support of a domestic nature for the material benefit of the other, irrespective of their genders and whether or not they are living under the same roof, but does not include a person who provides domestic support and personal care to the person—

(A) for fee or reward; or

(B) on behalf of another person or an organisation (including a government or government agency, a body corporate or a charitable or benevolent organisation);

- (b) *parent* of a child includes a guardian of the child or a person with whom the child normally or regularly resides;

S. 3A(2)(a)
substituted by
No. 12/2008
s. 73(1)(Sch. 1
item 39.1).

(c) *relative* of a person means—

- (i) a father, mother, grandfather, grandmother, step-father, step-mother, father-in-law or mother-in-law of the person; or
- (ii) a son, daughter, grandson, granddaughter, step-son, step-daughter, son-in-law or daughter-in-law of the person; or
- (iii) a brother, sister, half-brother, half-sister, brother-in-law or sister-in-law of the person; or
- (iv) an uncle, aunt, uncle-in-law or aunt-in-law of the person; or
- (v) a nephew or niece of the person; or
- (vi) a cousin of the person—

and includes, in the case of domestic partners, a person who would be such a relative if the domestic partners were married to each other;

(d) *spouse* of a person means a person to whom the person is or was married.

(3) For the purposes of the definition of *domestic partner* in subsection (2)—

- (a) *registered relationship* has the same meaning as in the **Relationships Act 2008**; and

S. 3A(3)
substituted by
No. 12/2008
s. 73(1)(Sch. 1
item 39.2).

- (b) in determining whether persons who are not in a registered relationship are domestic partners of each other, all the circumstances of their relationship are to be taken into account, including any one or more of the matters referred to in section 35(2) of the **Relationships Act 2008** as may be relevant in a particular case; and
- (c) a person is not a domestic partner of another person only because they are co-tenants.

Part 2—The Magistrates' Court of Victoria

4 Establishment of the Magistrates' Court

- (1) There shall be a court to be known as the Magistrates' Court of Victoria.
- (2) The Court shall consist of the magistrates, the judicial registrars of the court and the registrars of the Court. **S. 4(2) amended by No. 19/2005 s. 4(1).**
- (2A) The Court has an Industrial Division. **S. 4(2A) inserted by No. 83/1992 s. 181(a).**
- (2B) The Industrial Division has such of the powers of the Court as are necessary to enable it to exercise its jurisdiction. **S. 4(2B) inserted by No. 83/1992 s. 181(a).**
- (3) The Court shall be constituted by a magistrate except in the case of any proceeding for which provision is made by any Act or the Rules for the Court to be constituted by a registrar.
- (3AA) Without limiting subsection (3), the Court may be constituted by a judicial registrar in the case of any proceeding for which provision is made by rules of court for— **S. 4(3AA) inserted by No. 19/2005 s. 4(2).**
- (a) the Court to be so constituted; and
- (b) the delegation to judicial registrars of powers of the Court to hear and determine the proceeding.
- (3A) Despite subsection (3), the Industrial Division shall only be constituted by a magistrate who has been assigned to that Division by an Order made by the Governor in Council. **S. 4(3A) inserted by No. 83/1992 s. 181(b), amended by Nos 64/1996 s. 25, 36/2007 s. 3(2).**
- (3AB) Nothing in subsection (3A) prevents the Industrial Division being constituted by a judicial registrar in accordance with subsection (3AA). **S. 4(3AB) inserted by No. 19/2005 s. 4(3).**

S. 4(3B)
inserted by
No. 83/1992
s. 181(b),
amended by
No. 35/1996
s. 453(Sch. 1
item 53.1).

- (3B) Despite anything to the contrary in this Act, a party to a proceeding in the Industrial Division may appear by a person who is not a legal practitioner if that person is authorised in writing by the party to appear for the party.

S. 4(3C)
inserted by
No. 83/1992
s. 181(b).

- (3C) The Industrial Division must exercise its jurisdiction with the minimum of legal form and technicality.

S. 4A
inserted by
No. 2/2002
s. 10.

4A Establishment of Drug Court Division

- (1) The Court has a Drug Court Division.
- (2) The Drug Court Division has such of the powers of the Court as are necessary to enable it to exercise its jurisdiction.
- (3) Despite section 4(3), the Drug Court Division shall only be constituted by a magistrate who has been assigned to that Division by the Chief Magistrate by notice published in the Government Gazette.

S. 4A(3A)
inserted by
No. 19/2005
s. 4(4).

- (3A) Nothing in subsection (3) prevents the Drug Court Division being constituted by a judicial registrar in accordance with section 4(3AA).
- (4) Despite anything to the contrary in this Act, the Drug Court Division may only sit and act at a venue of the Court specified by the Chief Magistrate by notice published in the Government Gazette.
- (5) The Drug Court Division must exercise its jurisdiction with as little formality and technicality, and with as much expedition, as the requirements of this Act and the **Sentencing Act 1991** and the proper consideration of the matters before the Court permit.

4B Adjournment of proceeding to Drug Court Division

S. 4B
inserted by
No. 2/2002
s. 10,
substituted by
No. 36/2007
s. 4.

(1) The Court, at any time before taking a formal plea from the accused in a criminal proceeding that is not in the Drug Court Division, may adjourn the proceeding to the Drug Court Division at that or another venue if—

S. 4B(1)
amended by
No. 68/2009
s. 97(Sch.
item 82.3(a)).

(a) it appears to the Court that the accused might be eligible for a drug and alcohol treatment order if convicted of the offence by the Drug Court Division; and

S. 4B(1)(a)
amended by
Nos 68/2009
s. 97(Sch.
item 82.3(a)),
43/2020 s. 37.

(b) the usual place of residence of the accused (if he or she has one) is within a postcode area specified, in relation to the venue at which the Drug Court Division sits and acts, by the Minister by notice published in the Government Gazette; and

S. 4B(1)(b)
amended by
No. 68/2009
s. 97(Sch.
item 82.3(b)).

(c) the accused consents to the Court doing so.

S. 4B(1)(c)
amended by
No. 68/2009
s. 97(Sch.
item 82.3(a)).

(2) Despite anything to the contrary in this Act, a venue of the Court to which the proceeding is adjourned under subsection (1) is the proper venue of the Court for the purposes of this Act.

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S. 4C
inserted by
No. 2/2002
s. 11 (as
amended by
No. 13/2003
s. 7),
repealed by
No. 36/2007
s. 4.

S. 4D
inserted by
No. 27/2002
s. 6.

4D Establishment of Koori Court Division

- (1) The Court has a Koori Court Division.
- (2) The Koori Court Division has such of the powers of the Court as are necessary to enable it to exercise its jurisdiction.
- (3) Despite anything to the contrary in this Act, the Koori Court Division may only sit and act at a venue of the Court specified by the Chief Magistrate by notice published in the Government Gazette.
- (4) The Koori Court Division must exercise its jurisdiction with as little formality and technicality, and with as much expedition, as the requirements of this Act and the **Sentencing Act 1991** and the proper consideration of the matters before the Court permit.
- (5) The Koori Court Division must take steps to ensure that, so far as practicable, any proceeding before it is conducted in a way which it considers will make it comprehensible to—

S. 4D(5)(a)
amended by
No. 68/2009
s. 97(Sch.
item 82.4).

(a) the accused; and

S. 4D(5)(b)
amended by
No. 68/2009
s. 97(Sch.
item 82.4).

(b) a family member of the accused; and

(c) any member of the Aboriginal community who is present in court.

- (6) Subject to this Act, the regulations and the rules, the Koori Court Division may regulate its own procedure.

4E Jurisdiction of Koori Court Division

The Koori Court Division has—

- (a) the jurisdiction to deal with a proceeding for an offence given to it by section 4F; and
- (b) jurisdiction to deal with a contravention of a sentence imposed by it (including any offence constituted by such a contravention) or variation of such a sentence, in the circumstances set out in section 4EA; and
- (ba) jurisdiction to deal with a contravention of a sentence imposed by the Magistrates' Court (including any offence constituted by such a contravention), or variation of such a sentence, in the circumstances set out in section 4EA; and
- (c) any other jurisdiction given to it by or under this or any other Act.

S. 4E
inserted by
No. 27/2002
s. 6.

S. 4E(b)
amended by
Nos 68/2009
s. 97(Sch.
item 82.5),
26/2012
s. 22(1).

S. 4E(ba)
inserted by
No. 26/2012
s. 22(2).

4EA Circumstances in which Koori Court Division may deal with contravention of a sentence imposed by another Division of the Magistrates' Court

S. 4EA
inserted by
No. 26/2012
s. 23.

For the purposes of sections 4E(b) and (ba), the circumstances are—

- (a) the accused is Aboriginal; and
- (b) the offence to which the sentence relates is within the jurisdiction of the Magistrates' Court, other than—
 - (i) a sexual offence as defined in section 6B(1) of the **Sentencing Act 1991**; and

S. 4EA(b)(i)
amended by
No. 19/2017
s. 50(1).

* * * * *

S. 4EA
(b)(ii)(iii)
repealed by
No. 19/2017
s. 50(2).

- (c) in the case of an offence constituted by a contravention of a sentence referred to in section 4E(b) or (ba), the accused—
 - (i) intends to plead guilty to the offence; or
 - (ii) pleads guilty to the offence; or
 - (iii) intends to consent to the adjournment, under section 59 of the **Criminal Procedure Act 2009**, of the proceeding to enable the accused to participate in a diversion program; and
- (d) the accused consents to the proceeding being dealt with by the Koori Court Division.

4F Circumstances in which Koori Court Division may deal with certain offences

S. 4F
inserted by
No. 27/2002
s. 6.

- (1) The Koori Court Division only has jurisdiction to deal with a proceeding for an offence (other than an offence constituted by a contravention of a sentence imposed by it) if—

S. 4F(1)
amended by
Nos 68/2009
s. 97(Sch.
item 82.6(a)),
26/2012 s. 24.

- (a) the accused is Aboriginal; and

S. 4F(1)(a)
amended by
No. 68/2009
s. 97(Sch.
item 82.6(b)).

- (b) the offence is within the jurisdiction of the Magistrates' Court, other than—

- (i) a sexual offence as defined in section 6B(1) of the **Sentencing Act 1991**; and

S. 4F(1)(b)(i)
amended by
No. 19/2017
s. 51(1).

Magistrates' Court Act 1989
No. 51 of 1989
Part 2—The Magistrates' Court of Victoria

*	*	*	*	*	S. 4F(1)(b)(ii) substituted by No. 52/2008 s. 252, amended by No. 68/2008 s. 79(a), repealed by No. 19/2017 s. 51(2).
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*	*	*	*	*	S. 4F(1)(b)(iii) inserted by No. 69/2008 s. 79(b), amended by No. 53/2010 s. 221(Sch. item 7.2), repealed by No. 19/2017 s. 51(2).
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|--|--|
| <p>(c) the accused—</p> <p style="padding-left: 40px;">(i) intends to plead guilty to the offence; or</p> <p style="padding-left: 40px;">(ii) pleads guilty to the offence; or</p> <p style="padding-left: 40px;">(iii) intends to consent to the adjournment, under section 59 of the Criminal Procedure Act 2009, of the proceeding to enable him or her to participate in a diversion program; and</p> <p>(d) the accused consents to the proceeding being dealt with by the Koori Court Division.</p> | <p>S. 4F(1)(c) amended by No. 68/2009 s. 97(Sch. item 82.6(b)).</p> <p>S. 4F(1)(c)(iii) amended by No. 7/2009 s. 427(1)(b) (as amended by No. 68/2009 s. 54(m)).</p> <p>S. 4F(1)(d) amended by No. 68/2009 s. 97(Sch. item 82.6(b)).</p> |
|--|--|

- (2) Subject to and in accordance with the rules—
- (a) a proceeding may be transferred to the Koori Court Division, whether sitting at the same or a different venue; and
- (b) the Koori Court Division may transfer a proceeding (including a proceeding transferred to it under paragraph (a)) to the

Court, sitting other than as the Koori Court Division, at the same or a different venue.

- (3) Despite anything to the contrary in this Act, if a proceeding is transferred from one venue of the Court to another, the transferee venue is the proper venue of the Court for the purposes of this Act.

S. 4FA
inserted by
No. 19/2017
s. 52.

4FA Certain matters may be dealt with by Koori Court Division only in certain venues

- (1) The Chief Magistrate may, by notice in the Government Gazette, specify a venue of the court as a venue at which the Koori Court Division may exercise—
- (a) the jurisdiction conferred on the Koori Court Division by section 4E(a) in relation to—
 - (i) a contravention of a family violence intervention order or an offence arising out of the same conduct as that from which the contravention arose; or
 - (ii) a contravention of a personal safety intervention order under the **Personal Safety Intervention Orders Act 2010** or an offence arising out of the same conduct as that out of which the contravention arose; and
 - (b) the jurisdiction conferred on the Koori Court Division by section 4E(b) and (ba) in relation to the contravention or variation of a sentence imposed in relation to a matter referred to in paragraph (a)(i) or (ii); and
 - (c) the jurisdiction conferred on the Koori Court Division by section 4E(b) and (ba) in relation to an offence constituted by a contravention of a sentence referred to in paragraph (b).

- (2) The Koori Court Division must not exercise the jurisdiction referred to in subsection (1) except when sitting at a venue specified under that subsection.

4G Sentencing procedure in Koori Court Division

S. 4G
inserted by
No. 27/2002
s. 6.

- (1) This section applies to the Koori Court Division when it is considering which sentence to impose on an accused.
- (2) The Koori Court Division may consider any oral statement made to it by an Aboriginal elder or respected person.
- (3) The Koori Court Division may inform itself in any way it thinks fit, including by considering a report prepared by, or a statement or submission prepared or made to it by, or evidence given to it by—
- (a) a Koori Court officer employed as an Aboriginal justice worker; or
 - (b) a community corrections officer appointed under Part 4 of the **Corrections Act 1986**; or
 - (c) a health service provider; or
 - (d) a victim of the offence; or
 - (e) a family member of the accused; or
 - (f) anyone else whom the Koori Court Division considers appropriate.
- (4) Nothing in this section affects the requirement to observe the rules of natural justice.

S. 4G(1)
amended by
No. 68/2009
s. 97(Sch.
item 82.7).

S. 4G(3)(e)
amended by
No. 68/2009
s. 97(Sch.
item 82.8).

- (5) This section does not limit—
- (a) any other power conferred on the Court by or under this or any other Act; or
 - (b) any other specific provision made by or under this or any other Act for the making of any report, statement or submission, or the giving of any evidence, to the Court for the purpose of assisting it in determining sentence.
- (6) To avoid doubt, Part 3.10 of the **Evidence Act 2008** does not apply to the Koori Court Division in considering the sentence to impose under this section, unless the Koori Court Division directs, in accordance with section 4(2) of the **Evidence Act 2008**, that it applies.

S. 4G(6)
inserted by
No. 69/2009
s. 54(Sch. Pt 1
item 34.1).

S. 4H
inserted by
No. 77/2004
s. 4,
amended by
Nos 19/2005
s. 4(5),
53/2016 s. 104,
33/2018 ss 42,
43,
repealed by
No. 33/2018
s. 44(1).

S. 4I
inserted by
No. 77/2004
s. 4,
amended by
Nos 52/2008
s. 253(1)(2),
68/2009
s. 97(Sch.
item 82.9),
42/2014 s. 105,
53/2016 s. 105,
repealed by
No. 33/2018
s. 44(1).

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4IA Establishment of Specialist Family Violence Court Division

S. 4IA
inserted by
No. 33/2018
s. 36.

- (1) The Court has a Specialist Family Violence Court Division.
- (2) The Specialist Family Violence Court Division has such of the powers of the Court as are necessary to enable it to exercise its jurisdiction.
- (3) Despite section 4(3), the Specialist Family Violence Court Division may only be constituted by a magistrate who has been assigned to that Division by the Chief Magistrate by notice published in the Government Gazette.
- (4) Nothing in subsection (3) prevents the Specialist Family Violence Court Division being constituted by a judicial registrar in accordance with section 4(3AA).
- (5) Nothing in subsection (3) prevents the Specialist Family Violence Court Division being constituted by a registrar for the determination of an application under Division 4 of Part 7 of the **National Domestic Violence Order Scheme Act 2016**.
- (6) In assigning a magistrate, the Chief Magistrate must have regard to the magistrate's relevant knowledge and experience in dealing with matters relating to family violence.
- (7) Despite anything to the contrary in this Act, the Specialist Family Violence Court Division may sit and act only at a venue of the Court specified by the Minister by notice published in the Government Gazette.
- (8) The Minister must consult the Chief Magistrate before publishing a notice under subsection (7).

S. 41B
inserted by
No. 33/2018
s. 36.

- (9) Subject to this Act, the regulations and rules, the Specialist Family Violence Court Division may regulate its own procedure.

41B Jurisdiction of Specialist Family Violence Court Division

- (1) The Specialist Family Violence Court Division has jurisdiction to deal with any of the following matters if the matter is within the jurisdiction of the Magistrates' Court and arises from or includes allegations of family violence by a person—
- (a) proceedings for or with respect to the following orders under the **Family Violence Protection Act 2008**—
 - (i) a family violence intervention order under that Act; or
 - (ii) a counselling order or an order under section 137 of that Act;
 - (b) proceedings under the **Vexatious Proceedings Act 2014** in relation to intervention order legislation within the meaning of that Act;
 - (c) a proceeding for a declaration under Division 4 of Part 7 of the **National Domestic Violence Order Scheme Act 2016**;
 - (d) civil proceedings for or with respect to damages for personal injury;
 - (e) matters arising under—
 - (i) the Family Law Act 1975 of the Commonwealth; or
 - (ii) the Child Support (Assessment) Act 1989 of the Commonwealth;

- (f) proceedings for or with respect to the trial of a person for a summary offence or an indictable offence that may be heard and determined summarily;
- (g) proceedings for or with respect to the committal for trial of a person for an indictable offence;
- (h) proceedings for an order under Division 1 or 2 of Part 4 of the **Sentencing Act 1991** that arise from an offence referred to in paragraph (f).

Note

Division 1 of Part 4 of the **Sentencing Act 1991** deals with restitution. Division 2 of Part 4 of the **Sentencing Act 1991** deals with compensation.

- (2) Despite anything to the contrary in the **Victims of Crime Assistance Act 1996**, if the act of violence to which an application under that Act relates is family violence by a person—
 - (a) the Specialist Family Violence Court Division has jurisdiction to deal with the application; and
 - (b) in dealing with the application, the Specialist Family Violence Court Division has the same functions, powers and duties as the Victims of Crime Assistance Tribunal; and
 - (c) for the purposes of the application and any subsequent review of a decision relating to the application, the Specialist Family Violence Court Division is taken to constitute the Victims of Crime Assistance Tribunal.

- (3) The Specialist Family Violence Court Division also has—
- (a) jurisdiction to deal with a breach of an order referred to in subsection (1)(a), including any offence constituted by such a breach; and
 - (b) any other jurisdiction given to it by or under this or any other Act.
- (4) Subject to and in accordance with the rules, a proceeding may be transferred to the Specialist Family Violence Court Division, whether sitting at the same or a different venue, but only if the venue where the Specialist Family Violence Court Division is sitting is the proper venue referred to in paragraph (ca) of the definition of *proper venue*.
- (5) Subject to and in accordance with the rules, the Specialist Family Violence Court Division may transfer a proceeding (including a proceeding transferred to it under subsection (4)) to the Court, sitting other than as the Specialist Family Violence Court Division, at the same or a different venue.
- (6) Despite anything to the contrary in this Act, if a proceeding is transferred from one venue of the Court to another, the transferee venue is the proper venue of the Court for the purposes of this Act.

S. 4J
inserted by
No. 77/2004
s. 4.

4J Adjournment to seek legal advice

S. 4J(1)
amended by
No. 33/2018
ss 37(1), 44(2).

- (1) The Specialist Family Violence Court Division may, on its own initiative or on the application of a party to a proceeding, exercise its power under section 128 to adjourn proceedings to give one or more of the parties a reasonable opportunity to obtain legal advice.

- (2) The Specialist Family Violence Court Division may resume the proceedings if it is satisfied that the party or parties have had a reasonable opportunity to obtain legal advice whether or not that advice has been obtained.

S. 4J(2)
amended by
No. 33/2018
ss 37(1), 44(2).

Note

For *party* to a proceeding, see section 3(1).

4K Alternative arrangements for giving evidence

S. 4K
inserted by
No. 77/2004
s. 4.

- (1) The Specialist Family Violence Court Division may direct that any of the following alternative arrangements be made for the giving of evidence by a witness in a proceeding—

S. 4K(1)
amended by
No. 33/2018
ss 37(2)(a)(i),
44(3)(a)(i).

- (a) permitting the evidence to be given from a place other than the courtroom by means of closed circuit television or other facilities that enable communication between that place and the courtroom;

- (b) using screens to remove the accused, defendant or respondent (within the meaning of the **Family Violence Protection Act 2008**) from the witness's direct line of vision;

S. 4K(1)(b)
amended by
No. 68/2009
s. 97(Sch.
item 82.10).

- (c) permitting a person to be beside the witness while he or she is giving evidence for the purpose of providing emotional support to him or her;

- (d) requiring legal practitioners to be seated while examining or cross-examining the witness;

- (e) permitting only persons specified by the Specialist Family Violence Court Division to be present while the witness is giving evidence;

S. 4K(1)(e)
amended by
No. 33/2018
ss 37(2)(a)(ii),
44(3)(a)(ii).

S. 4K(1)(f)
amended by
No. 33/2018
ss 37(2)(a)(ii),
44(3)(a)(ii).

(f) any other alternative arrangements the Specialist Family Violence Court Division considers appropriate.

S. 4K(2)
amended by
No. 33/2018
ss 37(2)(b),
44(3)(b).

(2) If the witness is 18 years of age or over, the Specialist Family Violence Court Division may make a direction under subsection (1) on its own initiative or on the application of a party to the proceeding.

S. 4K(3)
amended by
No. 33/2018
ss 37(2)(c)(i),
44(3)(c)(i).

(3) If the witness is under 18 years of age, the Specialist Family Violence Court Division must make a direction under subsection (1) unless it considers it is not appropriate to do so having regard to—

- (a) the wishes expressed by the witness; and
- (b) the age and maturity of the witness; and
- (c) any other matters that the Specialist Family Violence Court Division considers relevant.

S. 4K(3)(c)
amended by
No. 33/2018
ss 37(2)(c)(ii),
44(3)(c)(ii).

S. 4K(4)
amended by
No. 33/2018
ss 37(2)(d),
44(3)(d).

- (4) The Specialist Family Violence Court Division may hear an application under subsection (2) or ascertain the matters in subsection (3) in camera and, except as otherwise directed by the Specialist Family Violence Court Division, persons who are not parties to the proceeding or their legal practitioners or representatives are not permitted to be present while the hearing takes place or the matters are being ascertained.
- (5) Any place outside the courtroom where a witness is permitted to give evidence under this section is to be taken to be part of the courtroom while the witness is there for the purpose of giving evidence.

- (6) The Specialist Family Violence Court Division may at any time in the course of the proceeding vary or revoke a direction made under subsection (1) on its own initiative or on the application of a party to the proceeding.

S. 4K(6)
amended by
No. 33/2018
ss 37(2)(e),
44(3)(e).

* * * * *

Note to
s. 4K(6)
repealed by
No. 68/2009
s. 97(Sch.
item 82.11).

Notes

- 1 For *party* to a proceeding, see section 3(1).
- 2 If a witness is the complainant in a criminal proceeding, Divisions 4 and 6 of Part 8.2 of Chapter 8 of the **Criminal Procedure Act 2009** also apply.

Notes to s. 4K
inserted by
No. 68/2009
s. 97(Sch.
item 82.12).

4L Restriction on children being called as witnesses or present in court

S. 4L
inserted by
No. 77/2004
s. 4.

- (1) A child must not be present during, or called as a witness in, proceedings in the Specialist Family Violence Court Division, other than proceedings for a family violence intervention order or a proceeding relating to a recognised DVO, if—

S. 4L(1)
amended by
Nos 52/2008
s. 253(3),
53/2016
s. 106(1),
33/2018
ss 37(3), 44(4).

- (a) the child is a family member of a party to the proceedings; or
- (b) the proceedings arise from or include allegations of family violence and the child is a family member of the alleged victim of that family violence.

- (2) However, subsection (1) does not apply if—

- (a) the child is the accused, defendant or respondent (within the meaning of the **Family Violence Protection Act 2008**) in the proceedings; or

S. 4L(2)(a)
amended by
No. 68/2009
s. 97(Sch.
item 82.13).

S. 4L(2)(b)
amended by
No. 33/2018
ss 37(3), 44(4).

(b) the Specialist Family Violence Court
Division makes an order allowing the child
to be present or called as a witness (as the
case may be).

S. 4L(3)
inserted by
No. 53/2016
s. 106(2).

(3) For the purposes of subsection (1), a proceeding
relating to a recognised DVO is a proceeding for
the variation, extension or revocation of a non-
local DVO that is a recognised DVO, both within
the meaning of the **National Domestic Violence
Order Scheme Act 2016**.

Note to s. 4L
substituted by
No. 52/2008
s. 253(4).

Note

Sections 67 and 150 of the **Family Violence Protection Act 2008**
restricts when a child can be present during, or called as a witness
in, a proceeding for a family violence intervention order.

S. 4M
inserted by
No. 51/2006
s. 4.

4M Establishment of Neighbourhood Justice Division

- (1) The Court has a Neighbourhood Justice Division.
- (2) The Neighbourhood Justice Division has such of
the powers of the Court as are necessary to enable
it to exercise its jurisdiction.
- (3) Despite section 4(3), the Neighbourhood Justice
Division shall only be constituted by a magistrate
who has been assigned to that Division by the
Chief Magistrate by notice published in the
Government Gazette.
- (4) Nothing in subsection (3) prevents the
Neighbourhood Justice Division being constituted
by a judicial registrar in accordance with
section 4(3AA).

S. 4M(4A)
inserted by
No. 53/2016
s. 107.

- (4A) Nothing in subsection (3) prevents the
Neighbourhood Justice Division being constituted
by a registrar for the determination of an
application under Division 4 of Part 7 of the
**National Domestic Violence Order Scheme
Act 2016**.

- (5) In assigning a magistrate to the Neighbourhood Justice Division, the Chief Magistrate must—
 - (a) have regard to the magistrate's knowledge of, or experience in the application of, the principles of therapeutic jurisprudence and restorative justice; and
 - (b) consult with the President of the Children's Court.
- (6) The Neighbourhood Justice Division must exercise its jurisdiction with as little formality and technicality, and with as much expedition, as the requirements of this Act and the **Sentencing Act 1991** and the proper consideration of the matters before the Court permit.
- (7) The Neighbourhood Justice Division must take steps to ensure that, so far as practicable, any proceeding before it is conducted in a way which it considers will make it comprehensible to the parties to the proceeding.
- (8) Subject to this Act, the regulations and the rules, the Neighbourhood Justice Division may regulate its own procedure.

4N Places where Neighbourhood Justice Division may sit and act

S. 4N
inserted by
No. 51/2006
s. 4.

Despite anything to the contrary in this Act, the Neighbourhood Justice Division may only sit and act—

- (a) at a venue of the Court specified by the Chief Magistrate by notice published in the Government Gazette; and
- (b) if the Minister specifies a municipal district by notice published in the Government Gazette, at any place within that municipal district.

S. 40
inserted by
No. 51/2006
s. 4.

4O Jurisdiction of Neighbourhood Justice Division

- (1) In this section—

close connection means connection involving regular congregation for the purpose of social or community support;

municipal district means a municipal district specified under section 4N(b).

- (2) The Neighbourhood Justice Division has the jurisdiction referred to in this section if—

S. 4O(2)(a)
amended by
No. 68/2009
s. 97(Sch.
item 82.14).

- (a) in the case of a criminal proceeding, the accused—

- (i) resides in the municipal district; or
- (ii) is a homeless person who is alleged to have committed the offence in the municipal district; or
- (iii) is a homeless person who is alleged to have committed the offence outside the municipal district but who is living in the municipal district in accommodation of the kind referred to in paragraph (a) of the definition of *homeless person* in section 3(1); or
- (iv) is an Aborigine with a close connection to the municipal district and is alleged to have committed the offence in that district;

S. 4O(2)(ab)
inserted by
No. 68/2008
s. 80(1),
amended by
No. 53/2010
s. 221(Sch.
item 7.3(a)).

- (ab) in the case of a proceeding under the **Personal Safety Intervention Orders Act 2010**—

- (i) at least one of the parties resides in the municipal district; or
- (ii) at least one of the parties is—
 - (A) a homeless person; or

(B) an Aborigine with a close connection to the municipal district—

and the Court considers that it is appropriate to deal with the matter in the Neighbourhood Justice Division; or

(iii) the whole or a material part of the alleged stalking or prohibited behaviour occurred in the municipal district;

S. 40(2)
(ab)(iii)
amended by
No. 53/2010
s. 221(Sch.
item 7.3(b)).

(b) in the case of a civil proceeding or a proceeding under the **Family Violence Protection Act 2008** or the **National Domestic Violence Order Scheme Act 2016**—

S. 40(2)(b)
amended by
Nos 52/2008
s. 254(1),
53/2016
s. 108(1).

(i) at least one of the parties resides in the municipal district; or

(ii) at least one of the parties is—

(A) a homeless person; or

(B) an Aborigine with a close connection to the municipal district—

and the Court considers that it is appropriate to deal with the matter in the Neighbourhood Justice Division; or

(iii) the whole or a material part of the cause of action or claim arose in the municipal district; or

(iv) the whole or a material part of the allegations of family violence occurred in the municipal district.

(3) Subject to subsection (4), the Neighbourhood Justice Division has—

- (a) the jurisdiction of the Court given by section 25; and
- (b) the jurisdiction given to the Court with respect to a criminal proceeding by or under any other Act; and
- (c) jurisdiction to deal with a breach of a sentence imposed by it (including any offence constituted by such a breach) or variation of such a sentence; and
- (d) the civil jurisdiction of the Court in respect of a cause of action or claim, or a class of cause of action or claim, or a proceeding, or a class of proceeding, specified in the rules; and

S. 40(3)(c)
amended by
No. 68/2009
s. 97(Sch.
item 82.15).

- (da) the jurisdiction of the Court given by the **Personal Safety Intervention Orders Act 2010**; and

S. 40(3)(da)
inserted by
No. 68/2008
s. 80(3),
amended by
No. 53/2010
s. 221(Sch.
item 7.4).

- (e) the jurisdiction of the Court given by the **Family Violence Protection Act 2008**; and

S. 40(3)(e)
amended by
Nos 52/2008
s. 254(2),
42/2014
s. 106(a).

- (ea) the jurisdiction of the Court given by Division 4 of Part 7 of the **National Domestic Violence Order Scheme Act 2016**; and

S. 40(3)(ea)
inserted by
No. 53/2016
s. 108(2).

- (f) the jurisdiction of the Court given by the **Vexatious Proceedings Act 2014** in relation to intervention order legislation within the meaning of that Act.

S. 40(3)(f)
inserted by
No. 42/2014
s. 106(b).

- (4) The Neighbourhood Justice Division does not have jurisdiction to deal with—
- (a) a committal proceeding into an indictable offence; or
 - (b) a proceeding for a sexual offence as defined in section 6B(1) of the **Sentencing Act 1991**.

4P Transfer of proceedings

S. 4P
inserted by
No. 51/2006
s. 4.

- (1) Subject to and in accordance with the rules—
- (a) a proceeding may be transferred to the Neighbourhood Justice Division, whether sitting at the same or a different venue; and
 - (b) the Neighbourhood Justice Division may transfer a proceeding (including a proceeding transferred to it under paragraph (a)) to the Court, sitting other than as the Neighbourhood Justice Division, at the same or a different venue.
- (2) Despite anything to the contrary in this Act, if a proceeding is transferred from one venue of the Court to another, the transferee venue is the proper venue of the Court for the purposes of this Act.

4Q Sentencing procedure in Neighbourhood Justice Division

S. 4Q
inserted by
No. 51/2006
s. 4.

- (1) This section applies to the Neighbourhood Justice Division when it is considering which sentence to impose on an accused.
- (2) The Neighbourhood Justice Division may inform itself in any way it thinks fit, including by considering a report prepared by, or a statement or submission prepared or made to it by, or evidence given to it by—

S. 4Q(1)
amended by
No. 68/2009
s. 97(Sch.
item 82.16).

S. 4Q(2)(ca)
inserted by
No. 29/2010
s. 63(2).

- (a) a Neighbourhood Justice officer; or
- (b) a community corrections officer appointed under Part 4 of the **Corrections Act 1986**; or
- (c) the Secretary to the Department of Human Services; or
- (ca) the Secretary to the Department of Health; or
- (d) a health service provider; or
- (e) a community service provider; or
- (f) a victim of the offence; or
- (g) anyone else whom the Division considers appropriate.

S. 4Q(3)
repealed by
No. 77/2010
s. 29.

* * * * *

- (4) Nothing in this section affects the requirement to observe the rules of natural justice.
- (5) This section does not limit—
 - (a) any other power conferred on the Court by or under this or any other Act; or
 - (b) any other specific provision made by or under this or any other Act for the making of any report, statement or submission, or the giving of any evidence, to the Court for the purpose of assisting it in determining a sentence.
- (6) To avoid doubt, Part 3.10 of the **Evidence Act 2008** does not apply to the Neighbourhood Justice Division in considering the sentence to impose under this section, unless the Neighbourhood Justice Division directs, in

S. 4Q(6)
inserted by
No. 69/2009
s. 54(Sch. Pt 1
item 34.2).

accordance with section 4(2) of the **Evidence Act 2008**, that it applies.

4R Sexual Offences List

S. 4R
inserted by
No. 76/2006
s. 9.

- (1) A Sexual Offences List is established.
- (2) The Sexual Offences List consists of any proceeding that relates (wholly or partly) to a charge for a sexual offence.
- (3) The operation and administration of the Sexual Offences List is at the direction of the Chief Magistrate.
- (4) The Chief Magistrate, under section 16A, may issue practice directions, statements or notes for the Court in relation to the Sexual Offences List.
- (5) Nothing in this section takes away from, or limits, a discretion or power conferred on the Chief Magistrate by or under this Act.

4S Assessment and Referral Court List

S. 4S
inserted by
No. 12/2010
s. 5.

- (1) An Assessment and Referral Court List is established.
- (2) Subject to subsection (3), the Assessment and Referral Court List consists of any criminal proceeding referred to that List by the Court.
- (3) The Court must not refer a criminal proceeding to the Assessment and Referral Court List unless—

* * * * *

S. 4S(3)(a)
repealed by
No. 68/2013
s. 4.

- (b) the accused meets the eligibility criteria specified in section 4T; and
- (c) the accused consents to the proceeding being dealt with in the Assessment and Referral Court List; and

- (d) the proceeding is at a venue of the Court where the Assessment and Referral Court List operates; and
- (e) it appears to the Court that, in all the circumstances, it is appropriate for the proceeding to be dealt with in the Assessment and Referral Court List.

S. 4S(3A)
inserted by
No. 23/2012
s. 7(1).

- (3A) For the purposes of determining whether an accused meets the eligibility criteria specified in section 4T, the Court, so far as is practicable, must have regard to any assessment undertaken by a person with appropriate clinical qualifications and experience in relation to the particular impairment or principal impairment that the accused may have.
- (4) Despite anything to the contrary in this Act, the Assessment and Referral Court List may only sit and act at a venue of the Court specified by the Chief Magistrate by notice published in the Government Gazette.
- (5) The operation and administration of the Assessment and Referral Court List is at the direction of the Chief Magistrate.
- (6) The Chief Magistrate, under section 16A, may issue practice directions, statements or notes for the Court in relation to the Assessment and Referral Court List.

S. 4S(6A)
inserted by
No. 23/2012
s. 7(2).

- (6A) Without limiting subsection (6), the Chief Magistrate, in exercising the powers under that subsection and having regard to the needs or requirements of persons with different types of impairments, may provide for—
 - (a) separate hearing lists within the List; and
 - (b) other arrangements to deal with needs or requirements in relation to different types of impairment.

- (7) Nothing in this section takes away from, or limits, a discretion or power conferred on the Chief Magistrate by or under this Act.
- (8) Nothing in this section or sections 4T to 4Y affects the operation or application of the **Crimes (Mental Impairment and Unfitness to be Tried) Act 1997**.
- (9) A report under section 15(3) must include the following information about the Assessment and Referral Court List—
 - (a) the source of referral of a proceeding to the List;
 - (b) the number of persons in each diagnostic criteria who were the subject of a criminal proceeding;
 - (c) the number of persons who were removed from the Assessment and Referral Court List and the reasons for the removal;
 - (d) the number of persons who did not complete an individual support plan;
 - (e) the outcomes of proceedings referred to the Assessment and Referral Court List, including—
 - (i) the number of accused discharged in accordance with section 4U or 4Y;
 - (ii) the number of referrals to the Assessment and Referral Court List;
 - (iii) the number of accused accepted onto the Assessment and Referral Court List;
 - (iv) the number of proceedings finalised on the Assessment and Referral Court List;

S. 4S(9)
inserted by
No. 23/2012
s. 7(3).

(v) the number of proceedings transferred out of the Assessment and Referral Court List in accordance with section 4X(2);

(f) a summary report of how the Assessment and Referral Court List has functioned, including an assessment, if practicable, of the extent to which the Assessment and Referral Court List reduced re-offending.

S. 4T
inserted by
No. 12/2010
s. 5.

4T Eligibility criteria

- (1) To be eligible for a criminal proceeding to enter the Assessment and Referral Court List, an accused must meet—
 - (a) the diagnostic criteria; and
 - (b) the functional criteria; and
 - (c) the needs criteria.
- (2) The diagnostic criteria are that the accused has one or more of the following—
 - (a) a mental illness;
 - (b) an intellectual disability;
 - (c) an acquired brain injury;
 - (d) autism spectrum disorder;
 - (e) a neurological impairment, including, but not limited to dementia.
- (3) The functional criteria are that the accused has one or more of the diagnostic criteria which causes a substantially reduced capacity in at least one of the following areas—
 - (a) self-care;
 - (b) self-management;
 - (c) social interaction;
 - (d) communication.

- (4) The needs criteria are that the accused would derive benefit from receiving coordinated services in accordance with an individual support plan that has regard to the particular diagnostic and functional criteria as well as all other relevant facts applying to the accused and that may include one or more of the following—

S. 4T(4)
amended by
No. 23/2012
s. 8.

- (a) psychological assessment;
- (b) welfare services;
- (c) health services;
- (d) mental health services;
- (e) disability services;
- (f) drug treatment services or alcohol treatment services;
- (g) housing and support services;
- (h) other services that aim to reduce the risk of offending or re-offending.

4U Specific powers of the Assessment and Referral Court List

S. 4U
inserted by
No. 12/2010
s. 5.

- (1) The Assessment and Referral Court List has the powers of the Court necessary to enable it to exercise its jurisdiction.
- (2) Without limiting subsection (1), the Court may—
 - (a) at any time, convene a hearing to receive reports on an accused's progress and compliance with his or her individual support plan;
 - (b) adjust, amend or vary any individual support plan of an accused;
 - (c) at any time, remove a criminal proceeding from the Assessment and Referral Court List;

- (d) at any time discharge an accused or indicate an intention to discharge the accused.
- (3) In hearing any proceeding in the Assessment and Referral Court List, the Court must exercise its jurisdiction with as little formality and technicality, and with as much expedition, as the requirements of this Act and the **Sentencing Act 1991** and the proper consideration of the matters before the Court permit.

S. 4V
inserted by
No. 12/2010
s. 5.

4V Adjournment of proceeding in Assessment and Referral Court List

- (1) The Court, at any time before taking a formal plea from the accused in a criminal proceeding which has been referred to the Assessment and Referral Court List, may adjourn a proceeding in that List for the purposes of a clinical assessment of the accused to—
 - (a) identify the accused's needs based on the needs criteria set out in section 4T; and
 - (b) prepare an individual support plan for the accused.
- (2) The Court must fix a return date for consideration by the Court of the proposed individual support plan.
- (3) On the return date, the Court may—
 - (a) subject to subsection (5), approve the individual support plan, with or without amendments;
 - (b) fix bail conditions or any undertakings or other conditions the Court considers appropriate;
 - (c) make any other order the Court thinks fit.

S. 4V(3)(a)
amended by
No. 68/2013
s. 5(1).

- (4) The Court may adjourn a proceeding under this section for a period not exceeding 12 months to enable the accused to be assessed and participate in and complete his or her individual support plan.
- (5) The Court must take a formal plea from the accused before approving an individual support plan under subsection (3)(a).

S. 4V(5)
inserted by
No. 68/2013
s. 5(2).

4W Other adjournment powers not limited

Nothing in section 4V limits the operation of section 59 or section 331 of the **Criminal Procedure Act 2009** in relation to any criminal proceeding.

S. 4W
inserted by
No. 12/2010
s. 5.

4X Transfer of proceedings to and from Assessment and Referral Court List

S. 4X
inserted by
No. 12/2010
s. 5.

- (1) Subject to and in accordance with this Act and the rules—
- (a) a proceeding may be transferred to the Assessment and Referral Court List, whether sitting at the same or a different venue; and
- (b) the Court may transfer a proceeding in the Assessment and Referral Court List out of that List and back to the Court for hearing at the same or a different venue.
- (2) Despite subsection (1), a proceeding in the Assessment and Referral Court List must be transferred out of the List to a contested hearing in the Court if at any stage the accused pleads not guilty.

S. 4X(2)
amended by
No. 68/2013
s. 6(a).

* * * * *

S. 4X(2)(a)(b)
repealed by
No. 68/2013
s. 6(b).

- (3) Despite anything to the contrary in this Act, if a proceeding is transferred from one venue of the Court to another, the transferee venue is the

proper venue of the Court for the purposes of this Act.

- (4) This section does not limit—
- (a) any other power conferred on the Court by or under this or any other Act; or
 - (b) any other specific provision made by or under this or any other Act for the making of any report, statement or submission, or the giving of any evidence, to the Court for the purpose of assisting it in hearing any criminal proceeding or determining sentence.

S. 4Y
inserted by
No. 12/2010
s. 5.

4Y Completion of, and participation in, individual support plan

- (1) On completion of an individual support plan by an accused to the satisfaction of the Court, the Court must hear and determine the criminal proceeding to which the individual support plan related.
- (2) If an accused completes, or participates in, an individual support plan to the satisfaction of the Court, the Court may discharge the accused without any finding of guilt.
- (3) The fact of participation in the individual support plan is not to be treated as a finding of guilt.
- (4) If the accused is discharged by the Court, the fact of participation in, or completion of, the individual support plan and the discharge of the accused is a defence to a later charge for the same offence or a similar offence arising out of the same circumstances.
- (5) If an accused participates in an individual support plan to the satisfaction of the Court and the accused is subsequently found guilty of the charge, the Court must take into account the extent to which the accused participated in the

individual support plan when sentencing the accused.

- (6) If an accused fails to participate in an individual support plan to the satisfaction of the Court and the accused is subsequently found guilty of the charge, the Court must not take into account the accused's failure to participate in the individual support plan when sentencing the accused.
- (7) Nothing in this section affects the requirement to observe the rules of natural justice.
- (8) This section does not affect the incurring of demerit points under the **Road Safety Act 1986** or regulations made under that Act.
- (9) Nothing in this section affects or limits the operation of the **Sentencing Act 1991** or the powers of a magistrate or the Court under that Act.

5 Where and when Court to be held

- (1) The Court is to be held at such places as the Governor in Council, by Order published in the Government Gazette, directs.
- (2) The Court may sit and act at any time and place.
- (3) The Court must sit on such days and at such times as the Chief Magistrate from time to time directs by notice published in the Government Gazette.
- (4) The Chief Magistrate may from time to time, by notice published in the Government Gazette, alter the days and times appointed for the holding of the Court at any place.

S. 5(1)
amended by
No. 64/1996
s. 26(1).

S. 5(3)
inserted by
No. 64/1996
s. 26(2).

S. 5(4)
inserted by
No. 64/1996
s. 26(2).

5A Mention courts

The Chief Magistrate may from time to time, by notice published in the Government Gazette, nominate a venue of the court as a mention court,

S. 5A
inserted by
No. 64/1996
s. 27.

whether generally or for a particular class of proceeding.

6 Magistrate to be in attendance

- (1) The Chief Magistrate must make arrangements for a magistrate to attend on the day and at the time and place at which the Court is to be held.
- (2) If a magistrate does not arrive at the place at which the Court is to be held before the time fixed for the holding of the Court, a registrar may open the Court and adjourn all proceedings to another day or to another venue, as directed by a magistrate.

7 Appointment of magistrates

S. 7(1)
amended by
No. 3/2016
s. 33(1).

- (1) The Governor in Council may appoint as many persons as magistrates as are necessary for transacting the business of the Court.

S. 7(1A)
inserted by
No. 31/2004
s. 4(1),
repealed by
No. 63/2013
s. 75(1).

* * * * *

S. 7(2)
amended by
No. 3/2016
s. 33(2).

- (2) Subject to subsection (2B), the Governor in Council may appoint one of the magistrates or, in accordance with subsection (2B), another person to be Chief Magistrate and two or more magistrates to be Deputy Chief Magistrates.

S. 7(2A)
inserted by
No. 39/2003
s. 5.

- (2A) A Deputy Chief Magistrate appointed on or after the commencement of section 5 of the **Courts Legislation (Amendment) Act 2003** holds office for a term not exceeding 5 years specified in the instrument of appointment, but is eligible for reappointment.

- (2B) Without limiting subsection (2), the Chief Magistrate, when appointed under subsection (2) must—
- (a) already be a Judge of the Supreme Court; or
- (b) be simultaneously appointed as Chief Magistrate under subsection (2) and appointed under section 75B of the **Constitution Act 1975** as a Judge of the Supreme Court.
- (3) A person is not eligible for appointment as a magistrate unless he or she—
- (a) is or has been a judge or magistrate of—
- (i) the High Court of Australia or of a court created by the Parliament of the Commonwealth; or
- (ii) a court of Victoria or of another State or of the Northern Territory or the Australian Capital Territory; or
- (b) is an Australian lawyer of at least 5 years' standing.
- (4) A person who has attained the age of 70 years is not eligible to be appointed as a magistrate.
- (5) Every person who is appointed as a magistrate must, before acting as a magistrate, take an oath or affirmation of office in the prescribed form and manner.
- (6) A magistrate may resign from office by delivering to the Governor a signed letter of resignation.

S. 7(2B)
inserted by
No. 3/2016
s. 33(3),
substituted by
No. 1/2022
s. 15(1).

S. 7(3)
substituted by
No. 31/2004
s. 4(2).

S. 7(3)(b)
substituted by
No. 18/2005
s. 18(Sch. 1
item 63.2),
amended by
No. 17/2014
s. 160(Sch. 2
item 59.2).

S. 7(4)
amended by
No. 9/1995
s. 10(1)(a).

S. 7(5)
amended by
No. 6/2018
s. 68(Sch. 2
item 81.1).

Magistrates' Court Act 1989
No. 51 of 1989
Part 2—The Magistrates' Court of Victoria

S. 7(6A)
inserted by
No. 3/2016
s. 33(4),
substituted by
No. 1/2022
s. 15(2).

- (6A) The Chief Magistrate who is a dual commission holder may—
- (a) resign simultaneously from both the office of Chief Magistrate under subsection (6) and the office of Judge of the Supreme Court under section 77(4)(e) of the **Constitution Act 1975**; or
 - (b) resign from the office of Chief Magistrate under subsection (6) and continue in office as a Judge of the Supreme Court; or
 - (c) resign from the office of Judge of the Supreme Court under section 77(4)(e) of the **Constitution Act 1975** and continue in office as Chief Magistrate without being a dual commission holder.

S. 7(7)
amended by
No. 13/1999
s. 5.

- (7) A magistrate, other than a Chief Magistrate appointed on or after 7 May 1996, is an officer within the meaning of the **State Superannuation Act 1988**.

S. 7(7A)
inserted by
No. 3/2005
s. 10(1),
amended by
No. 5/2013
s. 32(1).

- (7A) For the purposes of subsection (7), if any magistrate, other than a Chief Magistrate appointed on or after 7 May 1996, was appointed as a magistrate before the repeal of section 9 by the **Courts Legislation Amendment (Reserve Judicial Officers) Act 2013** and immediately before that appointment as a magistrate was an acting magistrate under section 9, during that appointment as an acting magistrate, he or she is an officer within the meaning of the **State Superannuation Act 1988**.

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S. 7(8)
inserted by
No. 31/2004
s. 4(3),
repealed by
No. 63/2013
s. 75(2).

- (9) A magistrate serving under a part-time service arrangement must not engage in legal practice.

S. 7(9)
inserted by
No. 31/2004
s. 4(3),
substituted by
No. 63/2013
s. 75(3).

- (9A) Except with the approval of the Chief Magistrate, a magistrate serving under a part-time service arrangement must not undertake paid employment or conduct a business, trade or profession of any kind.

S. 7(9A)
inserted by
No. 63/2013
s. 75(3).

- (9B) Except with the approval of the Chief Magistrate, a magistrate serving under a part-time service arrangement must not hold an office in any company, trustee company, incorporated association or other entity, whether public or private, in respect of which the magistrate receives remuneration.

S. 7(9B)
inserted by
No. 63/2013
s. 75(3).

- (10) Subject to subsection (7A), this section does not apply to a reserve magistrate.

S. 7(10)
inserted by
No. 3/2005
s. 10(2),
amended by
No. 5/2013
s. 32(2).

7A Entry into part-time service arrangement

S. 7A
inserted by
No. 63/2013
s. 76.

- (1) A magistrate other than an excluded judicial officer may enter into an arrangement with the Chief Magistrate to carry out the duties of magistrate on a part-time basis.
- (2) A part-time service arrangement—
- (a) must be in writing;
 - (b) must specify the proportion of full-time duties to be worked by the magistrate to whom the part-time service arrangement applies, which must be a minimum of 0.4 of full-time duties;

- (c) may specify an expiry date, but is not required to do so.
- (3) The Chief Magistrate may have regard to the following factors in considering whether to enter into a part-time service arrangement—
 - (a) the operational needs of the court;
 - (b) the personal and professional circumstances of the magistrate;
 - (c) parity and equity with other magistrates;
 - (d) any other relevant consideration.
- (4) A part-time service arrangement takes effect from the date agreed by the Chief Magistrate and the magistrate and specified in the part-time service arrangement.

S. 7B
inserted by
No. 63/2013
s. 76.

7B Variation of part-time service arrangement

- (1) A part-time service arrangement may be varied by agreement between the magistrate to whom the arrangement applies and the Chief Magistrate.
- (2) A variation of a part-time service arrangement—
 - (a) must be in writing;
 - (b) must specify the proportion of full-time duties to be worked by the magistrate to whom the part-time service arrangement applies, which must be a minimum of 0.4 of full-time duties.
- (3) The Chief Magistrate may have regard to the factors referred to in section 7A(3) in considering whether to vary a part-time service arrangement.
- (4) A variation of a part-time service arrangement takes effect from the date agreed by the Chief Magistrate and the magistrate and specified in the written variation of the part-time service arrangement.

7C Suspension of part-time service arrangement

S. 7C
inserted by
No. 63/2013
s. 76.

- (1) A part-time service arrangement is suspended if the magistrate to whom the part-time service arrangement applies is appointed as any one of the following—
 - (a) Acting Chief Magistrate;
 - (b) Acting Deputy Chief Magistrate;
 - (c) Acting Deputy State Coroner.
- (2) A suspension under subsection (1) is for the period of the acting appointment.

7D Termination of part-time service arrangement

S. 7D
inserted by
No. 63/2013
s. 76.

- (1) A part-time service arrangement is terminated if the magistrate to whom the part-time service arrangement applies is appointed as any one of the following—
 - (a) Chief Magistrate;
 - (b) Deputy Chief Magistrate;
 - (c) Deputy State Coroner.

S. 7D(1)(b)
substituted as
s. 7D(1)(c) by
No. 21/2015
s. 3(Sch. 1
item 32.2).

- (2) A part-time service arrangement may be terminated by agreement between the magistrate to whom the arrangement applies and the Chief Magistrate.

8 Appointment of Acting Chief Magistrate

- (1AAA) The Governor in Council may appoint a Deputy Chief Magistrate, nominated by the Chief Magistrate, to be Acting Chief Magistrate during any period when the Chief Magistrate is absent on leave or for any reason is temporarily unable to perform the duties of the office of Chief Magistrate.

S. 8(1AAA)
inserted by
No. 31/2013
s. 6(1).

S. 8(1)
amended by
Nos 5/2013
s. 33, 31/2013
s. 6(2).

(1) The Governor in Council may appoint one of the magistrates (other than a reserve magistrate) to be Acting Chief Magistrate—

- (a) during any period when the Chief Magistrate is absent on leave or for any reason is temporarily unable to perform the duties of the office of Chief Magistrate if an appointment has not been made under subsection (1AAA); or
- (b) if there is a vacancy in the office of Chief Magistrate.

S. 8(1A)
inserted by
No. 64/1996
s. 28(1),
substituted by
No. 31/2013
s. 6(3).

(1A) The senior of the Deputy Chief Magistrates willing to act as Chief Magistrate shall act as Chief Magistrate if there is—

- (a) a period when the Chief Magistrate is for any reason temporarily unable to perform the duties of the office of Chief Magistrate and an appointment has not been made under subsection (1AAA) or (1)(a); or
- (b) a vacancy in the office of Chief Magistrate and an appointment has not been made under subsection (1)(b).

S. 8(1B)
inserted by
No. 64/1996
s. 28(1),
amended by
Nos 31/2013
s. 6(4), 6/2018
s. 68(Sch. 2
item 81.1).

(1B) If the appointment of 2 or more Deputy Chief Magistrates took place on the same date, the Deputy Chief Magistrates have seniority according to the seniority assigned in the instruments of appointment as Deputy Chief Magistrate, or if there is no such assignment, according to the order of their taking oath or affirmation of office.

S. 8(2)
amended by
No. 64/1996
s. 28(2)(a)(b).

(2) A magistrate who is appointed as Acting Chief Magistrate or acts as Chief Magistrate under subsection (1A) has, during the period of the appointment or the period of acting as Chief Magistrate, the same powers and duties as the Chief Magistrate.

Magistrates' Court Act 1989
No. 51 of 1989
Part 2—The Magistrates' Court of Victoria

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S. 9
amended by
Nos 9/1995
s. 10(1)(b)(c),
35/1996
s. 453(Sch. 1
item 53.2),
31/2004 s. 5,
substituted by
No. 3/2005
s. 11,
amended by
No. 18/2005
s. 18(Sch. 1
item 63.2),
repealed by
No. 5/2013
s. 34.¹

9A Appointment of reserve magistrates

S. 9A
inserted by
No. 5/2013
s. 35.

- (1) The Governor in Council may appoint as many reserve magistrates as are necessary for transacting the business of the Court.
- (2) A person is not eligible for appointment as a reserve magistrate unless he or she—
 - (a) has not attained the age of 78 years; and
 - (b) is, or has been—
 - (i) a magistrate appointed under section 7 or any previous corresponding provision; or
 - (ii) a magistrate of a Magistrates' Court or Local Court (however designated) of another State or the Northern Territory or the Australian Capital Territory.
- (3) The instrument of appointment of a person as a reserve magistrate must specify the terms and conditions of appointment.

S. 9A(2)(a)
amended by
No. 63/2013
s. 41.

- (4) A reserve magistrate is eligible for re-appointment as a reserve magistrate.

S. 9B
inserted by
No. 5/2013
s. 35.

9B Cessation of office

- (1) A reserve magistrate ceases to hold office on the earlier of—
- (a) the end of 5 years from the date of his or her appointment as a reserve magistrate; or
 - (b) attaining the age of 78 years.

S. 9B(1)(b)
amended by
No. 63/2013
s. 42(1).

- (1A) A reserve magistrate may resign by sending his or her resignation in writing to the Governor.

S. 9B(1A)
inserted by
No. 63/2013
s. 42(2).

S. 9B(2)
repealed by
No. 16/2016
s. 197.

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S. 9C
(Heading)
amended by
No. 63/2013
s. 43(1).

9C Chief Magistrate may engage reserve magistrate to undertake duties of a magistrate

S. 9C
inserted by
No. 5/2013
s. 35.

S. 9C(1)
amended by
No. 63/2013
s. 43(2).

- (1) The Chief Magistrate may, from time to time, by notice in writing, engage a reserve magistrate to undertake the duties of a magistrate—
- (a) on a full time basis; or
 - (b) on a sessional basis.
- (2) Without limiting subsection (1), an engagement under that subsection must specify the period of the engagement.

(3) The Chief Magistrate does not have the power to revoke or amend a notice of engagement under subsection (1), other than with the consent of the reserve magistrate.

S. 9C(3)
amended by
No. 63/2013
s. 43(3).

(4) An engagement under subsection (1) must not exceed 6 months.

S. 9C(4)
inserted by
No. 63/2013
s. 43(4).

(5) For the purpose of deciding whether, when, or on what basis to engage a reserve magistrate to undertake duties, the Chief Magistrate may request the reserve magistrate to provide any information that the Chief Magistrate considers may be relevant to enable a decision to engage to be made.

S. 9C(5)
inserted by
No. 63/2013
s. 43(4).

9D Pension rights and service of Chief Magistrate not affected by being a reserve magistrate

S. 9D
inserted by
No. 5/2013
s. 35.

(1) Despite section 10A(2), appointment as a reserve magistrate does not affect the right of a person who was the Chief Magistrate before that appointment to a pension under section 10A.

(2) Service as a reserve magistrate does not count as service in the office of Chief Magistrate for the purposes of section 10A.

9E Powers, jurisdiction, immunities and protection of reserve magistrate

S. 9E
inserted by
No. 5/2013
s. 35.

Subject to this Act, a reserve magistrate has the same powers, jurisdiction, immunities and protection as a magistrate when undertaking the duties of a magistrate in accordance with an engagement under section 9C.

9EA Power to complete matters—magistrates and reserve magistrates

S. 9EA
inserted by
No. 63/2013
s. 44.

(1) This section applies to—

(a) a magistrate whose office ceases under section 12(a) or by resignation;

- (b) a reserve magistrate engaged under section 9C whose engagement expires;
 - (c) a reserve magistrate engaged under section 9C—
 - (i) whose engagement expires; and
 - (ii) whose appointment as a reserve magistrate ceases, other than by way of resignation—but only if at the time of that cessation or expiry the magistrate or reserve magistrate had a matter—
 - (d) that was part-heard before him or her; or
 - (e) in respect of which his or her decision or determination is pending.
- (2) Subject to subsection (4), a former magistrate, reserve magistrate or former reserve magistrate to whom this section applies may give judgment, make any order or complete or otherwise continue to deal with any matters relating to any proceeding that former magistrate, reserve magistrate or former reserve magistrate (as the case may be) had heard, or partly heard, before the cessation of his or her office or appointment or expiry of his or her engagement.
- (3) For the purposes of subsection (2)—
- (a) a reserve magistrate to whom this section applies whose engagement has expired is taken to be engaged under section 9C; and
 - (b) a former magistrate or former reserve magistrate to whom this section applies—
 - (i) holds office as a reserve magistrate by virtue of this section as if he or she had been appointed under section 9A; and

- (ii) is taken to be a reserve magistrate engaged under section 9C; and
 - (c) section 10(2) and Part 2 of Schedule 1 do not apply and that person is not entitled to remuneration and entitlements under that section for the period during which he or she is acting in accordance with subsection (2) after the cessation of his or her commission or appointment or the expiry of his or her engagement, as the case requires; and
 - (d) the person may continue to serve as a reserve magistrate for the purposes of subsection (2) despite having attained the age of 78 years.
- (4) Subject to subsection (5), any appointment or engagement of a person under this section ceases on the earlier of—
 - (a) the completion of the matters referred to in subsection (2); or
 - (b) 6 months from the date of that appointment or engagement; or
 - (c) the person being appointed under section 9A as a reserve magistrate.
- (5) A person to whom this section applies may resign his or her office as reserve magistrate under this section by notice in writing to the Governor.
- (6) Nothing in this section prevents a person being appointed as a reserve magistrate under section 9A at any time, if he or she is eligible to be so appointed.
- (7) Nothing in this section affects the operation of section 16AB.

S. 9EA(8)
inserted by
No. 29/2015
s. 68.

- (8) In this section a reference to "proceeding" includes—
- (a) any proceeding or other matter in the Children's Court under the **Children, Youth and Families Act 2005**; and
 - (b) any investigation or inquiry under the **Coroners Act 2008**.

S. 9F
inserted by
No. 5/2013
s. 35,
amended by
No. 63/2013
s. 45 (ILA
s. 39B(1)).

9F Engaging in legal practice or other paid employment

- (1) Except with the approval of the Chief Magistrate, a reserve magistrate must not engage in legal practice, undertake paid employment or conduct a business, trade or profession of any kind while engaged to undertake the duties of a magistrate under section 9C or acting under section 9EA.
- (2) Except with the approval of the Chief Magistrate, a reserve magistrate must not hold an office in any company, trustee company, incorporated association or other entity, whether public or private, in respect of which the reserve magistrate receives remuneration while engaged to undertake the duties of a magistrate under section 9C or acting under section 9EA.

S. 9F(2)
inserted by
No. 63/2013
s. 45(2).

10 Salaries, superannuation contributions, allowances and other conditions of service

S. 10
(Heading)
inserted by
No. 29/2015
s. 84(1),
substituted by
No. 3/2016
s. 18(1).

- (1) Part 1 of Schedule 1 sets out—
 - (a) the salaries payable to magistrates and the allowances and other conditions of service to which magistrates are entitled; and
 - (b) the superannuation contributions payable for the benefit of magistrates.

S. 10(1)
amended by
Nos 64/1990
s. 20(Sch.
item 4.1),
29/2015
s. 84(2),
substituted by
No. 3/2016
s. 18(2).

(1AA) The Chief Magistrate who is or has been a dual commission holder as a Judge of the Supreme Court—

S. 10(1AA)
inserted by
No. 1/2022
s. 16(1).

- (a) is entitled to the salary and the allowances and other conditions of service of the Chief Magistrate who is or has been a dual commission holder as a Judge of the Supreme Court under this section and Schedule 1; and
- (b) is not entitled to receive any salary, allowances or other conditions of service as a Judge of the Supreme Court during the period of being a dual commission holder; and
- (c) in the case of the Chief Magistrate who has been a dual commission holder as a judge of the County Court under the **County Court Act 1958**, is not entitled to receive any salary, allowances or other conditions of service as the Chief Magistrate who has been a dual commission holder as a judge of the County Court.

(1A) The Chief Magistrate who has been a dual commission holder as a judge of the County Court—

S. 10(1A)
inserted by
No. 3/2016
s. 34,
amended by
No. 1/2022
s. 16(2)(a).

- (a) is entitled to the salary and the allowances and other conditions of service of the Chief Magistrate who has been a dual commission holder as a judge of the County Court under this section and Schedule 1; and
- (b) is not entitled to receive any salary, allowances or other conditions of service as a judge of the County Court under the **County**

S. 10(1A)(a)
amended by
No. 1/2022
s. 16(2)(b).

Court Act 1958 during the period of being a dual commission holder.

S. 10(2)
amended by
Nos 64/1990
s. 20(Sch.
item 4.1),
5/2013 s. 36,
substituted by
Nos 29/2015
s. 84(3),
3/2016
s. 18(3).

(2) Part 2 of Schedule 1 sets out—

- (a) the salaries payable to reserve magistrates and the allowances and other conditions of service to which reserve magistrates are entitled; and
- (b) the superannuation contributions payable for the benefit of reserve magistrates.

S. 10A
inserted by
No. 13/1999
s. 6.

10A Pension of Chief Magistrate

S. 10A(1)
amended by
No. 23/2008
s. 20,
substituted by
No. 1/2022
s. 17(1).

(1) The Chief Magistrate and the partner and children of the Chief Magistrate are entitled to pensions in the same circumstances and at the same rates and on the same terms and conditions—

- (a) in the case of the Chief Magistrate who is or has been a dual commission holder as a Judge of the Supreme Court—as a Judge of the Supreme Court and the partner and children of such a Judge are entitled to pensions under section 83 of the **Constitution Act 1975**; or
- (b) in the case of the Chief Magistrate who has been a dual commission holder as a judge of the County Court but has not been a dual commission holder as a Judge of the Supreme Court—as a judge of the County Court (other than the Chief Judge) and the partner and children of such a judge are entitled to pensions under section 14 of the **County Court Act 1958**; or
- (c) in the case of the Chief Magistrate who has not been a dual commission holder—as a judge of the County Court (other than the

Chief Judge) and the partner and children of such a judge are entitled to pensions under section 14 of the **County Court Act 1958**.

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Note to
s. 10A(1)
inserted by
No. 29/2015
s. 69,
repealed by
No. 3/2016
s. 35(1).

(1AA) Subject to subsections (1AB) and (1C), section 83(6), (6B) and (6C) of the **Constitution Act 1975** applies, with any necessary modification, in relation to the recognition of service for the purposes of a pension under this section if the Chief Magistrate is or has been a dual commission holder as a Judge of the Supreme Court.

S. 10A(1AA)
inserted by
No. 1/2022
s. 17(2).

(1AB) The Chief Magistrate who is a dual commission holder as a Judge of the Supreme Court is taken to not hold the office of Judge of the Supreme Court during the period of being a dual commission holder as Judge of the Supreme Court when counting service in the office of Chief Magistrate.

S. 10A(1AB)
inserted by
No. 1/2022
s. 17(2).

(1A) Subject to subsections (1B) and (1C), section 14(5) of the **County Court Act 1958** applies, with any necessary modification, in relation to the recognition of service for the purposes of a pension under this section if the Chief Magistrate has been a dual commission holder as a judge of the County Court or has not been a dual commission holder.

S. 10A(1A)
inserted by
No. 3/2016
s. 35(2),
amended by
No. 1/2022
s. 17(3).

(1B) The Chief Magistrate who has been a dual commission holder as a judge of the County Court is taken to not hold the office of judge of the County Court during the period of being a dual commission holder when counting service in the office of Chief Magistrate.

S. 10A(1B)
inserted by
No. 3/2016
s. 35(2),
amended by
No. 1/2022
s. 17(4).

S. 10A(1C)
inserted by
No. 3/2016
s. 35(2),
substituted by
No. 1/2022
s. 17(5).

(1C) If the Chief Magistrate—

- (a) is or has been a dual commission holder as a Judge of the Supreme Court, the person's service in the office of Chief Magistrate whilst a dual commission holder as a Judge of the Supreme Court, counts for the purposes of this section, as service in the office of Chief Magistrate; or
- (b) has been a dual commission holder as a judge of the County Court, and is or has been a dual commission holder as a Judge of the Supreme Court, the person's service in the office of Chief Magistrate whilst a dual commission holder as a judge of the County Court and as a Judge of the Supreme Court counts for the purposes of this section, as service in the office of Chief Magistrate; or
- (c) has been a dual commission holder as a judge of the County Court, the person's service in the office of Chief Magistrate whilst a dual commission holder as a judge of the County Court counts for the purposes of this section, as service in the office of Chief Magistrate.

S. 10A(1D)
inserted by
No. 3/2016
s. 35(2),
substituted by
No. 1/2022
s. 17(6).

(1D) If the Chief Magistrate resigns the office of Chief Magistrate as a dual commission holder—

- (a) as a Judge of the Supreme Court but continues in the office of Judge of the Supreme Court, that person is taken not to have resigned or retired from the office of Chief Magistrate for the purposes of section 83(1), (1A), (1B), (1C) and (1D) of the **Constitution Act 1975** as applied by this section; or

- (b) as a judge of the County Court but continues in the office of judge of the County Court, that person is taken not to have resigned or retired from the office of Chief Magistrate for the purposes of section 14(2), (2A) and (2B) of the **County Court Act 1958** as applied by this section.
- (1E) In the case of the death of a Chief Magistrate who is a dual commission holder, this section applies. **S. 10A(1E) inserted by No. 3/2016 s. 35(2).**
- (2) A pension under this section is liable to be suspended or determined in the same circumstances and to the same extent as pensions under section 14 of the **County Court Act 1958** or section 83 of the **Constitution Act 1975**, as the case requires, are liable to be suspended or determined. **S. 10A(2) amended by No. 1/2022 s. 17(7).**
- (2A) A pension under this section may be commuted in the same circumstances and to the same extent as pensions under sections 14AC, 14AF and 14AI of the **County Court Act 1958** or sections 83AA to 83AI of the **Constitution Act 1975**, as the case requires may be commuted and for that purpose sections 14AA to 14AI of the **County Court Act 1958** or sections 83AA to 83AI of the **Constitution Act 1975** apply with such modifications as are necessary. **S. 10A(2A) inserted by No. 19/2001 s. 16(1), amended by No. 1/2022 s. 17(8).**
- (3) Pensions under this section and any payments of lump sums provided by the commutation of those pensions are payable out of the Consolidated Fund which is hereby to the necessary extent appropriated accordingly. **S. 10A(3) amended by No. 19/2001 s. 16(2).**
- (4) This section applies in respect of the appointment of a Chief Magistrate made on or after 7 May 1996.

S. 10A(5)
inserted by
No. 4/2009
s. 37(Sch. 1
item 17).

(5) In this section—

domestic partner of a person means—

- (a) a person who is, or was at the time of the person's death, in a registered domestic relationship with the person; or
- (b) a person to whom the person is not married but with whom, in the opinion of the Minister, the person is, or was at the time of the person's death, living as a couple on a genuine domestic basis (irrespective of gender);

S. 10A(5)
def. of
partner
substituted by
No. 40/2010
s. 109(1).

partner of a person means the person's spouse or domestic partner;

spouse of a person means a person to whom the person is, or was at the time of the person's death, married.

S. 10A(6)
inserted by
No. 4/2009
s. 37(Sch. 1
item 17).

(6) For the purposes of the definition of *domestic partner* in subsection (5)—

- (a) *registered domestic relationship* has the same meaning as in the **Relationships Act 2008**; and
- (b) in determining whether persons who are not in a registered domestic relationship are domestic partners of each other, all the circumstances of their relationship are to be taken into account, including any one or more of the matters referred to in section 35(2) of the **Relationships Act 2008** as may be relevant in a particular case.

S. 10A(7)
inserted by
No. 40/2010
s. 109(2).

(7) For the purposes of subsection (1), the definition of *partner* as substituted by section 109(1) of the **Superannuation Legislation Amendment**

Act 2010 applies in respect of the entitlement to a pension of a partner of a Chief Magistrate or former Chief Magistrate only if the death of the Chief Magistrate or former Chief Magistrate occurs on or after the commencement of the substituting section.

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S. 11
repealed by
No. 16/2005
s. 8(2).

12 Vacation of office

A person ceases to hold office as a magistrate if—

S. 12
amended by
No. 16/2005
s. 8(3)(a).

(a) he or she attains the age of 70 years; or

S. 12(a)
amended by
Nos 9/1995
s. 10(1)(d),
16/2005
s. 8(3)(b).

(b) he or she is removed from office by the Governor in Council in accordance with Part IIIAA of the **Constitution Act 1975**; or

S. 12(b)
substituted by
No. 16/2005
s. 8(3)(c).

(c) his or her office is abolished by or under an Act.

S. 12(c)
inserted by
No. 16/2005
s. 8(3)(c).

12A Administrative responsibility of Chief Magistrate

S. 12A
inserted by
No. 16/2016
s. 198.

- (1) The Chief Magistrate is responsible for ensuring the effective, orderly and expeditious discharge of the business of the Court.
- (2) The Chief Magistrate has the power to do all things necessary or convenient to be done to perform the Chief Magistrate's responsibilities under subsection (1).

- (3) Nothing in this section limits the responsibilities, functions or powers of the Chief Magistrate under this or any other Act.

S. 13
amended by
No. 64/1996
s. 29,
substituted by
No. 43/1998
s. 45.

13 Assignment of duties

S. 13(1)
amended by
No. 36/2007
s. 3(3).

- (1) The Chief Magistrate may assign duties to a magistrate or judicial registrar.

S. 13(2)
amended by
No. 36/2007
s. 3(3).

- (2) A magistrate or judicial registrar must carry out the duties that are from time to time assigned to him or her by the Chief Magistrate.

S. 13(3)
inserted by
No. 31/2004
s. 6,
amended by
Nos 36/2007
s. 3(4), 5/2013
s. 37,
repealed by
No. 63/2013
s. 77.

* * * * *

S. 13A
inserted by
No. 43/1998
s. 45.

13A Delegation by the Chief Magistrate

The Chief Magistrate, by instrument, may delegate to any magistrate any of his or her powers under sections 6(1) and 13.

S. 13B
inserted by
No. 10/1999
s. 21,
substituted by
No. 24/2007
s. 5.

13B Professional development and training

- (1) In this section—

S. 13B(1)
def. of
judicial officer
amended by
No. 36/2007
s. 3(5).

judicial officer means—

- (a) a magistrate; or
(b) a judicial registrar; or

- (c) the principal registrar, a registrar or a deputy registrar.
- (2) The Chief Magistrate is responsible for directing the professional development and continuing education and training of judicial officers.
- (3) In discharging his or her responsibility under subsection (2) the Chief Magistrate may direct—
 - (a) all judicial officers; or
 - (b) a specified class of judicial officer; or
 - (c) a specified judicial officer—to participate in a specified professional development or continuing education and training activity.
- (4) A direction under subsection (3) may be given orally or in writing.

14 Protection of magistrates

- (1) A magistrate has, in the performance of his or her duties as a magistrate, the same protection and immunity as a Judge of the Supreme Court has in the performance of his or her duties as a Judge.
- (2) For the purposes of subsection (1), the protection and immunity extends to the conduct of a committal proceeding.

S. 14
amended by
No. 64/2010
s. 63 (ILA
s. 39B(1)).

S. 14(2)
inserted by
No. 64/2010
s. 63.

15 Council of magistrates

- (1) A Council of the magistrates must meet at least once in each year on a day or days fixed by the Chief Magistrate to—
 - (a) consider the operation of this Act and the Rules; and
 - (b) consider the working of the offices of the Court and the arrangements relating to the duties of court officials; and

S. 15(1)
amended by
No. 5/2013
s. 38(1).

- (c) inquire into and examine any defects which appear to exist in the system of procedure or the administration of the law in the Court.
- (2) The Chief Magistrate must cause adequate notice of a meeting to be given to all the magistrates.
- (3) The magistrates must report annually to the Governor on the operation of the Court.
- (4) In this section, "magistrate" does not include a reserve magistrate.
- (5) A Chief Magistrate who is a dual commission holder is a member of the Council of magistrates and is also a member of the Council of Judges under section 28 of the **Supreme Court Act 1986**.

S. 15(4)
inserted by
No. 5/2013
s. 38(2).

S. 15(5)
inserted by
No. 3/2016
s. 36,
amended by
No. 1/2022
s. 18.

Note to s. 15
inserted by
No. 16/2016
s. 199.

Note

See Divisions 1 and 2 of Part 6 of the **Judicial Commission of Victoria Act 2016** which specifies functions for the Council of magistrates.

S. 16
(Heading)
inserted by
No. 19/2005
s. 7(1).

16 Rules of Court

S. 16(1)
amended by
Nos 64/1996
s. 30(1)(a),
20/2022
s. 34(1).

- (1) The Chief Magistrate together with one or more Deputy Chief Magistrates may jointly make rules of court for or with respect to the following—
 - (a) any matter dealt with in the Rules referred to in subsection (5);
 - (ab) furthering the overarching purpose set out in the **Civil Procedure Act 2010** and the conduct of civil proceedings in accordance with the principles set out in that Act, including the overarching obligations;

S. 16(1)(ab)
inserted by
No. 47/2010
s. 89(a).

- | | |
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| (ac) the conduct of civil proceedings and parties to civil proceedings generally, including, but not limited to, the imposition of limits, restrictions or conditions on any party in respect of any aspect of the conduct of civil proceedings; | S. 16(1)(ac) inserted by No. 47/2010 s. 89(a). |
| (ad) case management; | S. 16(1)(ad) inserted by No. 47/2010 s. 89(a). |
| (ada) discovery and disclosure; | S. 16(1)(ada) inserted by No. 25/2014 s. 11. |
| (ae) any other matter or thing required or permitted by or under the Civil Procedure Act 2010 to be dealt with by rules of court or otherwise necessary or required for the purposes of that Act; | S. 16(1)(ae) inserted by No. 47/2010 s. 89(a). |
| (b) the prescription of the civil proceedings or class of civil proceedings which may be dealt with by the Court constituted by a registrar; | |
| (c) the prescription of any venue of the court as a civil registry court; | |
| (ca) any other matter or thing required or permitted by or under the Open Courts Act 2013 to be dealt with by rules of court or otherwise necessary or required for the purposes of that Act; | S. 16(1)(ca) inserted by No. 58/2013 s. 48. |
| (cb) any matter or thing required or permitted by or under the Vexatious Proceedings Act 2014 to be dealt with by rules of court or otherwise necessary or required for the purposes of that Act; | S. 16(1)(cb) inserted by No. 42/2014 s. 107. |

S. 16(1)(cc)
inserted by
No. 21/2016
s. 22.

(cc) any other matter or thing required or permitted by or under Part 4A of the **Sex Offenders Registration Act 2004** to be dealt with by rules of court or otherwise necessary or required for the purposes of Part 4A of that Act;

S. 16(1)(cd)
inserted by
No. 18/2018
s. 18.

(cd) the conduct of civil proceedings and parties to civil proceedings conducted in accordance with the **Legal Identity of Defendants (Organisational Child Abuse) Act 2018**, including, but not limited to—

- (i) the imposition of limits, restrictions or conditions on any party (including proper defendants) in respect of any aspect of the conduct of those proceedings; and
- (ii) the direction or ordering of parties (including proper defendants) to those proceedings; and
- (iii) the modification of any rule, practice or procedure in its application to proper defendants under that Act; and
- (iv) any other matter or thing necessary or required for the purposes of that Act or arising from civil proceedings conducted in accordance with that Act;

S. 16(1)(ce)
inserted by
No. 3/2019
s. 30.

(ce) any matter or thing required or permitted by or under Division 5 of Part 5 of the **Second-Hand Dealers and Pawnbrokers Act 1989** to be dealt with by rules of court or otherwise necessary or required for the purposes of Division 5 of Part 5 of that Act;

(d) appeals in civil proceedings by way of re-hearing or otherwise to the Court constituted by a magistrate from the Court constituted by a registrar;

- (e) the payment of money into and out of court in civil proceedings and the investment of that money;
- (ea) the service of documents in civil proceedings, including service outside Australia; S. 16(1)(ea)
inserted by
No. 10/1999
s. 22.
- (f) any matter relating to the practice and procedure of the Court in civil proceedings;
- (fa) the reference of any civil proceeding or of any part of a civil proceeding to mediation; S. 16(1)(fa)
inserted by
No. 64/1996
s. 30(1)(b).
- (fb) the referral of any civil proceeding, or any part of a civil proceeding, for a pre-hearing conference and the conduct of pre-hearing conferences; S. 16(1)(fb)
inserted by
No. 51/2000
s. 4.
- (fc) judicial resolution conferences, including, but not limited to the practice and procedure of the Court in relation to judicial resolution conferences; S. 16(1)(fc)
inserted by
No. 50/2009
s. 14.
- (fd) without limiting paragraphs (fa), (fb) and (fc), the referral, direction or ordering of parties to a civil proceeding to any form of appropriate dispute resolution, whether with or without the consent of the parties; S. 16(1)(fd)
inserted by
No. 47/2010
s. 89(b).
- (g) any matter relating to the enforcement of orders made by the Court in civil proceedings;
- (ga) electronic communication and electronic processes, including, but not limited to— S. 16(1)(ga)
inserted by
No. 33/2018
s. 49(1).
 - (i) applications by electronic means, electronic filing and electronic service of documents in any civil proceeding; and

S. 16(1)(h)
inserted by
No. 33/1994
s. 5(1).

- (ii) the transmission and issuing of orders, processes and other documents by electronic communication; and
- (iii) use of electronic signatures and seals;
- (h) the storage, disposal or destruction of documents—
 - (i) filed or lodged with the appropriate registrar in civil proceedings; or

S. 16(1)(h)(ii)
amended by
No. 31/2001
s. 7(1).

- (ii) issued out of the Court in civil proceedings and kept by the principal registrar;

S. 16(1)(i)
inserted by
No. 31/2001
s. 7(2).

- (i) the conduct of, and procedure for, or in relation to, substituted proceedings to which Part 3A of the **Victorian Civil and Administrative Tribunal Act 1998** applies including, but not limited to, the form or manner in which substituted proceedings are to be commenced.

S. 16(1A)
inserted by
No. 19/2005
s. 7(2),
amended by
No. 20/2022
s. 34(1).

- (1A) The Chief Magistrate together with one or more Deputy Chief Magistrates may jointly make rules of court for or with respect to the following—

- (a) prescribing by scale or otherwise the costs of and incidental to criminal proceedings in the Court;
 - (b) prescribing a method for the electronic filing of charge-sheets;

S. 16(1A)(b)
amended by
No. 68/2009
s. 97(Sch.
item 82.17).

- (ba) electronic communication and electronic processes, including, but not limited to—
 - (i) applications by electronic means, electronic filing and electronic service of documents in any criminal proceeding; and

S. 16(1A)(ba)
inserted by
No. 33/2018
s. 49(2).

- (ii) the transmission and issuing of orders, processes and other documents by electronic communication; and
- (iii) use of electronic signatures and seals;
- (c) the form in which process may be issued out of the Court and the manner in which it may be authenticated, stored, transmitted or otherwise dealt with;
- (ca) any matter relating to sentence indications under Division 3 of Part 3.3 of Chapter 3 of the **Criminal Procedure Act 2009**;
S. 16(1A)(ca) inserted by No. 8/2008 s. 11, amended by No. 68/2009 s. 97(Sch. item 82.18).
- (d) the manner in which orders may be authenticated;
- (e) any matter relating to the practice and procedure of the Koori Court Division of the Court;
- (f) the transfer of proceedings to and from the Koori Court Division of the Court;
- (g) any matter relating to the practice and procedure of the Specialist Family Violence Court Division of the Court;
S. 16(1A)(g) amended by No. 33/2018 ss 37(4), 44(5).
- (h) the transfer of proceedings to and from the Specialist Family Violence Court Division of the Court;
S. 16(1A)(h) amended by No. 33/2018 ss 37(4), 44(5).
- (ha) the causes of action or claims, or classes of causes of action or claims, or proceedings or classes of proceedings, that may be heard and determined in the Neighbourhood Justice Division of the Court;
S. 16(1A)(ha) inserted by No. 51/2006 s. 5.
- (hb) any matter relating to the practice and procedure of the Neighbourhood Justice Division of the Court;
S. 16(1A)(hb) inserted by No. 51/2006 s. 5.

Magistrates' Court Act 1989
No. 51 of 1989
Part 2—The Magistrates' Court of Victoria

S. 16(1A)(hc)
inserted by
No. 51/2006
s. 5.

(hc) the transfer of proceedings to and from the
Neighbourhood Justice Division of the
Court;

S. 16(1A)(hd)
inserted by
No. 12/2010
s. 6.

(hd) any matter relating to the practice and
procedure of the Assessment and Referral
Court List;

S. 16(1A)(he)
inserted by
No. 12/2010
s. 6.

(he) the transfer of proceedings to and from the
Assessment and Referral Court List;

S. 16(1A)(i)
amended by
No. 68/2009
s. 97(Sch.
item 82.19).

(i) the procedure to be followed on a proceeding
held under an order made under Part 4.3 of
Chapter 4 of the **Criminal Procedure
Act 2009**;

(j) any matter relating to the practice and
procedure of the Court in committal
proceedings;

S. 16(1A)(k)
repealed by
No. 68/2009
s. 97(Sch.
item 82.20),
new
s. 16(1A)(k)
inserted by
No. 38/2017
s. 70.

(k) the return to the Court of warrants issued
under section 57;

(l) forms to be used in committal proceedings;

S. 16(1A)(la)
inserted by
No. 38/2008
s. 8,
amended by
No. 68/2009
s. 97(Sch.
item 82.21).

(la) prescribing persons or classes of persons for
the purposes of item 30 of Schedule 3 to the
Criminal Procedure Act 2009;

S. 16(1A)(m)
amended by
No. 12/2006
s. 169(c),
repealed by
No. 47/2014
s. 269.

* * * * *

- (n) prescribing the rules, practice and procedure applicable to the execution of a warrant to seize property issued for the enforcement of an order made by the Court in a criminal proceeding;
- (o) the storage, disposal or destruction of documents—
 - (i) filed or lodged with the appropriate registrar in criminal proceedings; or
 - (ii) issued out of the Court in criminal proceedings and kept by the principal registrar;
- (p) requirements for the purposes of Part IIA of the **Evidence (Miscellaneous Provisions) Act 1958** for or with respect to—
 - (i) the form of audio visual or audio link;
 - (ii) the equipment, or class of equipment, used to establish the link;
 - (iii) the layout of cameras;
 - (iv) the standard, or speed, of transmission;
 - (v) the quality of communication;
 - (vi) any other matter relating to the link;
- (q) applications to the Court under Division 2 or 3 of Part IIA of the **Evidence (Miscellaneous Provisions) Act 1958**;
- (r) any matter relating to the practice and procedure of the Court under Part IIA of the **Evidence (Miscellaneous Provisions) Act 1958**;
- (s) the forms to be used in criminal proceedings;

S. 16(1A)(p)
amended by
No. 69/2009
s. 54(Sch. Pt 2
item 32).

S. 16(1A)(q)
amended by
No. 69/2009
s. 54(Sch. Pt 2
item 32).

S. 16(1A)(r)
amended by
No. 69/2009
s. 54(Sch. Pt 2
item 32).

S. 16(1A)(t)
substituted by
No. 68/2009
s. 97(Sch.
item 82.22).

- (t) the matters to be considered in determining the last known place of residence or business of a person for the purpose of service of a document on the person in a criminal proceeding;
- (u) the recording of proceedings in the Court;
- (v) generally, any matter relating to the practice and procedure of the Court in criminal proceedings.

S. 16(1AB)
inserted by
No. 68/2009
s. 97(Sch.
item 82.23).

- (1AB) Rules made under subsection (1A) must not be inconsistent with the **Criminal Procedure Act 2009**.

S. 16(1B)
inserted by
No. 19/2005
s. 7(2),
amended by
No. 20/2022
s. 34(1).

- (1B) Without limiting any other power to make rules of court conferred by this or any other Act, the Chief Magistrate together with one or more Deputy Chief Magistrates may jointly make rules of court for or with respect to generally prescribing any matter or thing required or permitted by this Act to be prescribed by rules of court or necessary to be prescribed by rules of court to give effect to this Act.

S. 16(1C)
inserted by
No. 19/2005
s. 7(2),
amended by
No. 20/2022
s. 34(2).

- (1C) In exercising a power conferred by subsection (1A)(j), (k) or (l) to make rules, the Chief Magistrate and the Deputy Chief Magistrate or Magistrates, as the case requires, must have regard to the interests of the community in ensuring the prompt and efficient disposal of criminal proceedings.

S. 16(1D)
inserted by
No. 19/2005
s. 7(2).

- (1D) A power conferred by this Act to make rules may be exercised—
 - (a) either in relation to all cases to which the power extends, or in relation to all those cases subject to specified exceptions, or in relation to any specified case or class of case; and

- (b) so as to make, as respects the cases in relation to which it is exercised—
 - (i) the same provision for all cases in relation to which the power is exercised, or different provisions for different cases or classes of case, or different provisions for the same case or class of case for different purposes; or
 - (ii) any such provision either unconditionally or subject to any specified condition.
- (1E) Rules made under this Act may be made so as to—
 - (a) require a matter affected by the rules to be approved by or to the satisfaction of a specified court official or a specified class of court official; and
 - (b) confer a discretionary authority or impose a duty on a specified person or a specified class of person; and
 - (c) provide in a specified case or class of case for the exemption of proceedings or a class of proceeding from any of the provisions of the rules, whether unconditionally or on specified conditions and either wholly or to such an extent as is specified.
- (2) The power of the Chief Magistrate together with one or more Deputy Chief Magistrates to jointly make rules of court, whether that power is conferred by this or any other Act, is subject to the rules being disallowed by a House of the Parliament in accordance with section 23 of the **Subordinate Legislation Act 1994**.

S. 16(1E)
inserted by
No. 19/2005
s. 7(2).

S. 16(2)
substituted by
No. 64/1996
s. 30(2),
amended by
No. 20/2022
s. 34(1).

Magistrates' Court Act 1989
No. 51 of 1989
Part 2—The Magistrates' Court of Victoria

S. 16(3)
repealed by
No. 64/1996
s. 30(2).

* * * *

S. 16(4)
repealed by
No. 19/2005
s. 9(1).

* * * *

- (5) The proposed Magistrates' Court Civil Procedure Rules 1989 approved by a majority of the magistrates on 17 March 1989—
- (a) are for all purposes (including the purposes of the **Subordinate Legislation Act 1962**) to be treated; and
 - (b) have effect; and
 - (c) may be revoked or amended—

as if they had been made under this Act on the day on which this Act received the Royal Assent.

S. 16A
inserted by
No. 64/1996
s. 31.

16A Practice notes

- (1) The Chief Magistrate may from time to time issue practice directions, statements or notes for the Court in relation to civil or criminal proceedings or any class of civil or criminal proceedings.
- (2) Practice directions, statements or notes issued under subsection (1) must not be inconsistent with any provision made by or under this or any other Act.

S. 16AB
inserted by
No. 63/2013
s. 46.

16AB Constitution of Court if magistrate unable to continue and constitution of Court in certain circumstances

- (1) Subject to subsection (2), despite anything in any Act or the rules, any power, duty or act which might have been exercised or performed by the Court constituted by a magistrate may be exercised or performed by the Court constituted by any other magistrate if the Court cannot for any

reason be constituted by that first mentioned magistrate.

- (2) If this Act or the rules provide that a division of the Court must be constituted by a magistrate assigned to that division, the Court may only be constituted under subsection (1) by a magistrate who is assigned to the relevant division.
- (3) For the avoidance of doubt, for the purpose of completion of any matter whether under section 9EA or otherwise, the Court may be constituted or continue to be constituted by a reserve magistrate who is a magistrate without reconstitution of the Court despite any interruption in continuity of his or her tenure, appointment or engagement.

Part 2A—Judicial registrars

Pt 2A
(Heading and
ss 16B–16K)
inserted by
No. 19/2005
s. 5.

S. 16B
inserted by
No. 19/2005
s. 5.

16B Guidelines relating to the appointment of judicial registrars

- (1) The Chief Magistrate may, in consultation with the Attorney-General—
 - (a) prepare guidelines relating to the appointment (including re-appointment) of judicial registrars of the Court; and
 - (b) from time to time amend or revoke any guidelines prepared under paragraph (a).
- (2) The Chief Magistrate must, as soon as practicable after preparing, amending or revoking any guidelines under subsection (1), cause a copy of the guidelines or the amendment or notice of the revocation (as the case requires) to be given to the Attorney-General.

S. 16B(1)(a)
amended by
No. 62/2014
s. 90.

S. 16C
inserted by
No. 19/2005
s. 5.

16C Appointment of judicial registrars

- (1) The Chief Magistrate may, at any time, having regard to any guidelines in force under section 16B(1), recommend to the Attorney-General that a judicial registrar, or more than one judicial registrar, of the Court be appointed by the Governor in Council.
- (2) The Attorney-General, on receiving a recommendation under subsection (1), may recommend to the Governor in Council that a judicial registrar, or more than one judicial registrar, of the Court be appointed under subsection (3).

S. 16C(2)
amended by
No. 34/2010
s. 50.

- (3) The Governor in Council, on the recommendation of the Attorney-General, may appoint a person as a judicial registrar of the Court for the period, not exceeding 5 years, specified in his or her instrument of appointment.
- (4) A person is not eligible for appointment as a judicial registrar unless he or she is—
- (a) an Australian lawyer; or
 - (b) enrolled as a legal practitioner of the High Court of Australia.
- (5) A judicial registrar may be appointed on a full-time or part-time basis.
- (6) A judicial registrar, although not appointed on a part-time basis, may, by agreement in writing entered into with the Chief Magistrate, undertake the duties of a judicial registrar on a part-time basis.
- (7) A judicial registrar is eligible for re-appointment in accordance with this section if the Chief Magistrate recommends to the Attorney-General that the person be re-appointed.
- (8) The **Public Administration Act 2004** does not apply to a judicial registrar in respect of the office of judicial registrar.

S. 16C(4)(a)
substituted by
No. 19/2005
s. 6,
amended by
No. 17/2014
s. 160(Sch. 2
item 59.3).

S. 16C(7)
amended by
No. 62/2014
s. 91.

16D Terms and conditions of appointment

S. 16D
inserted by
No. 19/2005
s. 5.

S. 16D(1)
amended by
No. 29/2015
s. 70(1).

- (1) A judicial registrar is entitled to the terms and conditions including remuneration and allowances that are fixed in respect of him or her from time to time by the Governor in Council.
- (2) Except with the approval of the Attorney-General, a judicial registrar must not engage in legal practice, undertake paid employment or conduct a business, trade or profession of any kind.
- (3) A judicial registrar must disclose to the Chief Magistrate in writing any direct or indirect pecuniary interest that he or she has or acquires that could conflict with the proper performance of the duties of the office of judicial registrar.
- (4) Despite any provision to the contrary made by or under any other Act, a person who has held the office of judicial registrar is entitled to have his or her service in that office taken into account in computing the period of service which entitles public officials (within the meaning of the **Public Administration Act 2004**) to be granted long service leave or other leave entitlements, whether his or her service in the office of judicial registrar is before or after any period of service as such a public official.

S. 16D(5)
inserted by
No. 29/2015
s. 70(2).

- (5) The following are to be paid out of the Consolidated Fund, which is appropriated to the necessary extent—
 - (a) the amounts (including the amount of any non-salary benefits) payable to or for any judicial registrar; and

- (b) premiums and other amounts payable under the **Workplace Injury Rehabilitation and Compensation Act 2013** in respect of any judicial registrar; and
 - (c) payroll tax payable under the **Payroll Tax Act 2007** in respect of wages paid or payable to any judicial registrar; and
 - (d) tax payable under the Fringe Benefits Tax Act 1986 of the Commonwealth in respect of fringe benefits provided to any judicial registrar; and
 - (e) superannuation contributions within the meaning of the **Payroll Tax Act 2007** payable in respect of any judicial registrar.
- (6) In this section, *non-salary benefits* has the same meaning as it has in clause 3(5) and (6) of Schedule 1A to the **Public Administration Act 2004**. S. 16D(6) inserted by No. 29/2015 s. 70(2).
- (7) Nothing in this section authorises the salary or the aggregate value of the allowances payable to a judicial registrar to be reduced. S. 16D(7) inserted by No. 62/2014 s. 92.

16DB Oath or affirmation of office

- (1) A judicial registrar must take an oath or affirmation of office in the prescribed form and manner.
- (2) Subsection (1) only applies to a person who is appointed or re-appointed as a judicial registrar on or after the commencement of section 93 of the **Courts Legislation Miscellaneous Amendments Act 2014**.
- (3) A failure by a person to take an oath or affirmation of office in accordance with this section does not invalidate anything done by that person as a judicial registrar.

S. 16DB inserted by No. 62/2014 s. 93.

S. 16E
inserted by
No. 19/2005
s. 5.

16E Resignation from office

A judicial registrar may resign from office by delivering to the Governor a signed letter of resignation.

Ss 16F–16H
inserted by
No. 19/2005
s. 5,
repealed by
No. 16/2016
s. 200.

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S. 16I
inserted by
No. 19/2005
s. 5,
amended by
No. 20/2022
s. 35.

16I Rules of Court

The Chief Magistrate together with one or more Deputy Chief Magistrates may jointly make rules of court for or with respect to—

- (a) the prescription of the proceedings or class of proceedings which may be dealt with by the Court constituted by a judicial registrar;
- (b) delegating to the judicial registrars all or any of the powers of the Court except the power—

S. 16(b)(i)
amended by
No. 48/2006
s. 42(Sch.
item 22.2).

- (i) to impose a sentence of imprisonment or of detention in a youth justice centre or youth residential centre; or

S. 16(b)(ii)
repealed by
No. 65/2011
s. 107(Sch.
item 8.1).

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| (iii) to make a drug and alcohol treatment order within the meaning of the Sentencing Act 1991 ; or | S. 16I(b)(iii) amended by No. 43/2020 s. 38. |
| (iv) to make a Court Secure Treatment Order within the meaning of the Sentencing Act 1991 ; or | S. 16I(b)(iv) amended by No. 69/2005 s. 28, substituted by No. 26//2014 s. 455(Sch. item 20.2). |
| (v) to hear and determine an appeal made to the Court; or | S. 16I(b)(v) amended by No. 65/2011 s. 107(Sch. item 8.2). |
| (vi) to make a community correction order within the meaning of the Sentencing Act 1991 ; | S. 16I(b)(vi) inserted by No. 65/2011 s. 107(Sch. item 8.3), amended by No. 62/2014 s. 94(a). |
| (c) reviews of, and appeals from, the court constituted by a judicial registrar. | S. 16I(c) inserted by No. 62/2014 s. 94(b). |

16J Performance of duties by judicial registrar

- (1) A judicial registrar must not hear, or continue to hear, a proceeding that the judicial registrar considers for any reason inappropriate for hearing and determination by the Court constituted by a judicial registrar and must make appropriate arrangements for the proceeding to be heard and determined by the Court constituted by a magistrate.
- (2) A judicial registrar, in the performance of his or her duties as a judicial registrar, is not subject to the direction or control of any person or body.

S. 16J inserted by No. 19/2005 s. 5.

S. 16J(4)
inserted by
No. 17/2023
s. 36.

S. 16K
inserted by
No. 19/2005
s. 5,
substituted by
No. 62/2014
s. 95.

(3) A judicial registrar has, in the performance of his or her duties as a judicial registrar, the same protection and immunity as a Judge of the Supreme Court has in the performance of his or her duties as a Judge.

(4) A judicial registrar has any of the powers, duties and functions of a registrar under this Act and any other Act or the Rules.

16K Appeal from or review of determination of Court constituted by judicial registrar

- (1) The rules may provide for appeals from or reviews of a determination of the Court constituted by a judicial registrar—
- (a) whether in respect of—
 - (i) the hearing and determination of any proceeding (whether criminal or civil); or
 - (ii) any interlocutory application; and
 - (b) whether in respect of specified kinds of application or proceeding or generally; and
 - (c) by specifying whether the procedure is by way of appeal or review or both; and
 - (d) by specifying the way in which the Court may be constituted for those appeals or reviews.
- (2) The powers in subsection (1) are in addition to and do not limit any power to make rules under section 16I.
- (3) Unless the rules otherwise provide, a determination of the Court constituted by a judicial registrar may be appealed from or reviewed—

- (a) on application of a party to the proceeding;
or
 - (b) on the Court's own motion.
- (4) If the rules do not provide for an appeal from or a review of a determination of the Court constituted by a judicial registrar, the determination is to be subject to a review or an appeal conducted—
- (a) by way of hearing de novo by the Court constituted by a magistrate; and
 - (b) otherwise in accordance with the rules, if any.

Part 3—Officers of the Court

17 Employment of principal registrar, registrars and deputy registrars

S. 17(1)
amended by
Nos 46/1998
s. 7(Sch. 1),
108/2004
s. 117(1)
(Sch. 3
item 118.2).

- (1) For the purposes of this Act and to assist in the administration of the Court there are to be employed under Part 3 of the **Public Administration Act 2004**—
- (a) a principal registrar; and
- (b) as many registrars and deputy registrars as are necessary.

S. 17(1A)(1B)
inserted by
No. 10/1999
s. 23,
amended by
No. 108/2004
s. 117(1)
(Sch. 3
item 118.2),
repealed by
No. 1/2014
s. 72.

* * * * *

S. 17(2)
amended by
No. 47/2014
s. 270(1).

- (2) The principal registrar, registrars and deputy registrars have the duties, powers and functions provided by this Act and the **Fines Reform Act 2014**, the regulations and the Rules.

S. 17(3)
amended by
No. 47/2014
s. 270(2).

- (3) The principal registrar may, by instrument, delegate to any registrar or class of registrars any function or power of the principal registrar under this Act and the **Fines Reform Act 2014**, the regulations or the Rules, except this power of delegation.
- (4) A deputy registrar may, subject to this Act, the regulations and the Rules and to any directions of a registrar, exercise any of the powers or perform any of the functions of a registrar.

17A Appointment of Aboriginal elders or respected persons

S. 17A
inserted by
No. 27/2002
s. 7.

(1) The Chief Executive Officer may appoint a person who is a member of the Aboriginal community as an Aboriginal elder or respected person for the purpose of performing functions in relation to the Koori Court Division of the Court as set out in this Act.

S. 17A(1)
amended by
No. 3/2016
s. 3(1).

(2) An Aboriginal elder or respected person holds office for the period, and on the terms and conditions, determined by the Chief Executive Officer and specified in the instrument of appointment.

S. 17A(2)
amended by
No. 3/2016
s. 3(1).

(3) An Aboriginal elder or respected person may resign from office by writing signed by him or her and delivered to the Chief Executive Officer.

S. 17A(3)
amended by
No. 3/2016
s. 3(1).

(4) In this section—

Chief Executive Officer means the Chief Executive Officer of Court Services Victoria appointed under section 22 of the **Court Services Victoria Act 2014**.

S. 17A(4)
inserted by
No. 3/2016
s. 3(2).

18 Register

(1) The principal registrar must cause a register to be kept of all the orders of the Court and of such other matters as are directed by this Act or the Rules to be entered in the register.

(2) An order made by the Court must be authenticated by the person who constituted the Court.

(3) Any person may, subject to any order made under Part 3 of the **Open Courts Act 2013** and on payment of the prescribed fee, inspect that part of the register that contains the final orders of the Court.

S. 18(3)
amended by
No. 58/2013
s. 49.

- (4) A party to a proceeding may inspect without charge that part of the register that relates to that proceeding.
- (5) A document purporting to be an extract from the register and purporting to be signed by a registrar who certifies that in his or her opinion the extract is a true extract from the register is admissible in evidence in any proceedings and, in the absence of evidence to the contrary, is proof of the matters appearing in the extract.

19 Offence to publish certain information concerning proceedings

A person must not, in the course of a business of publishing information concerning debtors, publish or cause to be published any information concerning the commencement of a proceeding for debt so as to identify the defendant before a final order is made in the proceeding.

Penalty: 100 penalty units.

S. 19A
inserted by
No. 51/2000
s. 5.

19A Recording of proceedings

The principal registrar must ensure that all proceedings in the Court are recorded in accordance with the Rules.

20 Process

- (1) Process may only be issued out of the Court by a registrar, except where otherwise provided by or under this or any other Act.
- (2) The principal registrar must, subject to the regulations, keep the original of all process issued out of the Court and must issue or cause to be issued as many copies as are necessary.

- (3) Process issued by a registrar may be recalled and cancelled by—
- (a) that registrar; or
 - (b) if that registrar is dead or has ceased to hold office or cannot be located, a magistrate.

21 Powers of registrar

- (1) A registrar has the following powers in addition to those conferred on him or her by this or any other Act or the Rules—

- (a) power to issue any process out of the Court;
- (b) power to administer an oath or affirmation; S. 21(1)(b)
amended by
No. 6/2018
s. 68(Sch. 2
item 81.1).
- (c) power to abridge or extend the bail of a person who has been granted bail in relation to a criminal proceeding; S. 21(1)(c)
substituted by
Nos 68/2009
s. 97(Sch.
item 82.24),
11/2021
s. 54(1)(a).
- (d) power to endorse a warrant to arrest in accordance with section 62;
- (e) power to sign any licence or certificate which the Court is authorised to issue;
- (f) power to hear and determine any application, and exercise any power or authority of the Court, under section 58, 59 or 60 of the **Supreme Court Act 1986**; S. 21(1)(f)
amended by
No. 53/2016
s. 109(a).
- (g) power to make a declaration under Division 4 of Part 7 of the **National Domestic Violence Order Scheme Act 2016**; S. 21(1)(g)
inserted by
No. 53/2016
s. 109(b),
amended by
No. 11/2021
s. 54(1)(b).

S. 21(1)(h)
inserted by
No. 11/2021
s. 54(1)(c).

(h) power to adjourn a criminal proceeding or a proceeding under the **Family Violence Protection Act 2008**, the **Personal Safety Intervention Orders Act 2010** or the **National Domestic Violence Order Scheme Act 2016**;

S. 21(1)(i)
inserted by
No. 11/2021
s. 54(1)(c).

(i) power to abridge or extend the adjournment of a criminal proceeding or a proceeding under the **Family Violence Protection Act 2008**, the **Personal Safety Intervention Orders Act 2010** or the **National Domestic Violence Order Scheme Act 2016**;

S. 21(1)(j)
inserted by
No. 11/2021
s. 54(1)(c).

(j) power to otherwise change the time or place at which a criminal proceeding or a proceeding under the **Family Violence Protection Act 2008**, the **Personal Safety Intervention Orders Act 2010** or the **National Domestic Violence Order Scheme Act 2016** is listed before the Court.

S. 21(2)
amended by
No. 11/2021
s. 54(2).

(2) Nothing in this section empowers a registrar to vary the amount or conditions of bail.

S. 21(3)
inserted by
No. 11/2021
s. 54(3).

(3) The power under subsection (1)(c) to abridge or extend the bail of a person may be exercised—
(a) at any time, including on the day on which the person's proceeding is listed before the Court; and
(b) either in the presence or absence of the person.

S. 21(4)
inserted by
No. 11/2021
s. 54(3).

(4) The powers under subsection (1)(h), (i) and (j) in respect of a proceeding may be exercised—
(a) at any time, including on the day on which the proceeding is listed before the Court; and
(b) either in the presence or absence of the parties.

- (5) The powers under subsection (1)(c), (h), (i) and (j) may be exercised—

S. 21(5)
inserted by
No. 11/2021
s. 54(3).

- (a) on the application of a party; or
(b) on the registrar's own initiative.

22 Fees

S. 22
amended by
No. 9/1995
s. 11(3)(a).

- (1) Subject to subsection (2), a registrar must demand and receive the prescribed fees.
- (2) Subject to the regulations or any power to waive, postpone, remit or refund a prescribed fee in a civil proceeding, the appropriate registrar may, having regard to the income, day to day living expenses, liabilities and assets of the person liable to pay the fee, waive payment of that fee if, in his or her opinion, the payment of that fee by that person would cause him or her financial hardship and, in that case, that prescribed fee is not payable.
- (3) Subsections (1) and (2) do not apply to fees payable to the sheriff.

S. 22(2)
inserted by
No. 9/1995
s. 11(3)(b),
amended by
No. 15/2018
s. 47.

S. 22(3)
inserted by
No. 64/1996
s. 32.

23 Extortion by and impersonation of court officials

The following persons are guilty of an offence and liable to a fine of not more than 20 penalty units or to imprisonment for a term of not more than 2 years or to both—

- (a) a court official who extorts, demands, takes or accepts from any person any unauthorised fee or reward;
- (b) a court official who pretends to be the holder of an office or position in or in relation to the Court which he or she does not hold;
- (c) any person who is not a court official and who pretends to be a court official.

S. 24
amended by
No. 64/2010
s. 64.

24 Protection of registrars

The principal registrar, a registrar and a deputy registrar have, in the performance of their duties in good faith, the same protection and immunity as a magistrate has in the performance of his or her duties as a magistrate.

Part 4—Warrants and criminal proceedings

Division 1—Jurisdiction

25 Extent of jurisdiction

(1) The Court has jurisdiction—

- (a) to hear and determine all summary offences;
and
- (b) to hear and determine all indictable offences
which may be heard and determined
summarily; and
- (c) to conduct committal proceedings into
indictable offences and either—

- (i) direct the accused to be tried and order
that the accused be remanded in
custody until trial or grant bail; or

S. 25(1)(c)(i)
amended by
No. 68/2009
s. 97(Sch.
item 82.25).

- (ii) discharge the accused under section
126(4) of the **Criminal Procedure
Act 2009**; and

S. 25(1)(c)(ii)
amended by
Nos 68/2009
s. 97(Sch.
item 82.25),
5/2025 s. 59.

- (d) to make orders to enforce the payment of all
fines which are, by any Act, directed to be
recovered in the Court or for the recovery of
which no provision is made.

(2) The jurisdiction given by subsection (1) is
additional to any other jurisdiction given to the
Court with respect to a criminal proceeding by or
under any Act other than this Act.

(3) In a particular case, the jurisdiction given by
subsection (1)(c) may be exercised concurrently
with the jurisdiction of the Children's Court to
conduct a committal proceeding if—

S. 25(3)
inserted by
No. 7/2009
s. 426 (as
amended by
No. 68/2009
ss 46(a), 54(l)).

S. 25(3)(b)(ii)
amended by
Nos 30/2010
s. 85, 63/2014
s. 5(2),
16/2020 s. 20,
54/2025 s. 25.

- (a) the charges against each accused could properly be joined in the same indictment; and
- (b) the accused who is a child—
 - (i) is of or over the age of 15 years at the time the proceeding against the child for the offence is commenced; and
 - (ii) is charged with murder, attempted murder, manslaughter, child homicide, homicide by firearm, a designated offence (within the meaning of section 516 of the **Children, Youth and Families Act 2005**) committed when the child was aged 15 years or over, an offence against section 197A of the **Crimes Act 1958** (arson causing death) or an offence against section 318 of the **Crimes Act 1958** (culpable driving causing death); and
- (c) the Court makes an order under subsection (4) in relation to the accused who is not a child and the Children's Court makes an order under section 516A(2) of the **Children, Youth and Families Act 2005** in relation to the accused who is a child.

S. 25(4)
inserted by
No. 7/2009
s. 426 (as
amended by
No. 68/2009
ss 46(b), 54(l)).

- (4) The Court may order that joint committal proceedings in relation to a particular accused are appropriate having regard to—
 - (a) the age of the child; and
 - (b) the effect on victims of the offence charged if the committal proceedings were not conducted jointly; and
 - (c) the estimated duration of the committal proceedings if conducted jointly; and

- (d) the number of witnesses that would be cross-examined by both accused; and
- (e) any other matter considered relevant.
- (5) The Court may make an order under subsection (4) on the application of a party or on its own motion.
- (6) Each party is entitled to be present and may address the Court when the Court is considering the making of an order under subsection (4).
- (7) If the Court makes an order under subsection (4), the Court may adjourn the proceeding for a period not exceeding 28 days to enable the Children's Court to determine whether joint committal proceedings are appropriate in the particular case.
- (8) If joint committal proceedings are conducted under subsection (3)—
- (a) the **Children, Youth and Families Act 2005** applies as far as practicable to the child; and
- (b) the **Criminal Procedure Act 2009** applies as far as practicable to the other accused—
- with any necessary modifications to ensure that the joint committal proceedings are conducted fairly and efficiently.
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S. 25(5)
inserted by
No. 7/2009
s. 426 (as
amended by
No. 68/2009
s. 54(l)).

S. 25(6)
inserted by
No. 7/2009
s. 426 (as
amended by
No. 68/2009
s. 54(l)).

S. 25(7)
inserted by
No. 7/2009
s. 426 (as
amended by
No. 68/2009
s. 54(l)).

S. 25(8)
inserted by
No. 7/2009
s. 426 (as
amended by
No. 68/2009
ss 46(c), 54(l)).

Pt 4 Div. 2
(Heading)
repealed by
No. 7/2009
s. 427(1)(c) (as
amended by
No. 68/2009
s. 54(m)).

Magistrates' Court Act 1989
No. 51 of 1989
Part 4—Warrants and criminal proceedings

Pt 4 Div. 2 Subdiv. 1 (Heading) repealed by No. 7/2009 s. 427(1)(c) (as amended by No. 68/2009 s. 54(m)).	*	*	*	*	*
S. 26 amended by Nos 34/1990 s. 4(Sch. 3 item 3), 33/1994 s. 6(1)(2), 35/2002 s. 12, 50/2006 s. 15(1)–(3), repealed by No. 7/2009 s. 427(1)(c) (as amended by No. 68/2009 s. 54(m)).	*	*	*	*	*
S. 27 repealed by No. 7/2009 s. 427(1)(c) (as amended by No. 68/2009 s. 54(m)).	*	*	*	*	*
S. 28 amended by Nos 33/1994 s. 6(3), 50/2006 s. 15(4), repealed by No. 7/2009 s. 427(1)(c) (as amended by No. 68/2009 s. 54(m)).	*	*	*	*	*

Division 2—Procedure

Pt 4 Div. 2
(Heading)
inserted by
No. 68/2009
s. 97(Sch.
item 82.26).

29 Magistrate may exercise registrar's powers

A magistrate may exercise any of the powers of a registrar for the purpose of issuing criminal process.

*	*	*	*	*	S. 30 amended by Nos 33/1994 s. 7, 64/1996 s. 33, 35/2002 s. 13, 50/2006 s. 16, 8/2008, s. 14, repealed by No. 7/2009 s. 427(1)(c) (as amended by No. 68/2009 s. 54(m)).
*	*	*	*	*	Ss 31, 32 repealed by No. 7/2009 s. 427(1)(c) (as amended by No. 68/2009 s. 54(m)).
*	*	*	*	*	S. 33 amended by No. 50/2006 s. 17, repealed by No. 7/2009 s. 427(1)(c) (as amended by No. 68/2009 s. 54(m)).

Magistrates' Court Act 1989
No. 51 of 1989
Part 4—Warrants and criminal proceedings

S. 34 amended by Nos 92/2000 s. 4(1), 44/2001 s. 3(Sch. item 77.1), repealed by No. 7/2009 s. 427(1)(c) (as amended by No. 68/2009 s. 54(m)).	*	*	*	*	*
S. 35 amended by No. 92/2000 s. 4(2), repealed by No. 7/2009 s. 427(1)(c) (as amended by No. 68/2009 s. 54(m)).	*	*	*	*	*
S. 36 amended by No. 50/2006 s. 18, repealed by No. 7/2009 s. 427(1)(c) (as amended by No. 68/2009 s. 54(m)).	*	*	*	*	*
S. 37 amended by No. 108/2003 s. 22(1), repealed by No. 7/2009 s. 427(1)(c) (as amended by No. 68/2009 s. 54(m)).	*	*	*	*	*

Magistrates' Court Act 1989
No. 51 of 1989
Part 4—Warrants and criminal proceedings

*	*	*	*	*	S. 37A inserted by No. 35/2002 s. 14, repealed by No. 7/2009 s. 427(1)(c) (as amended by No. 68/2009 s. 54(m)).
*	*	*	*	*	S. 38 amended by Nos 35/1996 s. 453(Sch. 1 item 53.3), 69/1997 s. 26(1), 32/2006 s. 88(1), 50/2006 s. 19, 87/2009 s. 60(2), repealed by No. 7/2009 s. 427(1)(c) (as amended by No. 68/2009 s. 54(m)).
*	*	*	*	*	S. 38A inserted by No. 50/2006 s. 20, repealed by No. 7/2009 s. 427(1)(c) (as amended by No. 68/2009 s. 54(m)).
*	*	*	*	*	Ss 39, 40 repealed by No. 7/2009 s. 427(1)(c) (as amended by No. 68/2009 s. 54(m)).

Magistrates' Court Act 1989
No. 51 of 1989
Part 4—Warrants and criminal proceedings

S. 41
amended by
Nos 34/1990
s. 4(Sch. 3
item 4),
35/2002 s. 15,
50/2006
s. 21(1)(2),
repealed by
No. 7/2009
s. 427(1)(c) (as
amended by
No. 68/2009
s. 54(m)).

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S. 42
repealed by
No. 7/2009
s. 427(1)(c) (as
amended by
No. 68/2009
s. 54(m)).

* * * * *

43 Witness summonses

- (1) The Court or a registrar may issue the following witness summonses—
 - (a) summons to give evidence;
 - (b) summons to produce documents or things;
 - (c) summons to give evidence and produce documents or things.
- (2) Any party to a criminal proceeding in the Court may apply for the issue of a witness summons.
- (3) A witness summons may be directed to any person who appears to the Court or registrar issuing the summons to be likely—
 - (a) to be able to give material evidence for any party to the proceeding; or
 - (b) to have in the person's possession or control any documents or things which may be relevant on the hearing of the proceeding; or

- (c) both to be able to give material evidence and to have in the person's possession or control any relevant documents or things.
- (4) A witness summons must require the person to whom it is directed to attend at a specified venue of the Court on a certain date and at a certain time—
 - (a) to give evidence in the proceeding; or
 - (b) to produce for examination at the hearing any documents or things described in the summons that are in the person's possession or control; or
 - (c) both to give evidence and produce for examination any documents or things described in the summons that are in the person's possession or control.
- (5) A witness summons must be served a reasonable time before the day on which the proceeding is listed before the Court.
- (5A) A witness summons must be served by—
 - (a) giving a copy of the summons to the person to be served; or
 - (b) if the person does not accept the copy, putting the copy down in the person's presence and telling the person the nature of the summons; or
 - (c) leaving a copy of the summons for the person at the person's last known or usual place of residence or business with a person who appears to be of or over the age of 16 years.

S. 43(5)
substituted by
No. 68/2009
s. 97(Sch.
item 82.27).

S. 43(5A)
inserted by
No. 68/2009
s. 97(Sch.
item 82.27).

S. 43(5B)
inserted by
No. 68/2009
s. 97(Sch.
item 82.27).

- (5B) If the person to be served is a company or registered body (within the meaning of the Corporations Act), a witness summons may be served on the company or body in accordance with section 109X or 601CX of that Act, as the case requires.
- (6) A person to whom a witness summons is directed is, subject to subsection (7), excused from complying with the summons unless conduct money is given or tendered to the person at the time of service of the summons or a reasonable time before the return date.
- (7) It is not necessary to give or tender conduct money to a person to whom a witness summons is directed if the person will not reasonably incur any expenses in complying with the summons.
- (8) The Court may direct that a witness who has attended before the Court in answer to a witness summons is entitled to receive from the party who applied for the issue of the witness summons further conduct money for each day of attendance.
- (9) Nothing in this section—

* * * *

S. 43(9)(a)
repealed by
No. 69/2009
s. 54(Sch. Pt 1
item 34.3).

- (b) derogates from the power of the Court to certify that a witness be paid his or her expenses of attending before the Court.

44 Production before date for attendance

- (1) Unless the Court or the registrar issuing the summons otherwise directs, a summons to produce documents or things or a summons to give evidence and produce documents or things permits the person to whom the summons is directed, instead of producing the document or

thing at the hearing, to produce it, together with a copy of the summons, to the appropriate registrar not later than 2 days before the first day on which production is required.

- (2) If a document or thing is produced to the appropriate registrar under subsection (1), he or she must—
 - (a) if requested to do so, give a receipt to the person producing the document or thing; and
 - (b) produce the document or thing as the Court directs.
- (3) The production of a document or thing to the appropriate registrar under subsection (1) in answer to a summons to give evidence and produce documents or things does not remove the requirement on the person to whom the summons is directed to attend for the purpose of giving evidence.

45 Attendance of witnesses on adjournment

S. 45
amended by
No. 11/2021
s. 55 (ILA
s. 39B(1)).

- (1) A person whose attendance before the Court in a criminal proceeding has been required by witness summons must—
 - (a) subject to section 43(6), attend at the time and place specified in the summons; and
 - (b) if the proceeding is adjourned, attend at the time and place to which the proceeding has been adjourned, without the issue of a further summons—

until excused by the Court.

- (2) A witness is not required to attend court on the date and time specified in a witness summons under subsection (1)(a), if the criminal proceeding is adjourned prior to the date and time specified in that summons.

S. 45(2)
inserted by
No. 11/2021
s. 55.

Magistrates' Court Act 1989
No. 51 of 1989
Part 4—Warrants and criminal proceedings

S. 46 amended by No. 35/1996 s. 453(Sch. 1 item 53.3), repealed by No. 7/2009 s. 427(1)(c) (as amended by No. 68/2009 s. 54(m)).	*	*	*	*	*
S. 47 amended by No. 35/1996 s. 453(Sch. 1 items 53.3, 53.4), repealed by No. 7/2009 s. 427(1)(c) (as amended by No. 68/2009 s. 54(m)).	*	*	*	*	*
S. 48 repealed by No. 7/2009 s. 427(1)(c) (as amended by No. 68/2009 s. 54(m)).	*	*	*	*	*
S. 49 amended by Nos 46/1998 s. 7(Sch. 1) (as amended by No. 12/1999 s. 3(Sch. 1 item 19)), 48/2006 s. 42(Sch. items 22.3, 22.4), repealed by No. 7/2009 s. 427(1)(c) (as amended by No. 68/2009 s. 54(m)).	*	*	*	*	*

50 Power to amend where there is a defect or error

- (1) On the hearing of a proceeding the Court must not allow an objection to a warrant on account of any defect or error in it in substance or in form or for any variance between it and the evidence presented in the proceeding but the Court may amend the warrant to correct the defect or error.
- (2) An order must not be set aside or quashed only because of a defect or error in form but the Court may amend the order to correct the defect or error.

S. 50(1)
amended by
No. 7/2009
s. 427(1)(e) (as
amended by
No. 68/2009
s. 54(m)).

* * * * *

S. 50A
inserted by
No. 8/2008
s. 5,
repealed by
No. 7/2009
s. 427(1)(c) (as
amended by
No. 68/2009
s. 54(m)).

* * * * *

Pt 4 Div. 2
Subdiv. 2
(Heading)
repealed by
No. 7/2009
s. 427(1)(c) (as
amended by
No. 68/2009
s. 54(m)).

* * * * *

S. 51
amended by
No. 33/1994
s. 27(1),
repealed by
No. 7/2009
s. 427(1)(c) (as
amended by
No. 68/2009
s. 54(m)).

* * * * *

S. 52
substituted by
No. 33/1994
s. 8,
repealed by
No. 63/2014
s. 7(14).

Magistrates' Court Act 1989
No. 51 of 1989
Part 4—Warrants and criminal proceedings

Pt 4 Div. 2
Subdiv. 3
(Heading and
ss 53-55)
amended by
Nos 49/1991
s. 119(5)(6),
48/1997
s. 65(1)(2),
69/1997 s. 27,
50/2006
ss 22(1)(2), 23,
repealed by
No. 7/2009
s. 427(1)(c) (as
amended by
No. 68/2009
s. 54(m)).

* * * *

Pt 4 Div. 2
Subdiv. 4
(Heading and
s. 56)
amended by
Nos 64/1990
s. 20(Sch.
item 4.2),
43/1994
s. 56(Sch.
item 3.1),
10/1999
ss 5, 8(2)(3),
92/2000
ss 5, 6,
48/2006
s. 42(Sch.
item 22.4),
50/2006
ss 24, 25,
repealed by
No. 7/2009
s. 427(1)(c) (as
amended by
No. 68/2009
s. 54(m)).

* * * *

Division 3—Warrants

Subdivision 1—General

57 Warrants

(1) The following warrants may be issued—

- (a) warrant to arrest;
- (b) remand warrant;
- (c) search warrant;
- (d) warrant to seize property;
- (e) warrant to imprison;
- (f) warrant to detain in a youth justice centre;

S. 57(1)(f)
amended by
No. 48/2006
s. 42(Sch.
item 22.4).

(g) enforcement warrant.

S. 57(1)(g)
inserted by
No. 33/1994
s. 9(1),
substituted by
No. 32/2006
s. 88(2),
amended by
No. 47/2014
s. 271.

(1AA) A warrant may be issued in paper form or electronically in accordance with this Division.

S. 57(1AA)
inserted by
No. 33/2018
s. 50(1).

(1A) A warrant may be issued electronically by the person issuing the warrant causing the warrant, or the prescribed particulars of the warrant, to be transmitted electronically to the person to whom the warrant is issued in accordance with the regulations, if any.

S. 57(1A)
inserted by
No. 3/2016
s. 4(1),
substituted by
No. 33/2018
s. 50(2).

S. 57(1B)
inserted by
No. 3/2016
s. 4(1).

- (1B) A warrant issued in accordance with subsection (1A)—
- (a) directs and authorises the person to whom it is issued to do all things that the person would have been directed or authorised to do if a warrant containing the particulars referred to in subsection (1A) had been issued in paper form under subsection (1) by the person issuing the warrant; and
 - (b) must not be amended, altered or varied after its issue, unless the amendment, alteration or variation is authorised by or under this Act or any other Act.
- (2) The person issuing a warrant must cause the prescribed particulars of the warrant to be entered in the register.
- (3) A warrant must name or otherwise describe the person or property against whom or which it is issued.
- (4) All warrants, other than a search warrant, may be issued by a registrar, a judicial registrar or a magistrate.
- (5) A search warrant may only be issued by a magistrate.
- (6) Remand warrants may be issued by a bail justice.
- (7) A judge of the Supreme Court or judge of the County Court may exercise any power conferred on a magistrate by or under this Act with respect to the issue, recall or cancellation of a warrant or duplicate copy of a warrant.

S. 57(4)
amended by
No. 33/2018
s. 50(3).

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| <p>(7A) The registrar of the County Court, the Prothonotary of the Supreme Court or the Registrar of Criminal Appeals, as the case requires, may issue a warrant to imprison in the circumstances set out in sections 263(4), 266(3A) and 267(1A) of the Criminal Procedure Act 2009.</p> | <p>S. 57(7A)
inserted by
No. 68/2009
s. 97(Sch.
item 82.28),
amended by
Nos 30/2010
s. 86(1),
48/2012
s. 39(1),
3/2016 s. 37,
1/2022 s. 19.</p> |
| <p>(7B) The registrar of the County Court, the Prothonotary of the Supreme Court or the Registrar of Criminal Appeals, as the case requires, may issue a warrant to detain in a youth justice centre or a youth residential centre in the circumstances set out in sections 430(4), 430C(5) and 430D(1A) of the Children, Youth and Families Act 2005.</p> | <p>S. 57(7B)
inserted by
No. 68/2009
s. 97(Sch.
item 82.28),
amended by
Nos 30/2010
s. 86(2),
48/2012
s. 39(2),
1/2022 s. 19.</p> |
| <p>(8) A warrant must be executed by the use of a copy of the warrant, known as the execution copy, or by the use of a copy of the execution copy, including a copy transmitted by facsimile machine or other means of electronic communication.</p> | <p>S. 57(8)
amended by
No. 3/2016
s. 4(2).</p> |
| <p>(9) The execution copy of a warrant must be in writing and, subject to subsection (1A), must be signed or otherwise authenticated by the person issuing it.</p> | <p>S. 57(9)
amended by
No. 3/2016
s. 4(3).</p> |
| <p>* * * *</p> | <p>S. 57(10)
repealed by
No. 38/2017
s. 71.</p> |

57A Warrants to arrest issued under Evidence Act 2008

The provisions of this Division relating to warrants to arrest extend and apply to a warrant to arrest issued under section 194 of the **Evidence Act 2008** except as otherwise provided in this Division.

S. 57A
inserted by
No. 69/2009
s. 54(Sch. Pt 1
item 34.4).

58 Recall and cancellation of warrant

S. 58(1)
amended by
No. 33/2018
s. 51(a).

- (1) A warrant issued by a registrar, judicial registrar, magistrate or bail justice may be recalled and cancelled by²—

S. 58(1)(a)
amended by
No. 33/2018
s. 51(b).

- (a) that registrar, judicial registrar, magistrate or bail justice; or

S. 58(1)(ab)
inserted by
No. 17/2023
s. 37.

- (ab) if issued by a judicial registrar, any other judicial registrar; or

S. 58(1)(b)
amended by
Nos 44/1997
s. 29, 12/2006
s. 169(d),
substituted by
No. 47/2014
s. 272(1).

- (b) if issued by a registrar, the registrar for the time being at the venue of the Court at which it was issued or, except in the case of an enforcement warrant issued under the **Fines Reform Act 2014**, any other registrar; or

- (c) a magistrate.

S. 58(1A)
inserted by
No. 70/1996
s. 4.

- (1A) If a warrant has been recalled and cancelled under subsection (1), a fresh warrant may be issued for the same purpose as that for which the recalled warrant was issued.

S. 58(2)
amended by
Nos 33/1994
s. 9(2),
70/1996
s. 5(1),
32/2006
s. 88(3),
48/2006
s. 42(Sch.
item 22.4),
47/2014
s. 272(2).

- (2) A warrant to imprison or detain in a youth justice centre for non-payment of a fine (whether issued before or after the commencement of this section) is null and void if it has not been executed within the period of 5 years after a warrant of that type was first issued against the person named in the warrant for the purpose specified in the warrant^{3,4,5}.

S. 58(2A)
inserted by
No. 70/1996
s. 5(2).

- (2A) If a warrant referred to in subsection (2) becomes null and void under that subsection, the fine in respect of which it was issued, together with any associated fees and costs, ceases to be enforceable

or recoverable if no part of the fine had been paid before the date on which the warrant became null and void.

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|---|--|
| (3) Nothing in subsection (2) or (2A) prevents the issue, with the leave of the Court, of a fresh warrant for the same purpose as that for which a warrant that has become null and void under subsection (2) was issued ⁶ . | S. 58(3)
amended by
No. 70/1996
s. 5(3). |
| (4) Despite subsection (2), if under subsection (3) a fresh warrant is issued, the fine in respect of which it was issued, together with any associated fees and costs, again becomes enforceable or recoverable as if there had been no cessation. | S. 58(4)
inserted by
No. 70/1996
s. 5(4). |

59 Duplicate warrants

- | | |
|--|---|
| (1) If the execution copy of a warrant issued by a registrar, judicial registrar, magistrate or bail justice is lost or destroyed before it is executed, a registrar, judicial registrar or magistrate may issue a duplicate execution copy if satisfied by evidence on oath or affirmation or by affidavit of the loss or destruction of the execution copy of the warrant. | S. 59(1)
amended by
Nos 6/2018
s. 68(Sch. 2
item 81.1),
33/2018
s. 52(a). |
| (2) A duplicate execution copy must bear on its face the word "Duplicate" and may be executed in all respects as if it were the execution copy of the warrant. | |
| (3) When a duplicate execution copy of a warrant is issued, the execution copy of the warrant becomes null and void and must, if located, be returned to the principal registrar. | |

S. 59(4)
amended by
Nos 48/2006
s. 42(Sch.
item 22.4),
56/2013
s. 30(1),
6/2018
s. 68(Sch. 2
item 81.1),
33/2018
s. 52(b).

- (4) If a person is in a prison, a police gaol or a youth justice centre in accordance with a warrant which has been executed, or having been released on parole from a prison, a police gaol or a youth justice centre is still under sentence, and the execution copy of the warrant is lost or destroyed, a registrar, judicial registrar or magistrate may issue a duplicate execution copy if satisfied by evidence on oath or affirmation or by affidavit of the loss or destruction of the execution copy.

S. 59(5)
amended by
Nos 45/2001
s. 43(a)(i)(ii),
48/2006
s. 42(Sch.
item 22.4),
56/2013
s. 30(2).

- (5) A duplicate execution copy issued under subsection (4) is sufficient authority for the person in whose legal custody the person is, or into whose legal custody the person is delivered, to keep the person in the prison, police gaol or youth justice centre until the end of the term specified in the warrant.

60 Effect of defect or error in certain warrants

S. 60(1)
amended by
Nos 33/1994
s. 9(3),
48/2006
s. 42(Sch.
item 22.4),
87/2009
s. 60(3),
47/2014 s. 273.

- (1) A warrant to imprison, a warrant to detain in a youth justice centre, a remand warrant, a warrant to seize property or an enforcement warrant⁷ is not void only because of a defect or error in it if there is a valid order supporting it.

S. 60(2)
amended by
Nos 33/1994
s. 9(4),
87/2009
s. 60(3),
47/2014 s. 273.

- (2) A person acting under a warrant to seize property or an enforcement warrant⁸ is not to be taken to be a trespasser from the beginning only because of a defect or error in it.

Subdivision 2—Warrant to arrest

61 Issue of warrant to arrest

- (1) A warrant to arrest in the first instance may be issued—

*	*	*	*	*	S. 61(1)(a) repealed by No. 68/2009 s. 97(Sch. item 82.29).
*	*	*	*	*	S. 61(1)(b) repealed by No. 69/2009 s. 54(Sch. Pt 1 item 34.5).

(c) as authorised by any other Act.

- (2) An application for a warrant to arrest in the first instance must be supported by evidence on oath or affirmation or by affidavit. S. 61(2)
amended by
No. 6/2018
s. 68(Sch. 2
item 81.1).
- (3) An affidavit supporting an application for a warrant to arrest in the first instance may be a copy of an affidavit transmitted by facsimile machine or other means of electronic communication. S. 61(3)
amended by
No. 3/2016
s. 5.
- | | | | | | |
|---|---|---|---|---|--|
| * | * | * | * | * | S. 61(4)
repealed by
No. 68/2009
s. 97(Sch.
item 82.30). |
|---|---|---|---|---|--|
- (5) A warrant to arrest other than in the first instance may be issued—
- | | | | | | |
|---|---|---|---|---|---|
| * | * | * | * | * | S. 61(5)(a)
repealed by
No. 68/2009
s. 97(Sch.
item 82.31). |
|---|---|---|---|---|---|

Magistrates' Court Act 1989
No. 51 of 1989
Part 4—Warrants and criminal proceedings

S. 61(5)(b)
repealed by
No. 69/2009
s. 54(Sch. Pt 1
item 34.5).

* * * *

S. 61(5)(c)
repealed by
No. 68/2009
s. 97(Sch.
item 82.31).

* * * *

(d) as authorised by this or any other Act.

- (6) A warrant to arrest other than in the first instance must include a statement of the reason for issuing the warrant.

Note to s. 61
inserted by
No. 69/2009
s. 54(Sch. Pt 1
item 34.6).

Note

Section 194 of the **Evidence Act 2008** provides for issuing warrants to arrest a witness who fails to appear.

62 Endorsing a warrant for bail

- (1) The person issuing a warrant to arrest against any person may endorse the warrant with a direction that that person must on arrest be released on bail as specified in the endorsement.
- (2) An endorsement under subsection (1) must fix the amounts in which the principal and the bail guarantors, if any, are to be bound and the amount of any money or the value of any security to be deposited.
- (3) This section does not apply in respect of a warrant authorised to be issued under section 194 of the **Evidence Act 2008**.

S. 62(2)
amended by
No. 28/2023
s. 70(2).

S. 62(3)
inserted by
No. 69/2009
s. 54(Sch. Pt 1
item 34.7).

63 Persons to whom warrant to arrest may be directed

(1) A warrant to arrest may be directed to—

(a) a named police officer; or

S. 63(1)(a)
amended by
No. 37/2014
s. 10(Sch.
item
101.2(a)(i)).

(b) generally all police officers; or

S. 63(1)(b)
amended by
No. 37/2014
s. 10(Sch.
item
101.2(a)(ii)).

(c) any other person authorised by law to
execute a warrant to arrest.

(2) A warrant to arrest directed to a named police
officer may be executed by any police officer.

S. 63(2)
substituted by
No. 43/2011
s. 35,
amended by
No. 37/2014
s. 10(Sch.
item 101.2(b)),
substituted by
No. 39/2019
s. 14(1).

(2A) A warrant to arrest directed to a named police
officer or to generally all police officers may be
executed by any protective services officer.

S. 63(2A)
inserted by
No. 39/2019
s. 14(1).

(3) If a protective services officer arrests a person
under subsection (2A), the protective services
officer must hand the person into the custody of a
police officer as soon as practicable after the
person is arrested.

S. 63(3)
inserted by
No. 43/2011
s. 35,
amended by
Nos 37/2014
s. 10(Sch.
item 101.2(b)),
39/2019
s. 14(2).

64 Authority conferred by warrant to arrest

- (1) A warrant to arrest authorises the person to whom it is directed—
- (a) to break, enter and search any place where the person named or described in the warrant is suspected to be; and
 - (b) to arrest the person named or described in the warrant.
- (2) The person to whom a warrant to arrest is directed must cause the person named or described in the warrant when arrested—
- (a) to be brought before a bail justice or the Court within a reasonable time of being arrested to be dealt with according to law; or
 - (b) to be released on bail in accordance with the endorsement on the warrant.

S. 64(2)(a)
amended by
No. 49/1990
s. 5(a).

Note to
s. 64(2)
inserted by
No. 26/2017
s. 24(1).

S. 64(3)
amended by
No. 26/2017
s. 24(2).

S. 64(4)
inserted by
No. 49/1990
s. 5(b).

S. 64(4A)
inserted by
No. 70/2010
s. 27(1).

Note

Section 10A or 12 of the **Bail Act 1977** applies on a person being brought before a bail justice or the Court at the expiration of the reasonable time referred to in subsection (2)(a).

- (3) A person arrested on a warrant to arrest may be discharged from custody on bail in accordance with the **Bail Act 1977**.
- (4) In determining what constitutes a reasonable time for the purposes of subsection (2)(a) the matters specified in section 464A(4) of the **Crimes Act 1958** may be considered.
- (4A) If a person is brought before a bail justice or the Court in accordance with subsection (2)(a), the bail justice or the Court is not bound by the endorsement on the warrant when determining any matter in relation to bail.

- (5) Subsections (2), (3), (4) and (4A) do not apply in respect of a warrant authorised to be issued under section 194 of the **Evidence Act 2008**.

S. 64(5)
inserted by
No. 69/2009
s. 54(Sch. Pt 1
item 34.8),
amended by
No. 70/2010
s. 27(2).

65 Arrest of person against whom warrant to arrest is issued

- (1) If a warrant to arrest a person who is an accused to a charge has been issued, any police officer, or any protective services officer on duty at a designated place, may arrest the person although the execution copy of the warrant is not at the time in the police officer's or protective services officer's possession.
- (1A) If a protective services officer arrests a person under subsection (1), the protective services officer must hand the person into the custody of a police officer as soon as practicable after the person is arrested.
- (1B) A protective services officer may only exercise the power to arrest under this section in relation to a person who is at, or in the vicinity of, a designated place.
- (2) On the arrest of a person under subsection (1) by a police officer or on the handing of a person arrested by a protective services officer into the custody of a police officer under subsection (1A), the police officer must bring the person arrested before a bail justice or the Court within a reasonable time of being arrested or handed into the custody of the police officer (as the case may be) and the bail justice or the Court may—

S. 65(1)
amended by
Nos 68/2009
s. 97(Sch.
item 82.32),
43/2011
s. 36(1),
37/2014
s. 10(Sch.
item 101.3(a)).

S. 65(1A)
inserted by
No. 43/2011
s. 36(2),
amended by
No. 37/2014
s. 10(Sch.
item 101.3(b)).

S. 65(1B)
inserted by
No. 45/2017
s. 55.

S. 65(2)
amended by
Nos 49/1990
s. 5(c),
43/2011
s. 36(3),
37/2014
s. 10(Sch.
item 101.3(b)).

S. 65(2)(a)
amended by
No. 68/2009
s. 97(Sch.
item 82.33).

(a) if a fresh charge-sheet is filed to the effect of the offence or matter alleged in the warrant—

- (i) permit the person to go at large; or
- (ii) admit the person to bail; or
- (iii) in the case of the Court, hear and determine the proceeding for the offence; or

S. 65(2)(b)
amended by
No. 68/2009
s. 97(Sch.
item 82.33).

(b) if a fresh charge-sheet is not filed to the effect of the offence or matter alleged in the warrant—

- (i) permit the person to go at large; or
- (ii) admit the person to bail; or
- (iii) remand the person in custody for a reasonable time pending execution of the warrant.

(3) If a person has been arrested under subsection (1) and has been remanded in custody pending execution of the warrant and the warrant is not executed within a reasonable time, the Court must discharge the person from custody.

(4) If a warrant is executed by use of a copy other than the execution copy, the Court must—

(a) if satisfied that the copy is a true copy of the execution copy—

- (i) proceed as if the person had been arrested on the execution copy; and
- (ii) order that the execution copy be returned to the principal registrar; or

(b) if not so satisfied, discharge the person from custody.

- | | |
|---|---|
| (5) If a warrant is not executed and a fresh charge-sheet charging the offence alleged in the warrant is filed, the warrant is deemed to be void and of no effect and the Court must order its return to the principal registrar. | S. 65(5)
amended by
No. 68/2009
s. 97(Sch.
item 82.34). |
| (6) In determining what constitutes a reasonable time for the purposes of subsection (2) the matters specified in section 464A(4) of the Crimes Act 1958 may be considered. | S. 65(6)
amended by
No. 49/1990
s. 5(d). |
| * * * * * | S. 66
repealed by
No. 7/2009
s. 427(1)(f) (as
amended by
No. 68/2009
s. 54(m)). |
| * * * * * | S. 67
amended by
Nos 45/2001
s. 43(b),
48/2006
s. 42(Sch.
item 22.4),
repealed by
No. 7/2009
s. 427(1)(f) (as
amended by
No. 68/2009
s. 54(m)). |

Subdivision 3—Warrant to imprison

68 Issue of warrant to imprison

A warrant to imprison may be issued if—

- (a) the Court orders that a person be sentenced to a term of imprisonment; or
- (b) the Court orders that a person be sentenced to a term of imprisonment in default of payment of a fine or of any instalment under an instalment order; or
- (c) authorised by any other Act.

69 Persons to whom warrant to imprison may be directed

(1) A warrant to imprison may be directed to—

S. 69(1)(a)
amended by
No. 37/2014
s. 10(Sch.
item
101.4(a)(i)).

(a) a named police officer; or

S. 69(1)(b)
amended by
No. 37/2014
s. 10(Sch.
item
101.4(a)(ii)).

(b) generally all police officers; or

S. 69(1)(ba)
inserted by
No. 34/1990
s. 4(Sch. 3
item 5).

(ba) the sheriff; or

S. 69(1)(bb)
inserted by
No. 34/1990
s. 4(Sch. 3
item 5).

(bb) generally all prison officers; or

(c) any other person authorised by law to
execute a warrant to imprison.

S. 69(2)
amended by
No. 37/2014
s. 10(Sch.
item 101.4(b)).

(2) A warrant to imprison directed to a named police officer may be executed by any police officer.

S. 69(3)
inserted by
No. 34/1990
s. 4(Sch. 3
item 6),
amended by
No. 37/2014
s. 10(Sch.
item 101.4(c)).

(3) A warrant to imprison directed to a named police officer or to generally all police officers may be executed by any prison officer.

(3A) A warrant to imprison under section 68(b) to be directed to the sheriff may be issued, not in paper form, but by a magistrate or registrar signing a document containing the following particulars in relation to persons against whom a warrant is to be issued under that section and causing those particulars to be transferred electronically to the sheriff in accordance with the regulations, if any—

S. 69(3A)
inserted by
No. 69/1997
s. 28(1).

- (a) the name of the person in default;
- (b) the type of warrant;
- (c) the amount of the fine or instalment remaining unpaid;
- (d) the period for which, or the circumstances in which, the person in default is to be kept in custody under the warrant;
- (e) the date of issue of the warrant;
- (f) the name of the magistrate or registrar signing the document;
- (g) any other particulars that are prescribed.

(3B) A warrant issued in accordance with subsection (3A)—

S. 69(3B)
inserted by
No. 69/1997
s. 28(1).

- (a) directs and authorises the sheriff to do all things that he or she would have been directed and authorised to do if a warrant containing the particulars referred to in subsection (3A) and directed to the sheriff had been issued in paper form under section 68(b) by the magistrate or registrar;
- (b) must not be amended, altered or varied after its issue, unless the amendment, alteration or variation is authorised by or under this or any other Act.

S. 69(4)
inserted by
No. 34/1990
s. 4(Sch. 3
item 6).

- (4) Subsections (4) to (7) of section 111 apply to a warrant to imprison directed to the sheriff under this Subdivision in the same manner as they apply to a warrant to seize property directed to the sheriff in a civil proceeding.

70 Directions in, and authority of, warrant to imprison

A warrant to imprison—

- (a) authorises the person to whom it is directed to break, enter and search any place where the person named in the warrant is suspected to be; and
- (b) directs and authorises the person to whom it is directed to take and safely convey the person named in the warrant—
 - (i) to a prison; or
 - (ii) if the warrant is issued under section 68(b), either to a prison or a police gaol;

S. 70(b)(ii)
amended by
No. 74/2000
s. 3(Sch. 1
item 75).

S. 70(b)(iii)
repealed by
No. 33/1994
s. 9(5).

* * * * *

and there to deliver the person to the officer in charge of the prison or police gaol; and

S. 70(c)
amended by
No. 45/1996
s. 18(Sch. 2
item 9.1).

- (c) directs and authorises the Secretary to the Department of Justice or the Chief Commissioner of Police (as the case requires) or any other person into whose custody the person named in the warrant is transferred to receive that person into custody and safely keep that person—

- (i) for the period specified, or in the circumstances described, in the warrant; or
- (ii) until that person is otherwise removed or discharged from custody by due course of law.

71 Reduction of imprisonment by payment of portion of fine

- (1) If before the issue of a warrant to imprison for non-payment of a fine, it appears to the person issuing the warrant that part of the fine has been paid—
 - (a) the reduction in the amount of the fine payable must be stated in the warrant to imprison; and
 - (b) the term for which the person fined may be imprisoned must be reduced by the number of days bearing as nearly as possible the same proportion to the total number of days in the term as the amount paid bears to the whole amount of the fine.
- (2) Subsection (1) applies despite any provision (except section 26) of the **Imprisonment of Fraudulent Debtors Act 1958** to the contrary.
- (3) If after the issue but before the execution of a warrant to imprison for non-payment of a fine, it appears to the Court that part of the fine has been paid, the Court must—
 - (a) amend the warrant; and
 - (b) recall the execution copy of the warrant and amend it—in accordance with subsection (1).

- (4) Despite any provision (except section 26) of the **Imprisonment of Fraudulent Debtors Act 1958** to the contrary or anything in any warrant to imprison, if a person is imprisoned for non-payment of a fine—
- (a) the whole or any part of the fine may be paid by or on behalf of that person to the officer in charge of the prison or police gaol in which that person is detained; and
 - (b) the officer in charge must receive the payment and forward it without delay to the principal registrar.
- (5) If—
- (a) the whole amount of the fine; or
 - (b) the amount remaining to be paid—
- is paid to the officer in charge of the prison or police gaol by or on behalf of the person imprisoned, the person imprisoned must be discharged if he or she is in custody for no other matter.
- (6) If part of the fine is paid to the officer in charge of the prison or police gaol by or on behalf of the person imprisoned—
- (a) the term of imprisonment for non-payment of the fine must be reduced having regard to the formula set out in subsection (1)(b); and
 - (b) the officer in charge must—
 - (i) amend the execution copy of the warrant; and
 - (ii) receive the payment and forward it without delay to the principal registrar; and

- (c) at the end of the reduced term, the person imprisoned must be discharged if he or she is in custody for no other matter.

72 Provisions extend to detention in youth justice centre

If a person is directed under Subdivision (4) of Division 2 of Part 3 of the **Sentencing Act 1991** or under the **Children, Youth and Families Act 2005** to be detained in a youth justice centre or a youth residential centre, the provisions of this Subdivision and of any regulations with respect to warrants to imprison extend and apply, with any necessary modifications, with respect to the issue and execution of a warrant to detain in a youth justice centre or a youth residential centre and with respect to any matter arising out of any such detention.

S. 72
(Heading)
inserted by
No. 48/2006
s. 42(Sch.
item 22.5).
S. 72
amended by
Nos 49/1991
s. 119(7)
(Sch. 4
item 13.2),
69/1992
s. 35(a)(b),
48/2006
s. 42(Sch.
item 22.6).

Subdivision 4—Warrant to seize property

73 Warrant to seize property

- (1) A warrant to seize property may be issued—

- (a) if the accused in a criminal proceeding in the Court fails to comply with an order for the payment of a fine or of any instalment under an instalment order; or
(b) as authorised by any other Act.

- (2) A warrant to seize property may be directed to—

- (a) a named police officer; or

S. 73(1)(a)
amended by
No. 68/2009
s. 97(Sch.
item 82.35).

S. 73(2)(a)
amended by
No. 37/2014
s. 10(Sch.
item
101.5(a)(i)).

Magistrates' Court Act 1989
No. 51 of 1989
Part 4—Warrants and criminal proceedings

S. 73(2)(b)
amended by
No. 37/2014
s. 10(Sch.
item
101.5(a)(ii)).

(b) generally all police officers; or

S. 73(2)(ba)
inserted by
No. 34/1990
s. 4(Sch. 3
item 7).

(ba) the sheriff; or

(c) any other person authorised by law to
execute a warrant to seize property.

S. 73(3)
amended by
No. 37/2014
s. 10(Sch.
item 101.5(b)).

(3) A warrant to seize property directed to a named
police officer may be executed by any police
officer.

S. 73(3AA)
inserted by
No. 69/1997
s. 28(2).

(3AA) A warrant to seize property under
subsection (1)(a) or section 98(7)(b) to be
directed to the sheriff (other than a warrant
referred to in subsection (3A)) may be issued, not
in paper form, but by a magistrate or registrar
signing a document containing the following
particulars in relation to persons against whom a
warrant is to be issued under subsection (1)(a)
or section 98(7)(b) and causing those particulars
to be transferred electronically to the sheriff in
accordance with the regulations, if any:

- (a) the name of the person in default;
- (b) the type of warrant;
- (c) the amount of the fine or instalment
remaining unpaid;
- (d) the date of issue of the warrant;
- (e) the name of the magistrate or registrar
signing the document;
- (f) any other particulars that are prescribed.

(3AB) A warrant issued in accordance with subsection (3AA)—

S. 73(3AB)
inserted by
No. 69/1997
s. 28(2).

- (a) directs and authorises the sheriff to do all things that he or she would have been directed and authorised to do if a warrant containing the particulars referred to in subsection (3AA) and directed to the sheriff had been issued in paper form under subsection (1)(a) or section 98(7)(b) by the magistrate or registrar;
- (b) must not be amended, altered or varied after its issue, unless the amendment, alteration or variation is authorised by or under this or any other Act.

* * * * *

S. 73(3A)(3B)
inserted by
No. 70/1996
s. 6,
repealed by
No. 12/2006
s. 169(e).

- (4) Subsections (4) to (7) of section 111 apply to a warrant to seize property directed to the sheriff under this Subdivision in the same manner as they apply to a warrant to seize property directed to the sheriff in a civil proceeding.

S. 73(4)
inserted by
No. 34/1990
s. 4(Sch. 3
item 8).

74 Authority conferred by warrant to seize property

A warrant to seize property directs and authorises the person to whom it is directed—

- (a) to seize the personal property of the person named or described in the warrant; and
- (b) if the sums named in the warrant together with all lawful costs of execution are not paid, to sell the personal property seized.

Subdivision 5—Search warrants

75 Search warrants

S. 75(2)
amended by
No. 6/2018
s. 68(Sch. 2
item 81.3).

- (1) A search warrant may be issued as authorised by any Act other than this Act.
- (2) An application for a search warrant must be supported by evidence on oath or by affirmation or by affidavit.

S. 75(3)
amended by
No. 3/2016
s. 6.

- (3) An affidavit supporting an application for a search warrant may be a copy of an affidavit transmitted by facsimile machine or other means of electronic communication.

76 Persons to whom search warrant may be directed

S. 76(1)(a)
amended by
No. 37/2014
s. 10(Sch.
item
101.6(a)(i)).

- (1) A search warrant may be directed to—
 - (a) a named police officer; or

S. 76(1)(b)
amended by
No. 37/2014
s. 10(Sch.
item
101.6(a)(ii)).

- (b) generally all police officers; or

- (c) any other person authorised by law to execute a search warrant.

S. 76(2)
amended by
No. 37/2014
s. 10(Sch.
item 101.6(b)).

- (2) A search warrant directed to a named police officer may be executed by any police officer.

77 Endorsing a warrant for bail

- (1) The person issuing a search warrant may endorse the warrant with a direction that any person arrested must be released on bail as specified in the endorsement.
- (2) An endorsement under subsection (1) must fix the amounts in which the principal and the bail guarantors, if any, are to be bound and the amount of any money or the value of any security to be deposited.

**S. 77(2)
amended by
No. 28/2023
s. 70(3).**

78 Authority conferred by search warrant

- (1) A search warrant authorises the person to whom it is directed—
 - (a) if the warrant is to search for a person—
 - (i) to break, enter and search any place where the person named or described in the warrant is suspected to be; and
 - (ii) to arrest the person named or described in the warrant; and
 - (b) if the warrant is to search for any thing—
 - (i) to break, enter and search any place or vehicle named or described in the warrant for any article, thing or material of any kind named or described in the warrant; and
 - (ii) to bring the article, thing or material before the Court so that the matter may be dealt with according to law; and
 - (iii) to arrest any person apparently having possession, custody or control of the article, thing or material.

**S. 78(1)(b)(i)
amended by
No. 25/2009
s. 18(1).**

S. 78(2)(a)
amended by
No. 49/1990
s. 5(e).

(2) The person to whom a search warrant is directed must cause the person named or described in the warrant, or apparently having possession, custody or control of any article, thing or material named or described in the warrant, when arrested—

- (a) to be brought before a bail justice or the Court within a reasonable time of being arrested to be dealt with according to law; or
- (b) to be released on bail in accordance with the endorsement on the warrant.

Note to
s. 78(2)
inserted by
No. 26/2017
s. 24(3).

Note

Section 10A or 12 of the **Bail Act 1977** applies on a person being brought before a bail justice or the Court at the expiration of the reasonable time referred to in subsection (2)(a).

S. 78(3)
amended by
No. 26/2017
s. 24(4).

(3) A person arrested on a search warrant may be discharged from custody on bail in accordance with the **Bail Act 1977**.

S. 78(4)
inserted by
No. 49/1990
s. 5(f).

(4) In determining what constitutes a reasonable time for the purposes of subsection (2)(a) the matters specified in section 464A(4) of the **Crimes Act 1958** may be considered.

S. 78(4A)
inserted by
No. 70/2010
s. 28.

(4A) If a person is brought before a bail justice or the Court in accordance with subsection (2)(a), the bail justice or the Court is not bound by the endorsement on the warrant when determining any matter in relation to bail.

S. 78(5)
inserted by
No. 71/1993
s. 5,
amended by
Nos 48/2012
s. 38, 6/2018
s. 68(Sch. 2
item 81.4).

(5) For the purposes of subsection (1)(b)(ii) an article, thing or material may be brought before the Court by giving evidence on oath or by affirmation to the Court as to the present whereabouts of the article, thing or material and by producing a photograph of it.

- (6) The Court may direct that any article, thing or material seized under a search warrant be returned to its owner, subject to any condition that the Court thinks fit, if in the opinion of the Court it can be returned consistently with the interests of justice. **S. 78(6) inserted by No. 71/1993 s. 5.**
- (7) In this section—
vehicle includes motor vehicle, aircraft and vessel. **S. 78(7) inserted by No. 25/2009 s. 18(2).**

Subdivision 6—Remand warrants

79 Remand warrants

- (1) A remand warrant may be issued—
- (a) if an accused who has been charged with an offence has been arrested under a warrant or otherwise and—
- (i) is refused bail; or
- (ii) has been granted bail but is unable to meet any bail condition imposed; or
- (b) if a witness is arrested under a warrant and the Court orders that the witness be remanded in custody until the giving of the evidence; or
- (c) if the Court orders an accused to be remanded in custody during the adjournment of any criminal proceeding; or **S. 79(1)(c) amended by No. 68/2009 s. 97(Sch. item 82.36(a)).**
- (d) if an accused has been committed to stand trial and—
- (i) is refused bail; or **S. 79(1)(d) amended by No. 68/2009 s. 97(Sch. item 82.36(a)).**
- (ii) has been granted bail but is unable to meet any bail condition imposed; or

S. 79(1)(d)(iii)
amended by
Nos 46/1998
s. 7(Sch. 1) (as
amended by
No. 12/1999
s. 3(Sch. 1
item 19)),
68/2009
s. 97(Sch.
item 82.36(b)).

(iii) is returned to the custody of the
Secretary to the Department of Human
Services under section 333(1)(c) of the
Criminal Procedure Act 2009; or

(e) as authorised by any other Act.

S. 79(2)
amended by
No. 68/2009
s. 97(Sch.
item 82.37).

(2) If an accused is remanded in custody on two or
more charges to be heard by the same court at the
same time and place, the Court may issue one
remand warrant in respect of all the charges.

80 Persons to whom remand warrant may be directed

(1) A remand warrant may be directed to—

S. 80(1)(a)
amended by
No. 37/2014
s. 10(Sch.
item
101.7(a)(i)).

(a) a named police officer; or

S. 80(1)(b)
amended by
No. 37/2014
s. 10(Sch.
item
101.7(a)(ii)).

(b) generally all police officers; or

S. 80(1)(ba)
inserted by
No. 34/1990
s. 4(Sch. 3
item 9).

(ba) generally all prison officers; or

(c) any other person authorised by law to
execute a remand warrant.

S. 80(2)
amended by
No. 37/2014
s. 10(Sch.
item 101.7(b)).

(2) A remand warrant directed to a named police
officer may be executed by any police officer.

- (3) A remand warrant directed to a named police officer or to generally all police officers may be executed by any prison officer.

S. 80(3)
inserted by
No. 34/1990
s. 4(Sch. 3
item 10),
amended by
No. 37/2014
s. 10(Sch.
item 101.7(c)).

81 Directions in, and authority of, remand warrant

A remand warrant—

- (a) directs and authorises the person to whom it is directed to take and safely convey the person named in the warrant—

S. 81(a)
amended by
Nos 33/1994
s. 10(1)(a)(ii),
46/1998
s. 7(Sch. 1).

(i) to a prison; or

(ii) to a police gaol; or

S. 81(a)(ii)
amended by
No. 33/1994
s. 10(1)(a)(i).

- (iii) if the Court has given a direction under section 333(1)(c) of the **Criminal Procedure Act 2009**, to a youth justice centre—

S. 81(a)(iii)
inserted by
No. 33/1994
s. 10(1)(a)(i),
amended by
Nos 48/2006
s. 42(Sch.
item 22.7),
68/2009
s. 97(Sch.
item 82.38).

and there to deliver the person to the officer in charge of the prison or police gaol or into the custody of the Secretary to the Department of Human Services (as the case requires); and

S. 81(b)
amended by
Nos 33/1994
s. 10(1)(b),
45/1996
s. 18(Sch. 2
item 9.2),
46/1998
s. 7(Sch. 1).

- (b) directs and authorises the Secretary to the Department of Justice or the Chief Commissioner of Police or the Secretary to the Department of Human Services (as the case requires) or any other person into whose custody the person named in the warrant is transferred to receive that person into custody and safely keep that person—
 - (i) for the period specified, or in the circumstances described, in the warrant; or
 - (ii) until that person is otherwise removed or discharged from custody by due course by law.

82 Remand of more than 8 clear days

S. 82(1)
amended by
No. 68/2009
s. 97(Sch.
item 82.39).

- (1) The Court must not remand an accused in custody for a period of more than 8 clear days unless both the accused and the informant consent.

S. 82(2)
amended by
Nos 33/1994
s. 10(2),
45/1996
s. 18(Sch. 2
item 9.3),
4/1997 s. 8(1),
46/1998
s. 7(Sch. 1),
68/2009
s. 97(Sch.
item 82.40),
69/2009
s. 54(Sch. Pt 2
item 32),
38/2016
s. 10(1).

- (2) If an accused⁹—
 - (a) has been granted bail; and
 - (b) has consented to an adjournment of the proceeding for a period of more than 8 clear days; and
 - (c) has not yet been released on bail—the remand warrant must direct the Secretary to the Department of Justice or the Chief Commissioner of Police or the Secretary to the Department of Human Services (as the case requires) or any other person into whose custody the accused is transferred to bring the accused at the end of 8 clear days (unless in the meantime he or she is released on bail) before the Court.

- (3) For the purposes of subsection (2), the accused must be brought—
- (a) before the Court as authorised or required under Division 3 of Part IIA of the **Evidence (Miscellaneous Provisions) Act 1958**; or
- (b) before the venue of the Court prescribed for the purposes of this section.

S. 82(3)
inserted by
No. 38/2016
s. 10(2).

* * * * *

Pt 4 Div. 3
Subdiv. 7
(Heading and
ss 82A–82F)
inserted by
No. 33/1994
s. 11(1),
amended by
Nos 45/1996
s. 18(Sch. 2
item 9.4),
70/1996 s. 7,
84/1997 s. 52,
99/2000 s. 3,
3/2005 s. 26,
repealed by
No. 12/2006
s. 176(1).

Subdivision 8—Special powers of the sheriff in executing warrants

Pt 4 Div. 3
Subdiv. 8
(Heading and
ss 82G–82I)
inserted by
No. 99/2000
s. 4.

* * * * *

S. 82G
inserted by
No. 99/2000
s. 4,
repealed by
No. 9/2009
s. 73.

* * * * *

S. 82H
inserted by
No. 99/2000
s. 4,
repealed by
No. 9/2009
s. 74.

82I Power to assist police at road checks

S. 82I
inserted by
No. 99/2000
s. 4.

S. 82I(1)
amended by
Nos 30/2013
s. 60(Sch.
item 7),
37/2014
s. 10(Sch.
item 101.8).

S. 82I(2)
amended by
Nos 9/2009
s. 75(1),
37/2014
s. 10(Sch.
item 101.8).

(1) This section applies if a police officer exercising a power conferred (whether directly or by implication) by the **Road Safety Act 1986** or the Heavy Vehicle National Law (Victoria) requests or signals the driver of a motor vehicle to stop the vehicle.

(2) Once the vehicle has stopped, the police officer or any person who is a bailiff for the purposes of the **Supreme Court Act 1986** (other than a bailiff who is a sheriff's officer) may direct the driver of the vehicle—

- (a) to keep the vehicle stationary;
- (b) to drive the vehicle to a designated spot;
- (c) to produce his or her driver licence document or permit document;
- (d) to comply with any other reasonable direction—

to enable a determination of whether the driver, or any person accompanying the driver, is named in any warrant.

Note to
s. 82I(2)
inserted by
No. 9/2009
s. 75(2).

Note

See section 30 of the **Sheriff Act 2009** for the power of the sheriff, and by delegation, sheriff's officers, at police road checks.

(3) A person who is given a direction under subsection (2) must comply with the direction unless he or she has a reasonable excuse for not doing so.

Penalty: 5 penalty units.

Magistrates' Court Act 1989
No. 51 of 1989
Part 4—Warrants and criminal proceedings

*	*	*	*	*	Pt 4 Div. 4 (Headings and ss 83–92) amended by Nos 49/1991 s. 119(7)(Sch. 4 items 13.3, 13.4), 33/1994 s. 12, 109/1994 s. 33, 64/1996 s. 34, 70/1996 s. 14(a), 48/1997 s. 66(1)(2), 69/1997 s. 29, 10/1999 ss 9–12, 48/2006 s. 42(Sch. item 22.7), repealed by No. 7/2009 s. 427(1)(d) (as amended by No. 68/2009 s. 54(m)).
*	*	*	*	*	Pt 4 Div. 5 (Heading and ss 93–96) amended by No. 33/1994 s. 13, 50/2006 s. 21(3), repealed by No. 7/2009 s. 427(1)(d) (as amended by No. 68/2009 s. 54(m)).

Division 6—Enforcement

Subdivision 1—Ordinary enforcement provisions

97 Imprisonment in default of payment of fine

- (1) If the Court makes an order in a proceeding imposing a fine and the person fined is not present when the order is made—

- (a) the principal registrar must cause to be sent by post to the person fined, at the address appearing on the charge-sheet or any later address notified to the Court by that person, a notice advising of the order imposing the fine; and
- (b) the fine is payable—
 - (i) within 21 days after the posting to that person of a notice under paragraph (a); or
 - (ii) within such longer period as is ordered by the Court under a time to pay order within the meaning of the **Sentencing Act 1991**.

S. 97(1)(b)(ii)
amended by
Nos 49/1991
s. 119(7)
(Sch. 4
item 13.5),
32/2013 s. 55.

S. 97(2)
repealed by
No. 49/1991
s. 119(7)
(Sch. 4
item 13.6).

* * * * *

- (3) If in any proceeding the Court orders a corporation to pay a fine then, despite anything in this or any other Act, that order may be enforced by a warrant to seize property.

98 Enforcement of fines against corporations

- (1) In this section—

director, in relation to a body corporate, includes any person occupying the position of director of the body corporate (by whatever name called) and includes a person in accordance with whose directions or instructions the directors of the body corporate are accustomed to act;

reciprocating court means a court of a reciprocating State or Territory declared by proclamation under this section to be a reciprocating court;

reciprocating State or Territory means another State or a Territory of the Commonwealth that is declared by proclamation under this section to be a reciprocating State or Territory.

- (2) The Governor in Council may, subject to subsection (3), declare another State or a Territory of the Commonwealth to be a reciprocating State or Territory for the purposes of the enforcement against a body corporate in Victoria of a fine payable under an order of a court having summary jurisdiction in the other State or in the Territory.
- (3) A State or Territory the subject of a proclamation under subsection (2) must have laws providing for enforcement against a body corporate in that State or Territory of a fine payable under an order of the Magistrates' Court or other court having summary jurisdiction in Victoria.
- (4) The Governor in Council may by proclamation declare a court having summary jurisdiction in a reciprocating State or Territory to be a reciprocating court for the purposes of the enforcement against a body corporate in Victoria of a fine payable under a conviction or order of that court.
- (5) For the purposes of subsection (4) a court may be declared singly or in conjunction with another or others by such description or class or by means of any reference that the Governor in Council thinks fit.

(6) If, under an order of a reciprocating court made in the exercise of its summary jurisdiction—

- (a) a fine is payable by a body corporate having or appearing to have property in Victoria; and
- (b) a registrar of the Magistrates' Court at a venue at or near to a place where the body corporate has or appears to have property, receives a request in writing from a registrar or other corresponding officer of the reciprocating court for the enforcement of the order accompanied by—
 - (i) a certified copy of the order; and
 - (ii) a certificate signed by the registrar or corresponding officer making the request certifying the amount of the fine outstanding under the order—

the registrar must register the order in the Magistrates' Court by filing in the Court a certified copy of the order and must note the date of registration on the copy.

(7) On the registration of an order under subsection (6)—

- (a) the order is deemed to be an order of the Magistrates' Court requiring payment by the body corporate of the amount of the fine referred to in the certificate under subsection (6) as outstanding; and
- (b) the registrar may issue a warrant to seize property of the body corporate for the purpose of recovering the amount of the fine; and
- (c) the warrant issued under paragraph (b) is deemed to be a warrant to seize property issued under this Act and the provisions of

this Act, with any necessary modifications, apply and extend to the enforcement of that warrant.

- (8) If the registrar receives, after the request for the enforcement of the order, a notification from the registrar or other corresponding officer of the reciprocating court of payment by or on behalf of the body corporate of the whole or part of the outstanding fine, the registrar must—
- (a) note the particulars of the payment on the certified copy of the order filed in the Court; and
 - (b) arrange for the return of the warrant issued under subsection (7)(b), if it is unexecuted; and
 - (c) if the fine—
 - (i) has been paid in full, withdraw the warrant; or
 - (ii) has not been paid in full, amend the warrant to show the amount still outstanding, and the warrant may be enforced in respect of the altered amount.
- (9) The registrar of the Magistrates' Court must remit to the registrar or other corresponding officer of the reciprocating court which made the order any sum of money received in satisfaction of the whole or part of a fine payable under an order enforced under subsection (7).
- (10) Any sum of money paid to or received by a registrar of the Magistrates' Court from a reciprocating court in satisfaction of the whole or part of a fine payable under an order of the Magistrates' Court enforced by the reciprocating court must be paid to or received by and applied

by the registrar as if the sum had been paid to the registrar by the body corporate by which the fine was payable.

Pt 4 Div. 6
Subdiv. 2
(Heading)
amended by
Nos 12/2006
s. 170, 47/2014
s. 274.

Subdivision 2—Procedure for enforcement of infringement penalties under the Fines Reform Act 2014

S. 99
amended by
No. 70/1996
s. 8,
substituted by
Nos 12/2006
s. 171 (as
amended by
No. 32/2006
s. 53(1)),
47/2014 s. 275.

99 Infringement offence enforcement procedure under the Fines Reform Act 2014

The procedure set out in the **Fines Reform Act 2014** may be used instead of commencing a proceeding against a person for an offence for which an infringement notice within the meaning of the **Infringements Act 2006** could be issued or served in respect of an offence under an Act or other instrument which establishes the offence.

S. 99A
inserted by
No. 99/2000
s. 5.

99A Certain agencies may give information for enforcement purposes

S. 99A(1)
amended by
No. 8/2019
s. 114.

(1) In this section, *specified agency* means a person or body—

(a) that holds information that may be of use in the enforcement of court orders and fines;
and

(b) that is stated by regulations made for the purposes of this section to be a specified agency—

but does not include a relevant agency within the meaning of section 69 of the **Melbourne City Link Act 1995**.

S. 99A(2)
amended by
No. 12/2006
s. 172(a).

(2) Words and expressions used in this section have the same meanings as in section 124A.

- | | |
|---|--|
| (3) The registrar, the sheriff and any contractor or sub-contractor supporting the functions of the Court under the Fines Reform Act 2014 or the sheriff may, for the purpose of the enforcement of court orders and fines, request information that may assist in carrying out that purpose from any person or body. | S. 99A(3)
amended by
Nos 12/2006
s. 172(b),
47/2014
s. 276(1)(2). |
| (4) On the written request of the registrar, the sheriff or any contractor or sub-contractor supporting the functions of the Court under the Fines Reform Act 2014 or the sheriff, a specified agency may give the person or body making the request access to any information held by the agency that may be of use in the enforcement of court orders and fines. | S. 99A(4)
amended by
Nos 12/2006
s. 172(c),
47/2014
s. 276(3)(4). |
| (5) A person who obtains access to any information as a result of a request made under this section— | |
| (a) may use the information to enforce court orders and fines; but | |
| (b) is otherwise subject to all the requirements and restrictions concerning the use and disclosure of the information that apply to the person who provided, or granted access to, the information in response to the request. | |

Part 5—Civil proceedings

Division 1—Jurisdiction

100 Extent of jurisdiction¹⁰

- (1) The Court has jurisdiction, subject to subsection (2)—
- (a) to hear and determine any cause of action for damages or a debt or a liquidated demand if the amount claimed is within the jurisdictional limit; and
 - (b) to hear and determine any claim for equitable relief if the value of the relief sought is within the jurisdictional limit; and
 - (c) to hear and determine, with the consent in writing of the parties—
 - (i) any cause of action for damages or a debt or a liquidated demand, irrespective of the amount claimed; and
 - (ii) any claim for equitable relief, irrespective of the value of the relief sought; and
 - (ca) to hear and determine applications made under section 57B of the **Victorian Civil and Administrative Tribunal Act 1998**; and
 - (d) to hear and determine any other cause of action if the Court is given jurisdiction to do so by or under any Act other than this Act.
- (2) The Court does not have jurisdiction in any cause of action—
- (a) in which the effect of, or the validity or invalidity of, any act, matter or thing done or omitted to be done by any person or body whatsoever in the exercise or purported

S. 100(1)(ca)
inserted by
No. 31/2021
s. 8(1).

exercise of any power or duty conferred or imposed on that person or body or purportedly conferred or imposed on that person or body by or under—

(i) any royal prerogative; or

(ii) any statute—

is sought to be determined or declared; or

(b) in the nature of a proceeding for a prerogative writ; or

(c) brought on a judgment of the Supreme Court or the County Court.

(2A) The jurisdictional limit does not apply to any question or matter that the Court has jurisdiction to determine arising out of any of the following—

(a) Part IV of the **Accident Compensation Act 1985**;

(b) Part 3A of the **Victorian Civil and Administrative Tribunal Act 1998**;

(c) the **Workplace Injury Rehabilitation and Compensation Act 2013**.

S. 100(2A)
inserted by
No. 9/2010
s. 93,
amended by
No. 67/2013
s. 649(Sch. 9
item 24(1)),
substituted by
No. 31/2021
s. 8(2).

(3) For the purpose of determining in a proceeding involving property whether the amount claimed or the value of the relief sought is within the jurisdictional limit, a certificate which purports to have been issued by a valuer and which purports to state the value of the property as at a particular date is admissible in evidence and, in the absence of evidence to the contrary, is proof of the value of the property as at that date.

S. 100(3)
amended by
No. 91/1994
s. 36(7)(b).

(4) The Court does not cease to have jurisdiction in respect of a cause of action because—

(a) part of the cause of action arose outside Victoria—if a material part of it arose in Victoria; or

(b) the whole cause of action arose outside Victoria—if the defendant resided within Victoria at the time of being served with the complaint.

(5) A minor may bring a proceeding in the Court for the recovery of money payable to the minor under a contract of service or a contract for services as if the minor were of full age.

(6) A party to a civil proceeding (including an arbitration) may appear—

(a) personally; or

(b) by a legal practitioner or other person empowered by law to appear for the party; or

(c) in the case of a cause of action for a debt or a liquidated demand, by a person in the exclusive employment of the party who is authorised in writing to appear for the party.

(7) Every judgment debt carries interest at the rate for the time being fixed under section 2 of the **Penalty Interest Rates Act 1983** from the time the order was made.

(8) Payment of the interest may be enforced by a warrant to seize property.

(9) The amount of the interest must be stated in the body of the warrant.

S. 100(6)(b)
amended by
No. 35/1996
s. 453(Sch. 1
item 53.3).

S. 100(8)
substituted by
No. 34/1990
s. 4(Sch. 3
item 11).

S. 100(9)
inserted by
No. 34/1990
s. 4(Sch. 3
item 11).

101 Proceedings beyond jurisdiction

- (1) If a civil proceeding is wholly or partly beyond the jurisdiction of the Court, the Court may—
- (a) amend the complaint for the purpose of bringing the proceeding within jurisdiction; or
 - (b) order that the proceeding be stayed pending the making of an application under Part 3 of the **Courts (Case Transfer) Act 1991**; or
 - (c) order that the complaint be struck out and award costs as if the Court had jurisdiction and the complaint were dismissed.

S. 101(1)(b)
amended by
No. 43/1991
s. 38(a).

(2) If—

- (a) under subsection (1)(b) the Court orders that a proceeding be stayed pending the making of an application under Part 3 of the **Courts (Case Transfer) Act 1991**; and
- (b) within a reasonable time after the making of that order the proceeding has not been transferred to another court—

S. 101(2)(a)
amended by
No. 43/1991
s. 38(b).

the Court may exercise the power conferred by subsection (1)(c).

Division 1A—Administration of children's funds

Pt 5 Div. 1A
(Heading and
s. 101A)
inserted by
No. 15/1998
s. 9.

101A Court orders relating to administration of children's funds

S. 101A
inserted by
No. 15/1998
s. 9.

- (1) If in any civil proceedings before the Court it is adjudged or ordered that money be paid to a child (whether or not that child is a party to a cause or matter) the money—

- (a) is to be paid into court; and
 - (b) unless the Court otherwise orders, is to be paid out to an administrator specified by the Court.
- (2) If any money, not being money to which subsection (3) applies—
- (a) is paid into court—
 - (i) before the commencement of this section; or
 - (ii) after the commencement of this section in accordance with a judgment or order entered or made before the commencement of this section; and
 - (b) the money is being held in court on behalf of a child—
- the Court may by order direct that the money be paid out to an administrator specified in the order.
- (3) If the Court adjudges or orders that property (whether real or personal) be delivered up or transferred to a child (whether or not that child is a party to a cause or matter), the Court—
- (a) may order that the property be delivered up or transferred to an administrator specified in the order; and
 - (b) may give any directions for the service of the order on the administrator as it thinks fit.
- (4) If an order under subsection (3) is served on State Trustees within the meaning of the **State Trustees (State Owned Company) Act 1994**, State Trustees must accept delivery or transfer of the property to which the order relates and the acceptance of the property is a sufficient discharge to the person delivering or transferring the property.

- (5) A copy of any order made under this section must be given by the administrator to VCAT and to the Public Advocate within the meaning of the **Guardianship and Administration Act 2019**.

S. 101A(5)
amended by
No. 30/2004
s. 14(1)(2),
substituted by
No. 13/2019
s. 221(Sch. 1
item 29.1).

- (6) An order of the Court under this section that money be paid out to an administrator has effect as if it were an administration order under the **Guardianship and Administration Act 2019** and, subject to the order of the Court, the administrator has all the powers and duties set out in Divisions 6, 7 and 8 of Part 3 of that Act.

S. 101A(6)
amended by
No. 30/2004
s. 14(1),
substituted by
No. 13/2019
s. 221(Sch. 1
item 29.1).

Division 1B—Transfer and payment of money to the Supreme Court for person under disability

Pt 5 Div. 1B
(Heading and
s. 101B)
inserted by
No. 30/2004
s. 6.

101B Money held in court for person under disability

S. 101B
inserted by
No. 30/2004
s. 6.

- (1) In this section, *person under disability* means—
- (a) a minor; or
 - (b) a person who is incapable by reason of injury, disease, senility, illness or physical or mental infirmity of managing his or her affairs in relation to the proceeding.
- (2) Unless the Court orders otherwise, money held in Court on behalf of a person under disability immediately before the commencement of section 6 of the **Courts Legislation (Funds in Court) Act 2004** must be paid into the Supreme Court by payment to the Senior Master of the Supreme Court to be held in that Court on behalf of the person under disability.

- (3) Unless the Court orders otherwise, in any proceeding in the Court in which it is adjudged or ordered that money be paid for a person under disability, that money must be paid into the Supreme Court (in full compliance with the judgment or order of the Court) by payment to the Senior Master of the Supreme Court to be held in that Court on behalf of the person under disability.
- (4) Money paid to the Senior Master under subsection (2) or (3) is to be held by the Senior Master as if an order had been made in a proceeding in the Supreme Court that the money be paid into court to be held on behalf of the person under disability and as if that money had been paid into court in accordance with that order.
- (5) The Senior Master has the same powers with respect to loss occasioned by delay as the Senior Master would have if an order referred to in subsection (4) had been made.

Note

Rule 79.06 of the **Supreme Court (General Civil Procedure) Rules 1996** provides the Senior Master with powers with respect to loss occasioned by delay.

S. 101B(6)
amended by
No. 13/2019
s. 221(Sch. 1
item 29.2).

- (6) Nothing in this section affects the operation of section 101A of this Act or section 179 of the **Guardianship and Administration Act 2019**.

Division 2—Arbitration

102 Arbitration for small claims

S. 102(1)
amended by
No. 68/2004
s. 4.

- (1) The Court must refer a complaint under which the amount of monetary relief sought is less than \$10 000 to arbitration in accordance with this Division.

- (2) Subsection (1) does not apply if—
 - (a) the complaint is of a class prescribed by the regulations as a complaint to which this Division does not apply; or
 - (b) the Court, in accordance with subsection (3), orders that the complaint be heard and determined by the Court and not referred to arbitration.
- (3) The Court may, on the application of a party or without any such application, order that a complaint be heard and determined by the Court and not referred to arbitration in accordance with this Division if it is satisfied that—
 - (a) the complaint is not disputed; or
 - (b) the complaint relates to the enforcement of an order which has not been set aside; or
 - (c) the complaint involves complex questions of law or fact; or
 - (d) a question of fraud is in issue; or
 - (e) the parties agree that the complaint should not be referred to arbitration; or
 - (f) it would be unreasonable for the complaint to be referred to arbitration having regard to its subject-matter, the circumstances of the parties or the interests of any other person likely to be affected by an award under this Division.
- (4) If arbitration of a complaint is commenced and the Court is satisfied, on the application of a party or without any such application, that the complaint ought to be determined by the Court and not referred to arbitration in accordance with this Division, the Court may, at any time before an award is made in the arbitration—

- (a) order that the complaint be determined by the Court; and
- (b) make such order as to the costs of the arbitration as it thinks fit; and
- (c) give such directions as it thinks necessary about the hearing of the complaint by the Court.

103 Conduct of arbitration

- (1) An arbitration under this Division is to be conducted by the Court constituted by a magistrate or, if the Rules so provide, by a registrar.
- (2) In conducting an arbitration, the Court—
 - (a) is not bound by rules of evidence but may inform itself on any matter in such manner as it thinks fit; and
 - (b) is bound by the rules of natural justice; and
 - (c) is not required to conduct any proceedings in a formal manner; and
 - (d) may exercise any powers that the Court may exercise in hearing and determining a complaint.

S. 103(2A)
inserted by
No. 69/2009
s. 54(Sch. Pt 1
item 34.9).

- (2A) Nothing in subsection (2)(a) prevents the application of Part 3.10 of the **Evidence Act 2008** to the conduct of an arbitration.

- (3) Evidence in an arbitration—
 - (a) may be given orally or in writing; and
 - (b) if the Court so requires, must be given on oath or affirmation or by affidavit.

S. 103(3)(b)
amended by
No. 6/2018
s. 68(Sch. 2
item 81.1).

- (4) The Court must determine according to law any question that arises for determination in an arbitration.
- (5) If the Court is satisfied that a party to an arbitration does not have a knowledge of the English language that is sufficient to enable the party to understand, or participate in, the arbitration, the Court may allow a competent interpreter to interpret the arbitration.

104 Award

- (1) An award of the Court in an arbitration under this Division must be in writing.
- (2) If the Court includes in an award a statement of the reasons for making the award, only the terms of the award and not the reasons must be in writing.
- (3) An award of the Court in an arbitration under this Division has effect as if it were an order made by the Court in a proceeding heard and determined by it.
- (4) If the Court does not include in an award a statement of the reasons for making the award, the Court must, if requested to do so orally or in writing by a party to the arbitration within 28 days after the making of the award, furnish to that party within a reasonable time after receiving the request a statement in writing of the reasons for making the award.

105 Costs

- (1) If an arbitration relates to a complaint under which monetary relief is sought and the Court awards a party less than \$500, the Court must not award costs unless satisfied that special circumstances make it appropriate to do so.

- (2) Subject to subsection (1), the Court may, in accordance with the regulations or, if there are no relevant regulations, then in accordance with the Rules, award costs to a party in respect of an arbitration under this Division.

S. 106
amended by
No. 50/2011
s. 46(Sch.
item 12).

106 Commercial Arbitration Act not to apply

The **Commercial Arbitration Act 2011** does not apply to an arbitration under this Division.

S. 106A
inserted by
No. 47/2010
s. 90.

106A Interaction with Civil Procedure Act 2010

The powers of the Court under this Division are in addition to, and do not derogate from, the powers of a court under Chapter 5 of the **Civil Procedure Act 2010**.

Division 3—Pre-hearing conferences

107 Pre-hearing conferences

S. 107(1)
substituted by
No. 51/2000
s. 6(1).

- (1) A magistrate or a registrar may refer a civil proceeding or part of a civil proceeding for a pre-hearing conference in accordance with the Rules.
- (2) A magistrate or registrar must conduct the pre-hearing conference in accordance with the Rules and may—

S. 107(2)(a)
amended by
No. 51/2000
s. 6(2)(a).

- (a) if the proceeding or any part of the proceeding is not settled between the parties, refer it back to the Court; or

S. 107(2)(b)
amended by
No. 51/2000
s. 6(2)(b).

- (b) at the request of the parties, refer the proceeding or any part of the proceeding back to the Court for arbitration under Division 2; or

S. 107(2)(c)
amended by
No. 51/2000
s. 6(2)(c).

- (c) if the proceeding or any part of the proceeding is settled between the parties, refer it back to the Court for the making of an order.

107A Interaction with Civil Procedure Act 2010

The powers of the Court under this Division are in addition to, and do not derogate from, the powers of a court under the **Civil Procedure Act 2010**.

S. 107A
inserted by
No. 47/2010
s. 91.

Division 3A—Mediation¹¹

Pt 5 Div. 3A
(Heading and
ss 108, 108A)
inserted by
No. 64/1996
s. 35.

108 Power to refer proceedings to mediation

New s. 108
inserted by
No. 64/1996
s. 35.

- (1) Subject to and in accordance with the Rules or the **Civil Procedure Act 2010**, the Court may, with or without the consent of the parties, refer the whole or any part of a civil proceeding to mediation.
- (2) Unless all the parties who attend the mediation otherwise agree in writing, no evidence shall be admitted at the hearing of the proceeding of anything said or done by any person at the mediation.
- (3) Subsection (2) does not apply to mediation by judicial resolution conference.

S. 108(1)
amended by
Nos 3/2005
s. 16, 47/2010
s. 92(1).

S. 108(3)
inserted by
No. 50/2009
s. 13.

Note

See section 108B.

108A Protection of mediators

A mediator to whom a civil proceeding or any part of a civil proceeding has been referred (whether by or under this Act, the Rules or under the **Civil Procedure Act 2010**) has, in the performance of his or her duties in connection with the reference, the same protection and immunity as a Judge of the Supreme Court has in the performance of his or her duties as a Judge.

S. 108A
inserted by
No. 64/1996
s. 35,
amended by
No. 47/2010
s. 92(2).

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Pt 5 Div. 3B
(Heading and
ss 108B,
108C)
inserted by
No. 50/2009
s. 15,
amended by
No. 34/2010
s. 49(2)(3),
repealed by
No. 47/2010
s. 92(3).

* * * *

Pt 5 Div. 4
(Heading)
amended by
No. 43/1991
s. 38(c).

Division 4—Appeals and re-hearings

S. 108
repealed by
No. 43/1991
s. 38(d).

* * * *

109 Appeal to Supreme Court from final order made in civil proceeding

S. 109(1)
substituted by
No. 1/2022
s. 20.

- (1) A party to a civil proceeding in the Court may appeal, on a question of law, from a final order of the Court in that proceeding—
 - (a) in the case of the Court constituted by the Chief Magistrate who is a dual commission holder—to the Court of Appeal; or
 - (b) in the case of the Court constituted other than by the Chief Magistrate who is a dual commission holder—to the Supreme Court.
- (2) An appeal under subsection (1)—
 - (a) must be instituted not later than 30 days after the day on which the order complained of was made; and
 - (b) does not operate as a stay of any order made by the Court unless the Supreme Court so orders.

- (3) Subject to subsection (2), an appeal under subsection (1) must be brought in accordance with the rules of the Supreme Court.
- (4) An appeal instituted after the end of the period referred to in subsection (2)(a) is deemed to be an application for leave to appeal under subsection (1).
- (5) The Supreme Court may grant leave under subsection (4) and the appellant may proceed with the appeal if the Supreme Court—
 - (a) is of the opinion that the failure to institute the appeal within the period referred to in subsection (2)(a) was due to exceptional circumstances; and
 - (b) is satisfied that the case of any other party to the appeal would not be materially prejudiced because of the delay.
- (6) After hearing and determining the appeal, the Supreme Court may make such order as it thinks appropriate, including an order remitting the case for re-hearing to the Court with or without any direction in law.
- (7) An order made by the Supreme Court on an appeal under subsection (1), other than an order remitting the case for re-hearing to the Court, may be enforced as an order of the Supreme Court.

110 Re-hearing

- (1) If a final order is made by the Court in a civil proceeding against a person who did not appear in the proceeding, that person may, subject to and in accordance with the Rules, apply to the Court for an order that the order be set aside and that the proceeding be re-heard.

- (2) On an application under this section, the Court may set aside the order subject to any terms and conditions that it thinks just and re-hear the proceeding.
- (3) Subject to subsection (4), an application under this section does not operate as a stay of the order unless the Court so orders.
- (4) An application under this section with respect to an order for the payment of money operates as a stay of so much of the order as relates to the payment of money.
- (5) If an applicant under this section fails to appear at the time fixed for the hearing of the application and the application is struck out, the applicant can re-apply only if the applicant first obtains the leave of the Court.

S. 110A
inserted by
No. 3/2016
s. 38,
amended by
No. 1/2022
s. 21.

110A Appeals from Court constituted by Chief Magistrate who is a dual commission holder

Unless this Act or another Act otherwise provides, an appeal from the Court constituted by the Chief Magistrate who is a dual commission holder, which would be an appeal to the County Court if the Chief Magistrate were not a dual commission holder, shall be to the Court of Appeal.

Division 5—Enforcement

111 Enforcement of orders

- (1) An order made by the Court in a civil proceeding for the payment of money may, subject to and in accordance with the Rules, be enforced by one or more of the following means:
 - (a) A warrant to seize property;
 - (b) An attachment of earnings order;
 - (c) An attachment of debts order.

(2) A warrant to seize property may be directed to—

- (a) the sheriff; or
- (b) a named police officer; or

S. 111(2)(b)
amended by
No. 37/2014
s. 10(Sch.
item
101.9(a)(i)).

- (c) generally all police officers.

S. 111(2)(c)
amended by
No. 37/2014
s. 10(Sch.
item
101.9(a)(ii)).

(3) A warrant to seize property directs and authorises the person to whom it is directed—

- (a) to seize the personal property of the person named or described in the warrant; and
- (b) if the sums named in the warrant together with all lawful costs of execution are not paid, to sell the personal property seized.

(4) A warrant to seize property directed to the sheriff may, if the sheriff so directs, be executed by—

- (a) a named person who is a bailiff for the purposes of the **Supreme Court Act 1986**; or
- (b) generally all persons who are bailiffs for the purposes of the **Supreme Court Act 1986**; or
- (c) a named police officer; or

S. 111(4)(c)
amended by
No. 37/2014
s. 10(Sch.
item
101.9(b)(i)).

- (d) generally all police officers.

S. 111(4)(d)
amended by
No. 37/2014
s. 10(Sch.
item
101.9(b)(ii)).

- (5) A direction may be given by the sheriff under subsection (4) by—
- (a) endorsing the execution copy of the warrant with the direction; or
 - (b) issuing a warrant to the same effect as the warrant to seize property but directed in accordance with subsection (4).
- (6) A warrant endorsed or issued by the sheriff in accordance with subsection (5) directs and authorises the person to whom it is directed to do all things that he or she would have been directed and authorised to do by the original warrant if it had been directed to him or her.
- (7) A warrant to seize property directed to a named bailiff or police officer may be executed by any bailiff or police officer, as the case requires.

S. 111(7)
amended by
No. 37/2014
s. 10(Sch.
item 101.9(c)).

- (7A) The person executing a warrant to seize property may serve on—
- (a) the person against whom the warrant is issued and whose personal property is seized under the warrant; or
 - (b) a person who is in possession of any personal property of the person against whom the warrant is issued that is seized under the warrant—

a notice in the form prescribed by the Rules informing the person served with the notice that he or she is responsible for the safe-keeping of the personal property seized under the warrant that is described in the notice and also informing him or her of the provisions of subsection (7B).

- (7B) A person who knows that the property has been seized under a warrant to seize property or is the subject of a notice served under subsection (7A)

S. 111(7B)
inserted by
No. 33/1994
s. 15.

must not, except with the written consent of the person executing the warrant to seize property—

- (a) interfere with or dispose of that property; or
- (b) deface or remove any mark attached to that property indicating that it had been so seized; or
- (c) remove that property from the place at which it was situated when the notice was served.

Penalty applying to this subsection: 25 penalty units or 6 months imprisonment or both.

- (7C) Nothing in subsection (7B) affects the powers of the Court or of the Supreme Court in relation to contempt.

S. 111(7C)
inserted by
No. 33/1994
s. 15.

- (8) The following orders may, subject to and in accordance with the Rules, be enforced by a warrant of delivery:

- (a) An order for the delivery of goods;
- (b) An order for the delivery of goods or the payment of their assessed value.

- (9) An order for the payment of the assessed value of goods may be enforced by the same means as any other order for the payment of money.

- (9A) A person to whom an attachment of earnings order is directed must not fail to comply with the order.

S. 111(9A)
inserted by
No. 33/1994
s. 14.

Penalty: 60 penalty units or 6 months imprisonment or both.

- (9B) It is a defence to a charge under subsection (9A) for the person charged to prove that he, she or it took all reasonable steps to comply with the order.

S. 111(9B)
inserted by
No. 33/1994
s. 14.

- (9C) Nothing in subsection (9A) affects the powers of the Court or of the Supreme Court in relation to contempt of court.

S. 111(9C)
inserted by
No. 33/1994
s. 14.

- (10) A person must not dismiss an employee or injure an employee in the employee's employment or alter an employee's position to the prejudice of the employee because an attachment of earnings order has been made in relation to the employee or the employee is required to make payments under an attachment of earnings order.

Penalty: 5 penalty units.

- (11) The Court may order a person convicted of an offence under subsection (10) to reimburse the employee any lost wages and to cause the employee to be reinstated in the employee's former position or in a similar position.
- (12) An amount ordered to be reimbursed under subsection (11) may be recovered from the convicted person in the same manner as the penalty to which that person is liable under subsection (10) and may be included in the same warrant.
- (13) An attachment of earnings order may apply to earnings falling to be paid—
- (a) by the Crown; or
 - (b) by a statutory authority representing the Crown; or
 - (c) out of the Consolidated Fund.
- (14) Nothing in this section takes away from the power of the Court to make, or from the right of a person to apply for, an instalment order under the **Judgment Debt Recovery Act 1984**.

112 Certificate for Supreme Court

- (1) If—
- (a) an order is made by the Court in a civil proceeding for the payment of money; and

(b) a warrant to seize property has been returned unsatisfied in whole or in part—

a registrar must, on the application of the person entitled to enforce the order, give that person a certificate of the order and of the amount remaining unpaid under the order and record the fact of the giving of the certificate in the register of the Court.

- (2) A person who is given a certificate under subsection (1) may file the certificate in the Supreme Court and, on the filing of the certificate, judgment is deemed to have been entered in the Supreme Court for the sum mentioned in the certificate as being unpaid together with all fees paid for obtaining and filing the certificate and the prescribed amount for costs.
- (3) After the issue of a certificate under subsection (1) no further proceedings (other than proceedings under the **Judgment Debt Recovery Act 1984**) must be taken in the Magistrates' Court but, on the filing of the certificate in the Supreme Court, the judgment deemed to have been entered may be enforced by the same means as any other judgment entered in the Supreme Court, including enforcement under the **Foreign Judgments Act 1962**.

113 Application of Imprisonment of Fraudulent Debtors Act

Part III of the **Imprisonment of Fraudulent Debtors Act 1958** extends and applies with respect to orders for the payment of money made by the Court in a civil proceeding.

114 Enforcement by executors and administrators

If an order is made by the Court in a civil proceeding and the person entitled to enforce the order dies, the executor or administrator of

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that person may enforce the order to the same extent and by the like means and in the same circumstances as that person might have done if still living.

Pt 6
(Heading and
ss 115–124)
amended by
Nos 56/1989
s. 286(Sch. 2
item 11.2),
34/1990
s. 4(Sch. 3
item 12),
33/1994 s. 16,
42/1995
s. 224(Sch. 2
item 24),
46/1998
s. 7(Sch. 1),
51/2000 s. 9,
35/2002 s. 16,
48/2006
s. 42(Sch.
item 22.8),
7/2009
s. 435(1) (as
amended by
No. 68/2009
s. 54(u)),
70/2010
ss 29–33,
68/2013 s. 8,
repealed by
No. 32/2014
s. 55.¹²

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**Pt 6A
(Headings
and ss 124A–
124J)
inserted by
No. 44/1997
s. 28,
amended by
Nos 102/1998
s. 44(1),
12/2006 s. 173,
82/2012 s. 293,
37/2014
s. 10(Sch.
items 101.10–
101.12),
repealed by
No. 59/2017
s. 125.**

Part 7—Miscellaneous

125 Business to be conducted in open court

- (1) All proceedings in the Court are to be conducted in open court, except where otherwise provided by this or any other Act or the Rules.

Note to
s. 125(1)
inserted by
No. 58/2013
s. 50.

Note

The **Open Courts Act 2013** governs suppression orders and closed court orders generally in relation to the Court.

- (2) The person constituting the Court and legal practitioners appearing before the Court must not robe.

S. 125(2)
amended by
No. 35/1996
s. 453(Sch. 1
item 53.5).

125A Court may determine matter or proceeding without oral hearing

- (1) The court may determine any matter in any proceeding, or determine any proceeding, without an oral hearing and entirely on the basis of written submissions and without the appearance of the parties—
- (a) if the court is satisfied that it is in the interests of justice to do so; and
- (b) whether or not the parties consent to the court doing so.
- (2) Subsection (1) does not apply to a criminal proceeding or a matter in a criminal proceeding.

S. 125A
inserted by
No. 11/2021
s. 56.

Note

Section 337A of the **Criminal Procedure Act 2009** provides similarly for criminal proceedings. See also section 201 of that Act.

- (3) For the purposes of subsection (1), in determining whether it is in the interests of justice to determine a matter or a proceeding without an oral hearing, the court shall have regard to—
- (a) the nature of the matter or proceeding; and
 - (b) the right to a fair hearing; and
 - (c) whether the parties have had the opportunity to obtain legal advice; and
 - (d) whether the parties consent to the court doing so.
- (4) Nothing in this section affects any other power of the court to determine a matter or a proceeding without an oral hearing.

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S. 126
amended by
Nos 8/1991
s. 13, 33/1994
s. 17(1),
10/1999
s. 24(1)(2),
68/2009
s. 97(Sch.
items 82.41,
82.42),
30/2010 s. 87,
repealed by
No. 58/2013
s. 51.

126A Power to bind over to keep the peace

- (1) The Court may, on the written application of a person, order another person to enter into a bond, with or without surety or sureties, to keep the peace or to be of good behaviour.
- (2) An application under subsection (1) must be supported by evidence on oath or affirmation or by affidavit.

S. 126A
inserted by
No. 49/1991
s. 119(7)
(Sch. 4
item 13.7).

S. 126A(2)
amended by
No. 6/2018
s. 68(Sch. 2
item 81.1).

S. 126A(4)
amended by
No. 68/2009
s. 97(Sch.
item 82.43).

- (3) The parties to a proceeding under this section and any other witnesses may be called and examined and cross-examined and costs may be awarded as in any other proceeding in the Court.
- (4) The Court may order that an accused who does not comply with an order under subsection (1) be imprisoned until he or she does comply with it or for 12 months, whichever is the shorter.
- (5) An order under subsection (1) may only be made on an application in accordance with this section unless it is otherwise expressly provided by any other Act.

S. 127
amended by
No. 15/2005
s. 11(2) (ILA
s. 39B(1)).

127 Witness order

- (1) The Court may, and must if required by any party to a proceeding, at any time during the proceeding, order all witnesses other than—
 - (a) the informant or the plaintiff; and
 - (b) the accused or the defendant; and

S. 127(1)(b)
amended by
No. 68/2009
s. 97(Sch.
item 82.44).

S. 127(1)(ba)
inserted by
No. 15/2005
s. 11(1),
repealed by
No. 68/2009
s. 97(Sch.
item 82.45).

* * * * *

- (c) the witness under examination—

to leave the Court and to remain outside and beyond the hearing of the Court until required to give evidence.

Note to
s. 127(1)
inserted by
No. 68/2009
s. 97(Sch.
item 82.46).

Note

Section 336A of the **Criminal Procedure Act 2009** provides that a victim of an offence is entitled to be present in court unless the court orders the victim to leave.

- (2) Nothing in this section prevents the Court from ordering a witness to leave the Court and to remain outside and beyond the hearing of the Court at any time after giving evidence if the Court considers it appropriate to do so.

S. 127(2)
inserted by
No. 15/2005
s. 11(2).

128 Power to adjourn proceeding

- (1) The Court may, on the application of a party to a proceeding other than a criminal proceeding or without any such application, adjourn the hearing of the proceeding—

S. 128(1)
amended by
No. 7/2009
s. 427(1)(g) (as
amended by
No. 68/2009
s. 54(m)).

- (a) to such times and places; and
(b) for such purposes; and
(c) on such terms as to costs or otherwise—

as it considers necessary or just in the circumstances.

* * * * *

S. 128(2)
repealed by
No. 7/2009
s. 427(1)(h) (as
amended by
No. 68/2009
s. 54(m)).

- (3) If the Court has adjourned the hearing of a proceeding other than a criminal proceeding to a particular time, it may order that the hearing be held or resumed before that time.

S. 128(3)
amended by
No. 7/2009
s. 427(1)(i) (as
amended by
No. 68/2009
ss 49(p),
54(m)).

- (4) The Court may only make an order under subsection (3) with the consent of all the parties or on the application of a party who has given reasonable notice of the application to the other party or parties.

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S. 128(5) amended by No. 4/1997 s. 8(2), repealed by No. 7/2009 s. 427(1)(j) (as amended by No. 68/2009 s. 54(m)).	*	*	*	*	*
S. 128(6) amended by No. 48/2006 s. 42(Sch. item 22.9), repealed by No. 7/2009 s. 427(1)(j) (as amended by No. 68/2009 s. 54(m)).	*	*	*	*	*
S. 128A inserted by No. 35/2002 s. 17, amended by No. 39/2003 s. 6, repealed by No. 68/2009 s. 97(Sch. item 82.47).	*	*	*	*	*
S. 129 amended by Nos 12/1993 s. 5(a), 68/2009 s. 97(Sch. items 82.48, 82.49), repealed by No. 69/2009 s. 54(Sch. Pt 1 item 34.10).	*	*	*	*	*
S. 130 repealed by No. 68/2009 s. 97(Sch. item 82.50).	*	*	*	*	*

131 Costs to be in the discretion of the Court

- (1) The costs of, and incidental to, all proceedings in the Court are in the discretion of the Court and the Court has full power to determine by whom, to whom and to what extent the costs are to be paid.
- (2) Subsection (1) applies unless it is otherwise expressly provided by this or any other Act or by the Rules or the regulations. **S. 131(2) amended by No. 64/1996 s. 36.**
- (2A) In exercising its discretion under subsection (1) in a proceeding, the Court may take into account any unreasonable act or omission by, or on behalf of, a party to the proceeding that the Court is satisfied resulted in prolonging the proceeding. **S. 131(2A) inserted by No. 33/1994 s. 18(1).**
- (2B) The Court must not make an order awarding costs against a party in the exercise of its discretion under subsection (1) on account of any unreasonable act or omission by, or on behalf of, that party that the Court is satisfied resulted in prolonging the proceeding without giving that party a reasonable opportunity to be heard. **S. 131(2B) inserted by No. 33/1994 s. 18(1).**
- (2C) If the Court determines to award costs against an informant who is a police officer, the order must be made against the Chief Commissioner of Police. **S. 131(2C) inserted by No. 33/1994 s. 18(1), amended by No. 37/2014 s. 10(Sch. item 101.13).**
- (3) If— **S. 131(3) amended by No. 68/2009 s. 97(Sch. item 82.51).**
- (a) a charge-sheet containing one or more charges is filed with a registrar; and **S. 131(3)(a) amended by No. 33/1994 s. 27(2).**
- (b) no filing fee is payable because of an exemption contained in the regulations; and

S. 131(3)(c)
amended by
No. 68/2009
s. 97(Sch.
item 82.51).

(c) the accused is convicted of one or more of the alleged offences and is ordered to pay a fine—

the Court must order the accused to pay by way of costs, in addition to the amount of the fine and any other costs, the amount of the filing fee that, but for the exemption, would have been payable.

(4) This section and section 132 apply to a purported proceeding in the Court which is beyond the jurisdiction of the Court as if the purported proceeding were within jurisdiction.

Note to s. 131
inserted by
No. 78/2008
s. 16.

Note

See section 17D(1)(b) to (d) of the **Supreme Court Act 1986**.

S. 131A
inserted by
No. 78/2008
s. 17.

131A Costs may be determined by Costs Court

Despite section 131(1), the Court may order that the costs of, and incidental to, a proceeding in the Court be assessed, settled, taxed or reviewed by the Costs Court.

Note

See section 146 of the **Supreme Court Act 1986** which deals with transitional matters relating to the Costs Court.

132 Costs liability of legal practitioner

S. 132(1)
amended by
Nos 33/1994
s. 18(2),
35/1996
s. 453(Sch. 1
item 53.6(a)).

(1) If a legal practitioner for a party to a proceeding, whether personally or through a servant or agent, has caused costs to be incurred improperly or without reasonable cause or to be wasted by undue delay or negligence or by any other misconduct or default, the Court may make an order that—

- | | | |
|---|--|---|
| (a) all or any of the costs between the legal practitioner and the client be disallowed or that the legal practitioner repay to the client the whole or part of any money paid on account of costs; or | S. 132(1)(a)
amended by
No. 35/1996
s. 453(Sch. 1
item 53.6(a)). | |
| (b) the legal practitioner pay to the client all or any of the costs which the client has been ordered to pay to any party; or | S. 132(1)(b)
amended by
No. 35/1996
s. 453(Sch. 1
item 53.6(a)). | |
| (c) the legal practitioner pay all or any of the costs payable by any party other than the client. | S. 132(1)(c)
amended by
No. 35/1996
s. 453(Sch. 1
item 53.6(a)). | |
| (2) Without limiting subsection (1), a legal practitioner is in default for the purposes of that subsection if any proceeding cannot conveniently be heard or proceed, or fails or is adjourned without any useful progress being made, because the legal practitioner failed to— | | S. 132(2)
amended by
Nos 33/1994
s. 18(2),
35/1996
s. 453(Sch. 1
item 53.6(a)). |
| (a) attend in person or by a proper representative; or | | |
| (b) file any document which ought to have been filed; or | | |
| (c) lodge or deliver any document for the use of the Court which ought to have been lodged or delivered; or | | |
| (d) be prepared with any proper evidence or account; or | | |
| (e) otherwise proceed. | | |
| (3) The Court must not make an order under subsection (1) without giving the legal practitioner a reasonable opportunity to be heard. | S. 132(3)
amended by
No. 35/1996
s. 453(Sch. 1
item 53.6(a)). | |

S. 132(4)
amended by
No. 35/1996
s. 453(Sch. 1
item 53.6(a)).

- (4) The Court may order that notice of any proceeding or order against a legal practitioner under this section be given to the client in such manner as the Court directs.

S. 132(5)
amended by
No. 33/1994
s. 18(2),
repealed by
No. 35/1996
s. 453(Sch. 1
item 53.6(b)).

* * * * *

133 Contempt in face of the Court

- (1) If it is alleged or appears to the Court that a person is guilty of contempt of court committed in the face of the Court, the Court may—
- (a) by oral order direct that the person be arrested and brought before the Court; or
 - (b) issue a warrant for his or her arrest in the form prescribed by the Rules.
- (2) On the person being brought before the Court, the Court must cause him or her to be informed of the contempt with which he or she is charged and adopt any procedure that the Court thinks fit.
- (3) The **Bail Act 1977** applies, with any necessary modifications, to and in respect of a person brought before the Court under this section as if the person were accused of an offence and were being held in custody in relation to that offence.
- (4) If the Court finds that the person is guilty of contempt of court, it may order that the person be sentenced to a term of imprisonment of not more than six months or fined not more than 25 penalty units.
- (5) If a person found guilty of contempt of court is ordered to be imprisoned, the Court may order his or her discharge before the end of the term.

- (6) The Court may accept an apology for a contempt and may remit any punishment for it either wholly or in part.
- (7) Persons who by conduct in the Court or in the precincts of the Court interrupt the proceedings of the Court in circumstances in which it appears to the Court that those persons are involved in the commission of an offence with the object of interrupting the proceedings of the Court may each be dealt with under this section for contempt of court committed in the face of the Court.

S. 133(7)
amended by
No. 63/2014
s. 7(15).

Note

Subdivision (1) of Division 1 of Part II of the **Crimes Act 1958** deals with complicity in commission of offences.

Note to
s. 133(7)
inserted by
No. 63/2014
s. 7(16).

134 Contempt of court

- (1) A person is guilty of contempt of court if—
- (a) having been summoned as a witness and having been given or tendered any conduct money required to be given or tendered, the person refuses or neglects without sufficient cause to attend or to produce any documents or things required by the summons to be produced; or
 - (b) having been summoned as a witness and having attended as required, the person refuses to be sworn or affirmed or to answer any lawful question; or
 - (c) being examined as a witness or being present in court and required to give evidence, the person refuses to be sworn or affirmed or to answer any lawful question or, without sufficient excuse, to produce any documents or things that the person has been or is required to produce; or

S. 134(1)(b)
amended by
No. 6/2018
s. 68(Sch. 2
item 81.5).

S. 134(1)(c)
amended by
No. 6/2018
s. 68(Sch. 2
item 81.5).

- (d) being present in court and required to give evidence, the person wilfully disobeys an order made under section 127; or
 - (e) in the opinion of the magistrate the person is guilty of wilful prevarication.
- (2) In the case of a contempt referred to in subsection (1), the Court may direct the arrest of the person and, on the person being brought before the Court, the Court must cause him or her to be informed of the contempt with which he or she is charged and adopt any procedure that the Court thinks fit.
- (3) If the Court finds that the person is guilty of a contempt referred to in subsection (1), it may order—
- (a) that the person be sentenced to a term of imprisonment of not more than 1 month; or
 - (b) that the person be fined not more than 5 penalty units and that in default of payment of the fine within a specified time the person be imprisoned for a term of not more than 1 month.
- (4) Without limiting subsection (3)—
- (a) if a person commits a contempt referred to in subsection (1) at a committal proceeding, the Court may adjourn the proceeding for a period of not more than 8 clear days and section 331 of the **Criminal Procedure Act 2009** applies as if the person were an accused in a criminal proceeding; and
 - (b) if at the adjourned hearing the contempt is repeated, the Court may—
 - (i) proceed under paragraph (a); or
 - (ii) punish for the contempt in any manner provided in subsection (3).

S. 134(4)(a)
amended by
No. 68/2009
s. 97(Sch.
item 82.52).

(5) A person is guilty of contempt of court if—

- (a) having been summoned in accordance with the Rules to attend at a sitting of the Court to be orally examined by the appropriate registrar concerning the failure to comply with an order for the payment of money and having been given or tendered any conduct money required to be given or tendered, the person refuses or neglects without sufficient cause to attend; or
 - (ab) having been summoned under Part 6 of the **Fines Reform Act 2014** to attend at the Court to be orally examined by a registrar and having been given any conduct money required to be given or tendered, the person refuses or neglects without sufficient cause to attend; or
 - (b) having been so summoned and having attended as required, the person refuses to be sworn or affirmed or to answer any lawful question; or
 - (c) in the opinion of the appropriate registrar the person is guilty of wilful prevarication.
- (6) In the case of a contempt referred to in subsection (5), the appropriate registrar must report the contempt to the next practicable sitting of the Court constituted by a magistrate at the proper venue and the Court may direct the arrest of the person and may punish for the contempt as in the case of a contempt referred to in subsection (1).
- (7) If a contempt referred to in this section also constitutes a contempt of court committed in the face of the Court, the Court may deal with the contempt under this section or under section 133, as it thinks fit.

S. 134(5)(ab)
inserted by
No. 12/2006
s. 174,
amended by
No. 47/2014
s. 280.

S. 134(5)(b)
amended by
No. 6/2018
s. 68(Sch. 2
item 81.5).

S. 134(8)
inserted by
No. 34/1990
s. 4(Sch. 3
item 13).

- (8) The **Bail Act 1977** applies, with any necessary modifications, to and in respect of a person brought before the Court under this section as if the person were accused of an offence and were being held in custody in relation to that offence.

135 Enforcement of orders not for the payment of money

- (1) If by or under this or any other Act a power (whether or not expressed as a power to make an order) is given to the Court—
- (a) of requiring any person to do or abstain from doing any act or thing, other than the payment of money; or
 - (b) of requiring any act or thing, other than the payment of money, to be done or left undone—

the Court may exercise the power by an order or orders.

- (2) If the Court makes an order under subsection (1), it may—
- (a) attach to the order conditions as to time or mode of action which are authorised by or under any Act or which the Court thinks just; and
 - (b) suspend or rescind the order on any undertaking being given or condition being performed that the Court thinks just; and
 - (c) generally make any arrangement for carrying into effect the power that the Court thinks just.

(3) Subject to subsection (4), a person who defaults in complying with an order made under subsection (1) is for the default liable—

- (a) to pay a fine of not more than 1 penalty unit for every day during which the default continues; or
- (b) to be imprisoned for so long as the default continues.

(4) A person is not liable under this section to—

- (a) imprisonment for a period or periods amounting in the aggregate to more than 2 months; or
- (b) the payment of any sums exceeding in the aggregate 40 penalty units—

for non-compliance with the requirement of the Court (whether made by one or more orders) to do or abstain from doing any act or thing.

136 Directions

The Court may, except where otherwise provided by this or any other Act, at any stage of a proceeding, give any direction for the conduct of the proceeding which it thinks conducive to its effective, complete, prompt and economical determination.

136A Court may issue or transmit court documents electronically

- (1) Any order, process or other document that the Court, a magistrate, a judicial registrar, a court official or a bail justice may issue or transmit under this Act or any other Act, statutory rule or other enactment or law may be issued or transmitted by electronic communication.

S. 136A
inserted by
No. 46/1998
s. 7(Sch. 1),
substituted by
No. 108/2004
s. 117(1)
(Sch. 3
item 118.3),
repealed by
No. 1/2014
s. 73, new
s. 136A
inserted by
No. 33/2018
s. 53.

- (2) If any provision of an Act, a statutory rule or other enactment or law in Victoria permits or requires any order, process or other document to be issued or transmitted by manual means, that requirement is taken to be met if the issuing or transmission occurs by electronic communication.

Example

If an Act or other law requires or permits the Court to sign or seal a document, the Court could use an electronic signature or electronic seal and the requirement is met in the same way as if the document had been signed or sealed by hand.

- (3) Nothing in this section—
- (a) limits the Court, a magistrate, a judicial registrar, a court official or a bail justice from issuing or providing any order, process or other document in paper form; or
 - (b) affects or limits any practice, procedure or rules of court that provide for electronic processes in the Court; or
 - (c) affects or limits the power to make rules of court; or
 - (d) limits any other power of the Court, a magistrate, a judicial registrar, a court official or a bail justice.

137 Forfeitures may be sold

- (1) All property (other than money) forfeited by or recovered in the Court may, except where otherwise provided by this or any other Act, be sold or disposed of or dealt with in any manner that the Court directs.
- (2) The proceeds of a sale, disposal or dealing under subsection (1) must be applied in the same manner as if the proceeds were a fine imposed under the Act on which the forfeiture is founded.

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S. 137A
inserted by
No. 99/2000
s. 6,
repealed by
No. 17/2022
s. 77.

138 Investment of trust money

(1) The whole or any part of any money held in a trust account of the Court may, except where otherwise provided by this or any other Act, whether already in a state of investment or not, be invested—

(a) on deposit with an authorised deposit-taking institution; or

S. 138(1)(a)
amended by
No. 11/2001
s. 3(Sch.
item 44.2).

* * * *

S. 138(1)(b)
repealed by
No. 18/1994
s. 66(Sch. 2
item 16).

(c) in any manner in which trust money may be invested by a trustee under the **Trustee Act 1958**.

(2) Despite anything to the contrary in any other Act or any rule of law, all income derived from the investment of money under subsection (1) must be paid into the Consolidated Fund.

139 Manner of service where none is prescribed

(1) If by or under this Act a person is required to serve a document and no provision is made, other than in this section, as to how the document is to be served, the document must be served by—

S. 139
substituted by
No. 68/2009
s. 97(Sch.
item 82.53).

(a) giving a copy of the document to the person to be served; or

- (b) if the person does not accept the copy, putting the copy down in the person's presence and telling the person the nature of the document; or
 - (c) leaving a copy of the document for the person at the person's last known or usual place of residence or business with a person who appears to be of or over the age of 16 years.
- (2) If the person to be served is a company or registered body (within the meaning of the Corporations Act), a document may be served on the company or body in accordance with section 109X or 601CX of that Act, as the case requires.

S. 139A
inserted by
No. 64/1996
s. 37,
amended by
No. 26/2002
s. 4 (ILA
s. 39B(1)).

139A Supreme Court—limitation of jurisdiction

- (1) It is the intention of section 108A to alter or vary section 85 of the **Constitution Act 1975**.

S. 139A(1A)
inserted by
No. 26/2002
s. 4,
repealed by
No. 68/2009
s. 97(Sch.
item 82.54).

* * * *

S. 139A(2)
inserted by
No. 35/2002
s. 18,
repealed by
No. 20/2015
s. 44.

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*	*	*	*	*	S. 139A(3) inserted by No. 39/2003 s. 7, repealed by No. 68/2009 s. 97(Sch. item 82.54).
*	*	*	*	*	S. 139A(4) inserted by No. 8/2008 s. 6, repealed by No. 68/2009 s. 97(Sch. item 82.54).
140 Regulations					
(1) The Governor in Council may make regulations for or with respect to—					
(a) the fees, costs and charges payable in respect of any proceeding in the Court; and					S. 140(1)(a) amended by Nos 34/1990 s. 4(Sch. 3 item 14), 9/2009 s. 76(1).
*	*	*	*	*	S. 140(1)(ab) inserted by No. 64/1996 s. 38(a), repealed by No. 19/2005 s. 8.
(b) the fees, costs and charges payable in respect of the exercise by a registrar of any jurisdiction, power or authority vested in the registrar under the Fines Reform Act 2014 ; and					S. 140(1)(b) amended by Nos 12/2006 s. 169(f), 47/2014 s. 281.
*	*	*	*	*	S. 140(1)(ba) inserted by No. 12/2001 s. 7, repealed by No. 9/2009 s. 76(2).

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S. 140(1)(c) repealed by No. 64/1996 s. 38(b), new s. 140(1)(c) inserted by No. 51/2000 s. 7.	(c) prescribing the fees and charges payable for the supply by the Court of any recording or any part of a recording of a proceeding; and				
S. 140(1)(ca) inserted by No. 35/2002 s. 19, repealed by No. 19/2005 s. 8.	*	*	*	*	*
S. 140(1)(d) repealed by No. 19/2005 s. 8.	*	*	*	*	*
S. 140(1)(da) inserted by No. 34/1990 s. 4(Sch. 3 item 15), repealed by No. 19/2005 s. 8.	*	*	*	*	*
S. 140(1)(db) inserted by No. 34/1990 s. 4(Sch. 3 item 15), amended by No. 37/2014 s. 10(Sch. item 101.13), repealed by No. 20/2025 s. 17.	*	*	*	*	*
S. 140(1)(e)(f) repealed by No. 68/2009 s. 97(Sch. item 82.55).	*	*	*	*	*

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|-----|---|---|---|---|--|
| * | * | * | * | * | S. 140(1)(g)
repealed by
No. 4/1997
s. 8(3), new
s. 140(1)(g)
inserted by
No. 87/2005
s. 27(1),
repealed by
No. 68/2009
s. 97(Sch.
item 82.55). |
| (h) | prescribing classes of complaints for the
purposes of Division 2 of Part 5; and | | | | |
| (i) | prescribing a code of conduct for bail
justices and acting bail justices; and | | | | S. 140(1)(i)
repealed by
No. 19/2005
s. 8, new
s. 140(1)(i)
inserted by
No. 70/2010
s. 34(1). |
| (j) | prescribing training courses for appointment
as a bail justice and training courses for
re-appointment as a bail justice for the
purposes of Division 2 of Part 6; and | | | | S. 140(1)(j)
repealed by
No. 19/2005
s. 8, new
s. 140(1)(j)
inserted by
No. 70/2010
s. 34(1). |
| (k) | prescribing training courses for the purposes
of section 121(3)(aa); and | | | | S. 140(1)(k)
repealed by
No. 19/2005
s. 8, new
s. 140(1)(k)
inserted by
No. 70/2010
s. 34(1). |
| (l) | prescribing particulars to be included in
applications under Division 2 of Part 6; and | | | | S. 140(1)(l)
repealed by
No. 19/2005
s. 8, new
s. 140(1)(l)
inserted by
No. 70/2010
s. 34(1). |

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S. 140(1)(la)
inserted by
No. 33/1994
s. 5(2),
repealed by
No. 19/2005
s. 8, new
s. 140(1)(la)
inserted by
No. 70/2010
s. 34(1),
amended by
No. 6/2018
s. 68(Sch. 2
item 81.2).

(la) prescribing the form of an oath or affirmation of office as a bail justice or an acting bail justice and the manner of taking that oath or affirmation; and

(m) generally prescribing any other matter or thing required or permitted by this Act to be prescribed or necessary to be prescribed to give effect to this Act.

(2) A power conferred by subsection (1) to make regulations providing for the imposition of fees may be exercised by providing for all or any of the following matters—

- (a) specific fees;
- (b) maximum fees;
- (c) minimum fees;
- (d) fees that vary according to value or time;

S. 140(2)(da)
inserted by
No. 15/2018
s. 48(1).

(da) different fees for different classes of proceedings or different classes of party;

- (e) the manner of payment of fees;
- (f) the time or times at which fees are to be paid.

- (2A) Regulations made under this Act may—
- S. 140(2A)
inserted by
No. 87/2005
s. 27(2).
- (aa) provide for the payment in advance of any fee, cost or charge fixed by regulation under subsection (1)(a) or (b); and
- S. 140(2A)(aa)
inserted by
No. 15/2018
s. 48(2)(a).
- (aab) provide for proportionate consequences of failure to pay any fee, cost or charge fixed by regulation under subsection (1)(a) or (b); and
- S. 140
(2A)(aab)
inserted by
No. 15/2018
s. 48(2)(a).
- (a) provide for the reduction, waiver, postponement, remission or refund, in whole or in part, of the fees, costs and charges fixed by regulation under subsection (1)(a) or (b); and
- S. 140(2A)(a)
amended by
No. 15/2018
s. 48(2)(b).
- (b) provide, in specified circumstances, for the reinstatement or payment, in whole or in part, of any fee, cost or charge reduced, waived, postponed, remitted or refunded by or in accordance with the regulations.
- S. 140(2A)(b)
amended by
No. 15/2018
s. 48(2)(c).
- (2B) Without limiting subsection (3)(b), if the regulations provide for a reduction, waiver, postponement, remission or refund, in whole or in part, of a fee, cost or charge pursuant to subsection (2A), the reduction, waiver, postponement, remission or refund—
- S. 140(2B)
inserted by
No. 87/2005
s. 27(2),
amended by
No. 15/2018
s. 48(3).
- (a) may be expressed to apply either generally or specifically—
- (i) in respect of certain matters or classes of matters;
- (ii) in respect of certain persons or classes of persons;

S. 140
(2B)(a)(iii)
amended by
Nos 68/2009
s. 97(Sch.
item 82.56),
15/2018
s. 48(3).

(iii) in respect of a specified class of infringement offence within the meaning of the **Infringements Act 2006**, including offences committed before or after the commencement of the regulations providing for the reduction, waiver, postponement, remission or refund, in whole or in part, of the fees, costs and charges;

S. 140
(2B)(a)(iv)
amended by
Nos 68/2009
s. 97(Sch.
item 82.57),
15/2018
s. 48(3).

(iv) in respect of a specified class of infringement notice within the meaning of the **Infringements Act 2006**, including notices issued or served before or after the commencement of the regulations providing for the reduction, waiver, postponement, remission or refund, in whole or in part, of the fees, costs and charges;

S. 140
(2B)(a)(v)
amended by
No. 68/2009
s. 97(Sch.
item 82.58).

(v) in respect of a specified enforcement agency or class of enforcement agency within the meaning of the **Infringements Act 2006**;

(vi) for a specified period or periods or from a specified commencement date to a specified expiry date;

(vii) in respect of any combination of the matters referred to in paragraphs (i) to (vi);

(b) may be subject to specified conditions.

(3) Regulations made under this Act may be made—

(a) so as to confer a discretionary authority on a specified court official or a specified class of court officials; and

- (b) so as to provide in a specified case or class of case for the exemption of any proceeding, person or thing or a class of proceeding, person or thing from any of the provisions of the regulations, whether—
- S. 140(3)(b) amended by No. 87/2005 s. 27(3)(a), substituted by No. 15/2018 s. 48(4).
- (i) unconditionally or on specified conditions; and
- (ii) either wholly or to such an extent as is specified; and
- (c) so as to be of limited or general application; and
- S. 140(3)(c) inserted by No. 87/2005 s. 27(3)(b), amended by No. 70/2010 s. 34(2).
- (d) so as to differ according to differences in time, place or circumstances; and
- S. 140(3)(d) inserted by No. 70/2010 s. 34(3).
- (e) so as to require matters affected by the regulations to be—
- S. 140(3)(e) inserted by No. 70/2010 s. 34(3).
- (i) in accordance with specified standards or specified requirements; or
- (ii) approved by or to the satisfaction of a specified person or body or a specified class of persons or bodies; or
- (iii) as specified in both subparagraphs (i) and (ii); and
- (f) so as to leave any matter or thing to be from time to time determined, applied, dispensed with or regulated by a specified person.
- S. 140(3)(f) inserted by No. 70/2010 s. 34(3).
- (4) If the regulations provide for a remission or refund of a fee, cost or charge fixed by regulation under subsection (1)(a) or (b), the Consolidated Fund is appropriated to the
- S. 140(4) repealed by No. 10/1999 s. 31(1), new s. 140(4) inserted by No. 15/2018 s. 48(5).

necessary extent to enable any remission or refund to be paid.

S. 140(5)
repealed by
No. 10/1999
s. 31(1).

* * * *

S. 140A
inserted by
No. 1/2022
s. 22,
repealed by
No. 51/1989
s. 140A(4).

* * * *

New s. 141
inserted by
No. 4/1997
s. 7,
repealed by
No. 19/2005
s. 9(2),
new s. 141
inserted by
No. 22/2020
s. 7.

141 Definitions

In this section and sections 142 and 144—

affected person means any person—

- (a) who was appointed as an acting magistrate on 19 July 2011 or 6 March 2012; and
- (b) who was taken to hold the office of reserve magistrate by the operation of clause 50 of Schedule 8 as inserted by section 40 of the **Courts Legislation Amendment (Reserve Judicial Officers) Act 2013**;

relevant period, in relation to an affected person, means any period during which the person purported to occupy the office of reserve magistrate but did not validly occupy that office.

New s. 142
inserted by
No. 10/1999
s. 6,
repealed by
No. 19/2005
s. 9(2),
new s. 142
inserted by
No. 22/2020
s. 7.

142 Rights, duties and liabilities declared in certain cases

The rights, duties and liabilities of any person are declared to be, and always to have been the same as if each act or decision of an affected person as a purported occupant of the office of reserve

magistrate during the relevant period had been an act or decision of a person who validly occupied the office of reserve magistrate.

143 Effect of declared rights, duties and liabilities

(1) A right, duty or liability to which section 142 applies—

(a) is exercisable or enforceable; and

(b) must be regarded as always having been exercisable or enforceable—

as if it were a right, duty or liability conferred, imposed or affected by an act or decision of a person who validly occupied the office of reserve magistrate.

(2) Without limiting section 142 or this section, the rights, duties and liabilities conferred, imposed or affected by section 142 include the right of a person who was a party to a proceeding or purported proceeding in which a decision was made to which section 142 applies, to appeal against the decision or apply for a review of the decision.

144 Protection of affected persons

Sections 9E and 14 are taken to have applied and to continue to apply to an affected person when purportedly exercising any duty of a reserve magistrate during the relevant period.

New s. 143
inserted by
No. 51/2000
s. 8,
repealed by
No. 19/2005
s. 9(2),
new s. 143
inserted by
No. 22/2020
s. 7.

S. 144
inserted by
No. 27/2002
s. 8,
repealed by
No. 19/2005
s. 9(2),
new s. 144
inserted by
No. 22/2020
s. 7.

Magistrates' Court Act 1989
No. 51 of 1989
Part 7—Miscellaneous

S. 145
inserted by
No. 77/2004
s. 5,
repealed by
No. 19/2005
s. 9(2).

* * * * *

Magistrates' Court Act 1989
No. 51 of 1989
Part 8—Savings and transitionals

Part 8—Savings and transitionals

Pt 8 (Heading)
amended by
No. 70/1996
s. 14(b).

* * * *

Ss 141–143
repealed by
No. 33/1994
s. 27(3).

* * * *

S. 144
amended by
No. 34/1990
s. 4(Sch. 3
items 16–18),
repealed by
No. 33/1994
s. 27(3).

* * * *

Ss 145–149
repealed by
No. 33/1994
s. 27(3).

150 Savings and transitionals

- (1) Schedule 8 contains saving and transitional provisions.
- (2) The provisions contained in Schedule 8 are subject to any contrary intention appearing in the **Magistrates' Court (Consequential Amendments) Act 1989**.

Magistrates' Court Act 1989
No. 51 of 1989

Pt 9 (Heading
and ss 151–
154)
inserted by
No. 11/2020
s. 38,
amended by
No. 27/2020
ss 13, 14,
repealed by
No. 51/1989
s. 154 (as
amended by
No. 27/2020
s. 14).

* * * *

Schedules

Schedule 1—Salaries, allowances and other conditions of service of magistrates

Sch. 1
(Heading)
amended by
No. 29/2015
s. 85(1).

Section 10

Part 1—Magistrates

1. The Chief Magistrate who is or has been a dual commission holder as a Judge of the Supreme Court is entitled to be paid a salary at the rate for the time being applicable under the **Judicial Entitlements Act 2015**.

Sch. 1 Pt 1
cl. 1
amended by
Nos 64/1990
s. 20(Sch.
item
4.3(a)(i)(ii)),
22/1995
s. 27(a)(i)(ii),
4/2002
s. 12(4)(a),
substituted by
No. 38/2004
s. 14(1)(a),
amended by
No. 29/2015
s. 85(2),
1/2022
s. 23(1).
- 1A. The Chief Magistrate who has been a dual commission holder as a judge of the County Court under the **County Court Act 1958** is entitled to be paid a salary at the rate for the time being applicable under the **Judicial Entitlements Act 2015**.

Sch. 1 Pt 1
cl. 1A
inserted by
No. 1/2022
s. 23(2).

Magistrates' Court Act 1989
No. 51 of 1989
Schedule 1—Salaries, allowances and other
conditions of service of magistrates

Sch. 1 Pt 1
cl. 2
amended by
Nos 64/1990
s. 20(Sch.
item 4.3(b)),
22/1995
s. 27(b),
4/2002
s. 12(4)(a),
31/2004
s. 7(1),
38/2004
s. 14(1)(b),
63/2013
s. 78(1),
substituted by
No. 29/2015
s. 85(3).

2. A Deputy Chief Magistrate is entitled to be paid a salary at the rate for the time being applicable under the **Judicial Entitlements Act 2015**.

Sch. 1 Pt 1
cl. 3
amended by
Nos 64/1990
s. 20(Sch.
item 4.3(c)),
22/1995
s. 27(c),
4/2002
s. 12(4)(a),
31/2004
s. 7(2),
38/2004
s. 14(1)(c),
63/2013
s. 78(2),
substituted by
No. 29/2015
s. 85(4).

3. A magistrate, not being the Chief Magistrate or a Deputy Chief Magistrate is entitled to be paid a salary at the rate for the time being applicable under the **Judicial Entitlements Act 2015**.

Note

See section 5 of the **Judicial Entitlements Act 2015** for the rates of salaries, including pro-rata salaries of magistrates to whom a part-time service arrangement applies.

Magistrates' Court Act 1989
No. 51 of 1989
Schedule 1—Salaries, allowances and other
conditions of service of magistrates

- | | |
|--|---|
| <p>4. The Chief Magistrate, each Deputy Chief Magistrate and each other magistrate is entitled to the allowances and the other conditions of service for that office that are for the time being applicable under the Judicial Entitlements Act 2015.</p> | <p>Sch. 1 Pt 1
cl. 4
amended by
No. 64/1990
s. 20(Sch.
item 4.3(d)
(i)–(iv)),
substituted by
No. 22/1995
s. 27(d),
amended by
No. 4/2002
s. 12(4)(b),
substituted by
Nos 38/2004
s. 14(1)(d),
29/2015
s. 85(5).</p> |
| <p>4A. Subject to clause 4B, a magistrate, other than the Chief Magistrate, is entitled to have superannuation contributions made for the benefit of the magistrate to an RSA within the meaning of the Superannuation Guarantee (Administration) Act 1992 of the Commonwealth or a complying superannuation fund within the meaning of that Act that are calculated by multiplying the salary of the magistrate by the applicable multiplier.</p> | <p>Sch. 1 Pt 1
cl. 4A
inserted by
No. 3/2016
s. 19.</p> |
| <p>4B. Clause 4A does not apply if the magistrate is, or is taken to be, a member of the new scheme or the revised scheme under the State Superannuation Act 1988.</p> | <p>Sch. 1 Pt 1
cl. 4B
inserted by
No. 3/2016
s. 19.</p> |
| <p>4C. In clause 4A—
<i>applicable multiplier</i> means the number specified as the charge percentage under section 19(2) of the Superannuation Guarantee (Administration) Act 1992 of the Commonwealth, as in force from time to time, for the relevant period, divided by 100;</p> | <p>Sch. 1 Pt 1
cl. 4C
inserted by
No. 3/2016
s. 19.</p> |

Magistrates' Court Act 1989
No. 51 of 1989
Schedule 1—Salaries, allowances and other
conditions of service of magistrates

salary includes the car allowance for magistrates provided for in certificate 1/2008 dated 14 July 2008 issued under section 15 of the **Judicial Remuneration Tribunal Act 1995** (as continued in operation under section 43 of the **Judicial Entitlements Act 2015**).

Sch. 1 Pt 1
cl. 5
amended by
No. 64/1990
s. 20(Sch.
item 4.3(e)
(i)–(vii)),
repealed by
No. 22/1995
s. 27(e),
new Sch. 1
Pt 1 cl. 5
inserted by
No. 83/2008
s. 11(1),
repealed by
No. 29/2015
s. 85(6).

* * * *

Sch. 1 Pt 1
cl. 6
amended by
No. 64/1990
s. 20(Sch.
item 4.3(f)),
repealed by
No. 22/1995
s. 27(e),
new Sch. 1
Pt 1 cl. 6
inserted by
No. 83/2008
s. 11(1),
repealed by
No. 29/2015
s. 85(6).

* * * *

Magistrates' Court Act 1989
No. 51 of 1989
Schedule 1—Salaries, allowances and other
conditions of service of magistrates

*	*	*	*	*	Sch. 1 Pt 1 cl. 7 amended by No. 64/1990 s. 20(Sch. item 4.3(f)), repealed by No. 22/1995 s. 27(e) new Sch. 1 Pt 1 cl. 7 inserted by No. 83/2008 s. 11(1), repealed by No. 29/2015 s. 85(6).
*	*	*	*	*	Sch. 1 Pt 1 cl. 8 repealed by No. 22/1995 s. 27(e), new Sch. 1 Pt 1 cl. 8 inserted by No. 83/2008 s. 11(1), repealed by No. 29/2015 s. 85(6).
9. Nothing in this Part authorises the salaries or the aggregate value of the allowances payable to the Chief Magistrate, a Deputy Chief Magistrate and the other magistrates to be reduced.					
*	*	*	*	*	Sch. 1 Pt 1 cl. 9A inserted by No. 83/2008 s. 11(2), repealed by No. 29/2015 s. 85(6).

Magistrates' Court Act 1989
No. 51 of 1989
Schedule 1—Salaries, allowances and other
conditions of service of magistrates

Sch. 1 Pt 1
cl. 10
amended by
Nos 64/1990
s. 20(Sch.
item 4.3(g)),
22/1995
s. 27(g),
substituted by
No. 1/2000
s. 5(1).

10. The following are to be paid out of the Consolidated Fund, which is appropriated to the necessary extent—

Sch. 1 Pt 1
cl. 10(a)
amended by
Nos 83/2008
s. 11(3),
29/2015 s. 71.

(a) the amounts (including the amount of any non-salary benefits) payable to or for a magistrate; and

Sch. 1 Pt 1
cl. 10(b)
amended by
No. 67/2013
s. 649(Sch. 9
item 24(2)(a)).

(b) premiums and other amounts payable under the **Workplace Injury Rehabilitation and Compensation Act 2013** in respect of the magistrates; and

Sch. 1 Pt 1
cl. 10(c)
substituted by
No. 26/2007
s. 114(1).

(c) superannuation contributions (within the meaning of the **Payroll Tax Act 2007**) payable in respect of the magistrates; and

Sch. 1 Pt 1
cl. 10(d)
substituted by
No. 26/2007
s. 114(1).

(d) payroll tax payable under the **Payroll Tax Act 2007** payable in respect of wages paid or payable to the magistrates; and

(e) tax payable under the Fringe Benefits Tax Act 1986 of the Commonwealth in respect of fringe benefits provided to the magistrates.

Sch. 1 Pt 1
cl. 10A
inserted by
No. 83/2008
s. 11(4),
repealed by
No. 29/2015
s. 85(6).

* * * * *

Magistrates' Court Act 1989
No. 51 of 1989
Schedule 1—Salaries, allowances and other
conditions of service of magistrates

* * * *

Sch. 1 Pt 1
cl. 10B
inserted by
No. 83/2008
s. 11(4),
repealed by
No. 29/2015
s. 85(6).

10C. In clause 10, *non-salary benefits* has the same meaning
as it has in clause 3(5) and (6) of Schedule 1A to the
Public Administration Act 2004.

Sch. 1 Pt 1
cl. 10C
inserted by
Nos 83/2008
s. 11(4),
29/2015
s. 71(2),
amended by
No. 29/2015
s. 85(8).

Part 2—Reserve magistrates

Sch. 1 Pt 2
(Heading and
cls 11, 12)
amended by
Nos 64/1990
s. 20(Sch.
item 4.3(g)),
1/2000 ss 5(2),
6, 4/2002
s. 12(4)(c),
38/2004
s. 14(2),
3/2005 s. 12,
26/2007
s. 114(2),
83/2008 s. 12,
substituted by
No. 5/2013
s. 39.

**11 Salary, allowances and other conditions of service of
reserve magistrate**

Sch. 1 Pt 2
cl. 11
substituted by
No. 5/2013
s. 39.

Sch. 1 Pt 2
cl. 11
(Heading)
amended by
No. 29/2015
s. 86(1).

Magistrates' Court Act 1989
No. 51 of 1989
Schedule 1—Salaries, allowances and other
conditions of service of magistrates

Sch. 1 Pt 2
cl. 11(1)
substituted by
No. 29/2015
s. 86(2).

- (1) Each reserve magistrate engaged to undertake the duties of a magistrate under section 9C is entitled to be paid a salary in accordance with the rate for the time being applicable for that office under the **Judicial Entitlements Act 2015**.

Sch. 1 Pt 2
cl. 11(2)
substituted by
No. 29/2015
s. 86(2).

- (2) Each reserve magistrate engaged to undertake the duties of a magistrate under section 9C is entitled to the allowances and other conditions of service for that office that are for the time being applicable under the **Judicial Entitlements Act 2015**.

Sch. 1 Pt 2
cl. 11(3)–(9)
repealed by
No. 29/2015
s. 86(3).

* * * * *

Sch. 1 Pt 2
cl. 11(9A)
inserted by
No. 63/2013
s. 47,
amended by
No. 29/2015
s. 86(4).

- (9A) Despite subclause (1), a reserve magistrate who is also a serving magistrate of a court of another State, the Northern Territory or the Australian Capital Territory is not entitled to be paid a salary under this section if that person receives a salary in relation to his or her office in that other State or Territory.

Sch. 1 Pt 2
cl. 11(10)
repealed by
No. 29/2015
s. 86(3).

* * * * *

Sch. 1 Pt 2
cl. 11A
inserted by
No. 3/2016
s. 20.

11A Superannuation contributions

- (1) Subject to subclause (2), a reserve magistrate is entitled to have superannuation contributions made for the benefit of the reserve magistrate to an RSA within the meaning of the Superannuation Guarantee (Administration) Act 1992 of the Commonwealth or a complying superannuation fund within the meaning of that Act that are calculated by multiplying the salary of the reserve magistrate by the applicable multiplier.

(2) Subclause (1) does not apply if the reserve magistrate is, or is taken to be, a member of the new scheme or the revised scheme under the **State Superannuation Act 1988**.

(3) In subclause (1)—

applicable multiplier means the number specified as the charge percentage under section 19(2) of the Superannuation Guarantee (Administration) Act 1992 of the Commonwealth, as in force from time to time, for the relevant period, divided by 100.

12 Appropriation of certain amounts in relation to reserve magistrates

(1) The following are to be paid out of the Consolidated Fund, which is appropriated to the necessary extent—

- (a) the amounts (including the amount of any non-salary benefits) payable to or for any reserve magistrate; and
- (b) premiums and other amounts payable under the **Workplace Injury Rehabilitation and Compensation Act 2013** in respect of any reserve magistrate; and
- (c) payroll tax payable under the **Payroll Tax Act 2007** in respect of wages paid or payable to any reserve magistrate; and
- (d) tax payable under the Fringe Benefits Tax Act 1986 of the Commonwealth in respect of fringe benefits provided to any reserve magistrate; and
- (e) superannuation contributions within the meaning of the **Payroll Tax Act 2007** payable in respect of any reserve magistrate.

Sch. 1 Pt 2
cl. 12
substituted by
No. 5/2013
s. 39,
amended by
No. 29/2015
s. 72 (ILA
s. 39B(1)).

Sch. 1 Pt 2
cl. 12(b)
amended by
No. 67/2013
s. 649(Sch. 9
item 24(2)(b)).

Sch. 1 Pt 2
cl. 12(2)
inserted by
No. 29/2015
s. 72.

- (2) In this clause, *non-salary benefits* has the same meaning as it has in clause 3(5) and (6) of Schedule 1A to the **Public Administration Act 2004**.

Sch. 1 Pt 3
(Heading and
cl. 13)
inserted by
No. 3/2016
s. 21.

Part 3—Validation of past payments

Sch. 1 Pt 3
cl. 13
inserted by
No. 3/2016
s. 21.

13 Validation of certain past superannuation payments

- (1) Subject to subclause (3), this clause applies to the following persons who hold or held the relevant specified office during the validation period or during any part of the validation period—
- (a) a magistrate other than the Chief Magistrate;
 - (b) a reserve magistrate;
 - (c) a person who was an acting magistrate appointed under section 9 as in force immediately before its repeal by the **Courts Legislation Amendment (Reserve Judicial Officers) Act 2013**;
 - (d) a coroner appointed under section 94 of the **Coroners Act 2008**;
 - (e) a judicial registrar.
- (2) Any superannuation contribution made for the benefit of a person to whom this clause applies during the validation period or during any part of the validation period, (as the case requires) which was determined by multiplying the salary of the person during the relevant period by the applicable multiplier for that period is taken to be, and to have always been—

- (a) a validly made superannuation contribution for the benefit of that person to which that person was entitled; and
 - (b) authorised by law to be paid from the Consolidated Fund.
- (3) This clause does not apply to a person referred to in subclause (1)(a) to (e) if the person is, or is taken to be, a member of the new scheme or the revised scheme under the **State Superannuation Act 1988**.
- (4) In this clause—
- applicable multiplier* means the number specified as the charge percentage under section 19(2) of the Superannuation Guarantee (Administration) Act 1992 of the Commonwealth, as in force from time to time, for the relevant period, divided by 100;
- commencement date* means the day that section 21 of the **Justice Legislation Further Amendment Act 2016** comes into operation;
- salary* includes the car allowance for magistrates provided for in certificate 1/2008 dated 14 July 2008 issued under section 15 of the **Judicial Remuneration Tribunal Act 1995** (as continued in operation under section 43 of the **Judicial Entitlements Act 2015**), to the extent that a person to whom this clause applies is entitled to such an allowance;
- validation period* means the period from 1 January 1994 to the commencement date.

Magistrates' Court Act 1989
No. 51 of 1989

Sch. 2 amended by Nos 34/1990 s. 4(Sch. 3 item 19), 12/1993 s. 5(b), 33/1994 s. 19, 64/1996 s. 39, 35/1999 s. 36(1), 35/2002 ss 20, 21, 12/2006 s. 175, 50/2006 s. 26, 36/2007 s. 5, 8/2008 s. 15, 52/2008 s. 255, repealed by No. 7/2009 s. 427(2) (as amended by No. 68/2009 s. 54(m)).	*	*	*	*	*
Sch. 3 repealed by No. 33/1994 s. 27(4).	*	*	*	*	*
Sch. 4 repealed. ¹³	*	*	*	*	*
Sch. 5 repealed. ^{14,15}	*	*	*	*	*

Magistrates' Court Act 1989
No. 51 of 1989

*	*	*	*	*	Sch. 6 amended by Nos 34/1990 s. 4(Sch. 3 item 23), 35/1996 s. 453(Sch. 1 item 53.9), 48/1997 s. 66(3)(4), 10/1999 ss 13–15, 48/2006 s. 42(Sch. item 22.9), repealed by No. 7/2009 s. 427(2) (as amended by No. 68/2009 s. 54(m)).
*	*	*	*	*	Sch. 7 repealed. ^{16, 17}

Schedule 8—Savings and transitionals

Section 150

- 1 (1) The Magistrates' Court shall be deemed to be the same Court as the several Magistrates' Courts existing immediately before the commencement of Part 2 and no action, matter or thing shall be abated or affected by the change in the establishment or name of the Court.
- (2) Unless the context otherwise requires, any reference in any Act or in any subordinate instrument or in any document or writing of any kind whatsoever to a Magistrates' Court or to Magistrates' Courts is to be taken to refer to the Magistrates' Court.
- (3) Unless the context otherwise requires, any reference in any Act or in any subordinate instrument or in any document or writing of any kind whatsoever to a Magistrates' Court held at a particular place is to be taken to refer to the Magistrates' Court sitting at that place or, if the Magistrates' Court does not sit at that place, to the Court sitting at the place that is nearest to that place.
- 2 (1) Each person who holds office as a magistrate immediately before the commencement of Part 2 holds office as a magistrate under and subject to this Act on and from that commencement without any further appointment.
- (2) Each person who holds office as Chief Magistrate or Deputy Chief Magistrate immediately before the commencement of Part 2 holds office as Chief Magistrate or Deputy Chief Magistrate (as the case requires) under and subject to this Act on and from that commencement without any further appointment.

- (3) Unless the context otherwise requires, any reference in any Act or in any subordinate instrument or in any document or writing of any kind whatsoever to a police magistrate or to a stipendiary magistrate is to be taken to refer to a magistrate.
- 3 (1) Each person who holds office as a clerk of a Magistrates' Court immediately before the commencement of Part 3 holds office as a registrar of the Court under and subject to this Act and the **Public Service Act 1974** on and from that commencement without any further appointment.
- (2) Each person who holds office as a deputy clerk of a Magistrates' Court immediately before the commencement of Part 3 holds office as a deputy registrar of the Court under and subject to this Act and the **Public Service Act 1974** on and from that commencement without any further appointment.
- (3) Unless the context otherwise requires, any reference in any Act or in any subordinate instrument or in any document or writing of any kind whatsoever to a clerk of a Magistrates' Court is to be taken to refer to a registrar of the Court.
- (4) Unless the context otherwise requires, any reference in any Act or in any subordinate instrument or in any document or writing of any kind whatsoever to a deputy clerk of a Magistrates' Court is to be taken to refer to a deputy registrar of the Court.
- 4 Unless the context otherwise requires, any reference in any Act (other than this Act, the **Evidence Act 2008** or the **Evidence (Miscellaneous Provisions) Act 1958**) or in any subordinate instrument to a justice of the peace is to be taken to refer to a magistrate.

Sch. 8 cl. 4
amended by
No. 69/2009
s. 54(Sch. Pt 1
item 34.11).

- 5 If by any Act (other than this Act) or by any subordinate instrument a procedure is prescribed for or in relation to any proceeding in the Court or for or in relation to any step or process in such a proceeding and there is prescribed by this Act or the Rules a procedure that is applicable to such a proceeding or step or process, the procedure prescribed by this Act or the Rules applies despite the provisions of that Act or subordinate instrument.
- 6 A civil proceeding in the Court must, despite anything in any Act or subordinate instrument, be commenced and conducted in accordance with the Rules and not otherwise.
- 7 A criminal proceeding in the Court must, despite anything in any Act or subordinate instrument, be commenced and conducted in accordance with this Act and not otherwise.
- 8 An order made by the Court in a civil proceeding (other than an order made under the **Imprisonment of Fraudulent Debtors Act 1958** or the **Judgment Debt Recovery Act 1984**) must be enforced in accordance with this Act and the Rules and not otherwise.
- 9 If by or under any Act other than this Act any jurisdiction, power or authority is vested in a magistrate—
 - (a) that jurisdiction, power or authority may be exercised in accordance with this Act and the Rules by the Court in all respects as that magistrate might have done; and
 - (b) the Court constituted in accordance with this Act and the Rules has jurisdiction, power or authority co-ordinate with the jurisdiction, power or authority of the magistrate.

Magistrates' Court Act 1989
No. 51 of 1989
Schedule 8—Savings and transitionals

- 10 If by or under any Act other than this Act any jurisdiction, power or authority is vested in a Magistrates' Court or in any magistrate or justice of the peace by the use of the words "a Magistrates' Court", "a Magistrates' Court constituted by a magistrate", "a magistrate proceeding in chambers", "a magistrate" or "a justice" or by any words referring to a Magistrates' Court or to any magistrate or justice of the peace, that jurisdiction, power or authority may be exercised by the Court in accordance with this Act and the Rules.
- 11 Unless the context otherwise requires, any reference in any Act or in any subordinate instrument or in any document or writing of any kind whatsoever to a process, summons, warrant or other thing specified in column 1 of the Table is to be taken to refer to the process, summons, warrant or other thing specified opposite it in column 2 of the Table.

TABLE

<i>Column 1</i>	<i>Column 2</i>
Information	Charge
Preliminary examination	Committal proceeding
Warrant to apprehend	Warrant to arrest
Warrant to search	Search warrant
Warrant of distress	Warrant to seize property
Warrant of commitment	Warrant to imprison, warrant to detain in a youth training centre or remand warrant, whichever is appropriate

- 12 (1) The **Magistrates' Courts Act 1971** and the **Magistrates (Summary Proceedings) Act 1975** continue, despite their repeal and despite any rule of law to the contrary, to apply to—

- (a) any action or matter pending in a Magistrates' Court immediately before the commencement of Part 2 unless at that commencement—
 - (i) the hearing of that action or matter had not commenced; or
 - (ii) no evidence had been given on the hearing of that action or matter; and
 - (b) any re-hearing or review of, or appeal from, any action or matter—
 - (i) that was concluded before the commencement of Part 2; or
 - (ii) to which, by virtue of paragraph (a), the **Magistrates' Courts Act 1971** and the **Magistrates (Summary Proceedings) Act 1975** continue to apply; and
 - (c) the enforcement of any order made in any action or matter referred to in paragraph (b).
- (2) Part VIIA of the **Magistrates (Summary Proceedings) Act 1975** continues, despite its repeal, to apply to enforcement orders made under that Part before the commencement of section 99 of this Act.
- (3) Section 168 of the **Magistrates (Summary Proceedings) Act 1975** continues, despite its repeal, to apply in relation to a proceeding for an offence if, at the commencement of section 130, the hearing of that proceeding had commenced.
- (4) Subclause (1) applies except as otherwise expressly provided by the Rules with respect to civil proceedings.
- 13 All fines imposed before the commencement of section 97 and not recovered before that commencement may be recovered in all respects as if this Act had not been passed.

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*	*	*	*	*	Sch. 8 cl. 14 inserted by No. 49/1990 s. 3, repealed by No. 10/1999 s. 8(4).
*	*	*	*	*	Sch. 8 cl. 15 inserted by No. 23/1991 s. 10, repealed by No. 10/1999 s. 8(4).
16	The amendment of section 58(1)(b) made by section 29 of the Law and Justice Legislation Amendment Act 1997 applies to warrants issued before as well as after the commencement of section 29 of that Act.				Sch. 8 cl. 16 inserted by No. 44/1997 s. 31.
17	The amendment of Schedule 7 made by section 30(2) of the Law and Justice Legislation Amendment Act 1997 applies to warrants issued before as well as after the commencement of section 30(2) of that Act.				Sch. 8 cl. 17 inserted by No. 44/1997 s. 31.
*	*	*	*	*	Sch. 8 cl. 18 inserted by No. 81/1997 s. 13, repealed by No. 10/1999 s. 8(4).
19	The amendments of section 126 of this Act made by section 24(1) and (2) of the Magistrates' Court (Amendment) Act 1999 apply to proceedings, whether commenced before or after the commencement of that section of that Act.				Sch. 8 cl. 19 inserted by No. 10/1999 s. 24(3).
20	(1) Schedule 5, as substituted by section 4 of the Magistrates' Court (Amendment) Act 1999 applies only with respect to the hearing of charges filed after the commencement of that section.				Sch. 8 cl. 20 inserted by No. 10/1999 s. 7.

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Sch. 8 cl. 21
inserted by
No. 10/1999
s. 16.

- (2) Schedule 5, as in force immediately before the commencement of section 4 of the **Magistrates' Court (Amendment) Act 1999**, continues to apply, despite its repeal, with respect to the hearing of charges filed before that commencement.
- (3) Any amendment of this Act made by a provision of Part 2 of the **Magistrates' Court (Amendment) Act 1999** does not alter the nature of a committal proceeding from that existing immediately before the commencement of that provision.

- 21 (1) The amendments of this Act made by sections 9, 13 and 14 of the **Magistrates' Court (Amendment) Act 1999** apply only with respect to appeals to the County Court where notice of appeal is given on or after 1 July 1999.
- (2) The repeal of section 87 effected by section 10 of the **Magistrates' Court (Amendment) Act 1999** does not affect an appeal to the County Court where the notice of appeal was given before 1 July 1999.
- (3) Section 88AA, as inserted by section 11 of the **Magistrates' Court (Amendment) Act 1999**, applies only with respect to appeals to the County Court where notice of appeal is given on or after 1 July 1999.

Sch. 8 cl. 22
inserted by
No. 92/2000
s. 10.

- 22 (1) The amendments of sections 34 and 35 of this Act made by section 4 of the **Magistrates' Court (Committal Proceedings) Act 2000** apply only with respect to summonses issued on or after the commencement of that section of that Act.

- (2) The amendments of section 56A of this Act made by section 6 of the **Magistrates' Court (Committal Proceedings) Act 2000** apply only with respect to applications made under section 56A(1), and to proceedings held under orders made on such applications, on or after the commencement of that section of that Act.
- (3) Subject to subclauses (4) to (8), an amendment of Schedule 5 to this Act made by a provision of Part 2 of the **Magistrates' Court (Committal Proceedings) Act 2000** applies only with respect to the hearing of charges filed in the Court on or after the commencement of that provision.
- (4) If a defendant has given a notice under clause 12(1)(a) of Schedule 5 to this Act before the commencement of section 7(9) of the **Magistrates' Court (Committal Proceedings) Act 2000** but an application for leave to cross-examine the witness has not been made before that commencement, the notice has effect on and after that commencement as if it were a notice given in accordance with that clause as amended by that Act and the application for leave shall be made and determined in accordance with Schedule 5 to this Act as amended by that Act.
- (5) If an application for leave to cross-examine a witness at a committal proceeding has been refused before the commencement of section 7(9) of the **Magistrates' Court (Committal Proceedings) Act 2000** but the committal proceeding has not been held before that commencement, the Court may, on the application of the defendant, grant leave to the defendant to give a fresh notice under clause 12(1)(a) of Schedule 5 to this Act as amended by that Act if satisfied that it is in the interests of justice to do so.

- (6) Subject to subclause (5), a notice that the defendant intends to seek leave to cross-examine a witness at a committal proceeding may be given, and an application for leave to cross-examine a witness at a committal proceeding may be made, on or after the commencement of section 7(9) of the **Magistrates' Court (Committal Proceedings) Act 2000** in accordance with Schedule 5 to this Act as amended by that Act, irrespective of when the charge to which the proceeding relates was filed in the Court.
- (7) If leave to cross-examine a witness to whom clause 13 of Schedule 5 to this Act applies has been granted before the commencement of section 8 of the **Magistrates' Court (Committal Proceedings) Act 2000** but the cross-examination has not commenced before that commencement, the amendment of that Schedule made by that section applies with respect to the cross-examination.
- (8) Clause 24A of Schedule 5 to this Act, as inserted by section 9 of the **Magistrates' Court (Committal Proceedings) Act 2000** applies irrespective of when the defendant was committed for trial.

Sch. 8 cl. 23
inserted by
No. 99/2000
s. 14 (as
amended by
No. 12/2001
s. 11).

- 23 Any amendment of this Act made by the Magistrates' Court (Infringements) Act 2000 applies to infringement notices, enforcement orders, warrants and custodial community permits issued before as well as after the commencement of that Act.
- 24 If the operation of clause 23 would result in an enforcement order expiring before the date section 11 of the **Magistrates' Court (Infringements) Act 2000** came into operation, the order expires on that date.

Sch. 8 cl. 24
inserted by
No. 99/2000
s. 14 (as
amended by
No. 12/2001
s. 11).

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| 25 Despite clauses 23 and 24, if an application to have an application for the revocation of an enforcement order referred to the Court under clause 10(6) of Schedule 7 was pending immediately before section 11 of the Magistrates' Court (Infringements) Act 2000 came into operation, the order remains in force until the registrar refuses the application for referral or, if the referral is made, until the Court revokes or refuses to revoke the order. | Sch. 8 cl. 25 inserted by No. 99/2000 s. 14 (as amended by No. 12/2001 s. 11). |
| 26 The amendment of item 49 in Schedule 4 to this Act made by the Drugs, Poisons and Controlled Substances (Amendment) Act 2001 applies to offences alleged to have been committed before as well as after the commencement of that Act. | Sch. 8 cl. 25 inserted by No. 61/2001 s. 12(2), re-numbered as Sch. 8 cl. 26 by No. 35/2002 s. 24(a). |
| 27 (1) The amendments made to this Act by sections 12, 13, 14, 15, 19 and 20 of the Criminal Justice Legislation (Miscellaneous Amendments) Act 2002 apply to a criminal proceeding commenced on or after the commencement of that Act.

(2) Section 128A as inserted by section 17 of the Criminal Justice Legislation (Miscellaneous Amendments) Act 2002 applies to a criminal proceeding for an offence, whether commenced before or after the commencement of section 17 of that Act. | Sch. 8 cl. 27 inserted by No. 35/2002 s. 24(b). |
| 28 The amendments of this Act made by section 6 of the Magistrates' Court (Koori Court) Act 2002 apply with respect to a proceeding for an offence, irrespective of when the offence was committed or the proceeding commenced. | Sch. 8 cl. 28 inserted by No. 27/2002 s. 9. |

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Sch. 8 cl. 29
inserted by
No. 39/2003
s. 10.

29 The amendments made to this Act by section 6 of the **Courts Legislation (Amendment) Act 2003** apply with respect to a proceeding for an offence, whether the offence is alleged to have been committed before or after the commencement of that section.

Sch. 8 cl. 30
inserted by
No. 31/2004
s. 8.

30 A person is eligible for appointment as a magistrate under section 7 if the person was, immediately before the commencement of section 4(2) of the **Courts Legislation (Judicial Appointments) Act 2004**, eligible for appointment under section 7(3)(b) as then in force.

Sch. 8 cl. 31
inserted by
No. 68/2004
s. 5.

31 The amendments made to this Act by sections 3 and 4 of the **Magistrates' Court (Increased Civil Jurisdiction) Act 2004** apply only with respect to proceedings commenced on or after the commencement of that Act.

Sch. 8 cl. 31A
inserted by
No. 15/2005
s. 12.

31A The amendment made to this Act by section 11 of the **Sentencing (Further Amendment) Act 2005** applies to a proceeding for an offence commenced on or after the commencement of that section, regardless of when the offence is alleged to have been committed.

Sch. 8 cl. 32
inserted by
No. 3/2005
s. 13.

32 The substitution of section 9 of this Act made by section 11 of the **Courts Legislation (Judicial Appointments and Other Amendments) Act 2005** does not affect an appointment made under section 9 as in force immediately before the commencement of section 11 of that Act and a magistrate who has been so appointed and who holds the office of acting magistrate immediately before that commencement continues in that office subject to section 9 as if section 9 had not been substituted.

Sch. 8 cl. 33
inserted by
No. 3/2005
s. 13.

33 The substitution of clause 11 in Part 2 of Schedule 1 to this Act made by section 12 of the **Courts Legislation (Judicial Appointments and Other Amendments) Act 2005** does not affect the remuneration of an acting magistrate applicable immediately before the commencement of section 12 of that Act and an acting

magistrate who receives remuneration under clause 11 immediately before that commencement continues to receive remuneration during the period of his or her appointment as if clause 11 had not been substituted.

- 34 (1) Subject to subclauses (2) and (3), the amendments of section 140 of this Act made by section 8 of the **Magistrates' Court (Judicial Registrars and Court Rules) Act 2005** do not affect the operation of any regulations made under that section of this Act.
- (2) If, but for subclause (1), a provision of the regulations made under section 140 would cease to have effect because of the repeal of the power conferred by that section to make the provision, the provision continues in operation until it is revoked or the first anniversary of the commencement of section 8 of the **Magistrates' Court (Judicial Registrars and Court Rules) Act 2005** (whichever first occurs).
- (3) A provision of the regulations made under section 140 is of no force or effect to the extent that it deals with a matter dealt with by a rule made under section 16(1A).
- (4) Despite the amendments of section 140 of this Act made by section 8 of the **Magistrates' Court (Judicial Registrars and Court Rules) Act 2005** and without limiting any other power to make regulations conferred by this Act, the Governor in Council may, until the first anniversary of the commencement of section 8 of the **Magistrates' Court (Judicial Registrars and Court Rules) Act 2005**, make regulations under that section revoking any provision of the regulations made under a power conferred by that section that is repealed by those amendments.

Sch. 8 cl. 34
inserted by
No. 19/2005
s. 10.

Sch. 8 cl. 35
inserted by
No. 87/2005
s. 33.

35 Savings provisions—instalment arrangements and payment plans

- (1) Despite the amendment of Schedule 7 by section 28 of the **Investigative, Enforcement and Police Powers Acts (Amendment) Act 2005**—
- (a) any instalment arrangement of a kind referred to in clause 3(2A) of Schedule 7 in force immediately before the commencement of section 28 of that Act continues to have effect and may be enforced in accordance with Schedule 7 as in force immediately before that commencement as if those amendments had not been made; and
 - (b) any certificate under clause 4(2) of Schedule 7 provided to a registrar under clause 4(1) of that Schedule which certifies as to a matter referred to in clause 4(2)(da) as in force immediately before the commencement of section 28 of that Act—
 - (i) continues to have effect as if those amendments had not been made; and
 - (ii) is a valid certificate for the purposes of enforcement under Schedule 7 of the infringement penalty and any prescribed costs to which that certificate relates; and
 - (c) clause 3A of Schedule 7 as in force immediately before the commencement of section 28 of that Act continues to have effect in respect of any instalment arrangement to which that clause applied immediately before that commencement as if clause 3A had not been amended by that Act.

- (2) Nothing in this clause prevents an instalment arrangement of a kind referred to in clause 3(2A) of Schedule 7 in force immediately before the commencement of section 28 of the **Investigative, Enforcement and Police Powers Acts (Amendment) Act 2005** being cancelled or revoked and a payment plan under Part 5 of Schedule 7 being offered and accepted in respect of any infringement penalty and prescribed costs to which that instalment arrangement applied.

35A An amendment made to this Act by a provision of section 40 or 41 of the **Crimes (Sexual Offences) Act 2006** applies only to a criminal proceeding commenced on or after the commencement of that provision.

Sch. 8 cl. 35A
inserted by
No. 2/2006
s. 41A (as
amended by
No. 76/2006
s. 13).

36 Validation of service of certain documents under Schedule 7

Sch. 8 cl. 36
inserted by
No. 32/2006
s. 89.

- (1) Despite anything to the contrary in section 49(1) of the **Interpretation of Legislation Act 1984**, if under or for the purposes of Part 2 of Schedule 7 to this Act as in force immediately before its repeal by section 176(2) of the **Infringements Act 2006**, any document had been served on a person by post to an authorised address and that document had been returned undelivered to its sender, that document—
- (a) must be taken to have been validly served on the day that is 14 days after the date specified in the document as the date of that document, despite it being returned to its sender as undelivered; and
- (b) any enforcement action taken under that Schedule must be taken to be a valid action under that Schedule.

(2) For the purposes of this section, *authorised address* means—

- (a) an address recorded in relation to a person in a register kept by a public statutory body (including, in relation to a director, alternate director or secretary of a company within the meaning of the Corporations Act, the Australian Securities and Investments Commission) if by law that person or another person is required to notify that public statutory body of any change in that address;
- (b) in relation to any document in respect of a transport infringement within the meaning of the **Transport Act 1983** or a ticket infringement within the meaning of that Act, an address provided by a person to an authorised officer or police member under section 218B of that Act after that officer or that member has requested the person to state his or her name and address because the officer or member believes on reasonable grounds that the person has committed a transport infringement or a ticket infringement, as the case requires.

Sch. 8 cl. 37
inserted by
No. 50/2006
s. 35.

- 37 (1) The amendments made to this Act by sections 15, 19, 20, 22, 25 to 28 and 31 to 34 of the Courts Legislation (Jurisdiction) Act 2006 apply with respect to a proceeding for an offence, irrespective of when the offence is alleged to have been committed or when the proceeding commenced.
- (2) An amendment made to this Act by a provision of section 16, 17, 18, 21(1), 23, 24, 29 or 30 of the **Courts Legislation (Jurisdiction) Act 2006** apply only with respect to proceedings commenced on or after the commencement of that provision.

- (3) The amendment made to this Act by section 21(2) of the **Courts Legislation (Jurisdiction) Act 2006** applies only to the sentencing of a person for an offence on or after the commencement of that section, irrespective of when the offence was committed or the finding of guilt was made.
- 38 A notice by the Minister published in the Government Gazette under section 4B or 4C of this Act before the commencement of section 4 of the **Magistrates' Court and Coroners Acts Amendment Act 2007** and in force immediately before that commencement is not affected by the substitution for those sections of a new section 4B effected by that section 4 and the notice continues to have effect as if it were a notice published under the new section 4B(1)(b). Sch. 8 cl. 38
inserted by
No. 36/2007
s. 7.
- 39 Section 50A as inserted by section 5 of the **Criminal Procedure Legislation Amendment Act 2008** applies with respect to a proceeding for an offence, irrespective of when the offence was committed or the proceeding commenced. Sch. 8 cl. 39
inserted by
No. 8/2008
s. 20.
- 40 Clause 3A of Schedule 2 as inserted by section 15 of the **Criminal Procedure Legislation Amendment Act 2008** applies to a contest mention hearing conducted on or after the commencement of section 15 of that Act. Sch. 8 cl. 40
inserted by
No. 8/2008
s. 20.
- 41 The amendment of this Act by section 16 of the **Criminal Procedure Legislation Amendment Act 2008** applies with respect to a defendant committed for trial on or after the commencement of section 16 of that Act. Sch. 8 cl. 41
inserted by
No. 8/2008
s. 20.

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Sch. 8 cl. 42
inserted by
No. 69/2009
s. 54(Sch. Pt 1
item 34.12).

42 This Act, as in force immediately before the commencement of the **Statute Law Amendment (Evidence Consequential Provisions) Act 2009**, continues to apply to a hearing that commenced before the day that Act commenced and that—

- (a) continued on or after that day; or
- (b) was adjourned until that day or a day after that day.

Sch. 8 cl. 43
inserted by
No. 68/2009
s. 97(Sch.
item 82.59).

43 The amendment of this Act by section 426 of the **Criminal Procedure Act 2009** applies to a committal proceeding if the relevant criminal proceeding commenced on or after the commencement of section 426 of that Act.

Sch. 8 cl. 44
inserted by
No. 68/2009
s. 97(Sch.
item 82.59).

44 (1) Section 118 as amended by section 435(1) of the **Criminal Procedure Act 2009** applies to an offence alleged to have been committed on or after the commencement of section 435(1) of that Act.

- (2) For the purposes of subclause (1), if an offence is alleged to have been committed between two dates, one before and one on or after the commencement of section 435(1) of the **Criminal Procedure Act 2009**, the offence is alleged to have been committed before that commencement.

Sch. 8 cl. 45
inserted by
No. 12/2010
s. 7.

45 **Transitional provision—Magistrates' Court Amendment (Assessment and Referral Court List) Act 2010**

The amendments made to this Act by section 5 of the **Magistrates' Court Amendment (Assessment and Referral Court List) Act 2010** apply to any proceeding, irrespective of when the offence to which the proceeding relates was committed or when the proceeding commenced, but does not apply to a proceeding in respect of an accused which was listed before the Court before the commencement of that section.

46 Transitional provisions—Bail Amendment Act 2010

Sch. 8 cl. 46
inserted by
No. 70/2010
s. 35.

- (1) On the commencement of section 29 of the **Bail Amendment Act 2010**, a bail justice holding office immediately before that commencement (other than a bail justice referred to in section 121 of this Act) is deemed to be a bail justice appointed under section 120A of this Act whose term of office expires—
- (a) in the case of a bail justice appointed before 1 January 1991, 1 year after the commencement of section 29 of that Act or on the bail justice attaining the age of 70 years, whichever first occurs;
 - (b) in the case of a bail justice appointed on or after 1 January 1991 and before 1 January 2000, 2 years after the commencement of section 29 of that Act or on the bail justice attaining the age of 70 years, whichever first occurs;
 - (c) in the case of a bail justice appointed on or after 1 January 2000 and before the commencement of section 29 of that Act, 3 years after the commencement of section 29 of that Act or on the bail justice attaining the age of 70 years, whichever first occurs.
- (2) On the commencement of section 29 of the **Bail Amendment Act 2010**—
- (a) an application for appointment as a bail justice that has been made but not determined before that commencement is to be taken to be an application made under section 120B of this Act; and

- (b) the applicant's completion before that commencement of the whole or part of a course of training that is subsequently prescribed for the purposes of section 120A(2)(e) may be relied on for the purposes of the application.
- (3) Section 121 as amended by section 30 of the **Bail Amendment Act 2010** applies to a person who commences to hold a prescribed office within the meaning of section 121 on or after the commencement of section 30 of that Act.
- (4) Section 122 as in force immediately before the commencement of section 31 of the **Bail Amendment Act 2010** continues to apply to any proceeding under section 122 existing immediately before the commencement of section 31 of that Act.

Sch. 8
new cl. 47
inserted by
No. 70/2013
s. 3(Sch. 1
item 27.2).

47 Transitional provisions—Justice Legislation Amendment Act 2012

This Act as amended by section 7 of the **Justice Legislation Amendment Act 2012** applies to any proceeding in the Assessment and Referral Court List, irrespective of whether the offence to which the proceeding relates was alleged to have been committed before, on or after the commencement of that section.

Sch. 8 cl. 48
inserted by
No. 26/2012
s. 25.

48 Transitional provisions—Courts and Sentencing Legislation Amendment Act 2012

This Act as amended by sections 22 and 23 of the **Courts and Sentencing Legislation Amendment Act 2012** applies to a proceeding for an offence or a contravention of sentence (including any offence constituted by such a contravention) irrespective of whether the offence or contravention is alleged to have been committed, or the sentence was

imposed, before or on or after the commencement of those sections.

49 Transitional provision—Criminal Procedure Amendment Act 2012

Sch. 8 cl. 49
inserted by
No. 48/2012
s. 40.

Section 78(5) as amended by section 38 of the **Criminal Procedure Amendment Act 2012** applies to a search warrant issued on or after the commencement of section 38 of that Act.

50 Courts Legislation Amendment (Reserve Judicial Officers) Act 2013

Sch. 8 cl. 50
inserted by
No. 5/2013
s. 40.

- (1) On and from the commencement of section 34 of the **Courts Legislation Amendment (Reserve Judicial Officers) Act 2013**, a person who held the office of acting magistrate under section 9 as in force immediately before its repeal who is not eligible to be a reserve magistrate under section 9A, but is eligible to be a magistrate under section 7, is taken to hold the office of magistrate as if he or she had been appointed as a magistrate under section 7 on the commencement of section 34 of the **Courts Legislation Amendment (Reserve Judicial Officers) Act 2013**.
- (2) On and from the commencement of section 34 of the **Courts Legislation Amendment (Reserve Judicial Officers) Act 2013**, a person other than a person referred to in subsection (1) who held the office of acting magistrate under section 9 as in force immediately before its repeal is taken to hold the office of reserve magistrate as if he or she had been appointed as a reserve magistrate under section 9A.

- (3) If a person referred to in subclause (2) was required to undertake the duties of a magistrate under section 9(4) as in force immediately before its repeal on a full time or sessional basis, on and from the commencement of section 34 of the **Courts Legislation Amendment (Reserve Judicial Officers) Act 2013**, that requirement continues until its expiry as if it were an engagement under section 9C.
- (4) If, immediately before the commencement of section 34 of the **Courts Legislation Amendment (Reserve Judicial Officers) Act 2013**, a person referred to in subclause (1) or (2) was assigned under section 93 of the **Coroners Act 2008** to be a coroner for the Coroners Court, that assignment continues until that person ceases to hold the office of magistrate or reserve magistrate or the assignment is revoked under that Act.
- (5) If, immediately before the commencement of section 34 of the **Courts Legislation Amendment (Reserve Judicial Officers) Act 2013**, a person referred to in subclause (1) or (2) was assigned under section 507 of the **Children, Youth and Families Act 2005** to be a magistrate for the Children's Court, that assignment continues until that person ceases to hold the office of magistrate or reserve magistrate or the assignment is revoked under that Act.
- (6) Unless inconsistent with the context or the subject matter, on and from the commencement of section 34 of the **Courts Legislation Amendment (Reserve Judicial Officers) Act 2013**, a reference in any Act (other than this Act or the **Courts Legislation Amendment (Reserve Judicial Officers) Act 2013**), subordinate instrument or any other document to an acting magistrate, being an acting magistrate

appointed under section 9 as in force immediately before its repeal, is to be construed as a reference to a reserve magistrate so far as the reference relates to any period on or after that commencement.

* * * * *

Sch. 8 cl. 51
inserted by
No. 5/2013
s. 40,
repealed by
No. 51/1989
Sch. 8
cl. 51(4).

**51A Transitional provision—Courts Legislation
Amendment (Judicial Officers) Act 2013**

Sch. 8 cl. 51A
inserted by
No. 63/2013
s. 48.

A reserve magistrate currently engaged by the Attorney-General under section 9C as in force immediately before the amendment of that section by the **Courts Legislation Amendment (Judicial Officers) Act 2013** is taken to have been engaged by the Chief Magistrate under section 9C as amended by that Act and his or her engagement continues and has effect accordingly.

**51B Transitional provision—Courts Legislation
Amendment (Judicial Officers) Act 2013—part-time
magistrates**

Sch. 8 cl. 51B
inserted by
No. 63/2013
s. 79.

A magistrate who was a part-time magistrate as defined in section 3(1) immediately before the repeal of that definition by the **Courts Legislation Amendment (Judicial Officers) Act 2013**, on and from that repeal—

- (a) continues to hold the office of magistrate;
and
- (b) is taken to be serving under a part-time service arrangement on the same terms as applied to the magistrate in his or her capacity as a part-time magistrate.

Sch. 8 cl. 52
inserted by
No. 58/2013
s. 52.

52 Savings—Open Courts Act 2013

- (1) Despite the repeal of section 126 by the **Open Courts Act 2013**, section 126 (as in force immediately before its repeal) continues to apply on and after its repeal in relation to a proceeding commenced to be heard (but not determined) by the Court before that repeal.
- (2) Despite the repeal of section 126 by the **Open Courts Act 2013**, an order made under section 126 (as in force immediately before its repeal) and in force at the date of that repeal—
 - (a) subject to paragraph (b), continues to apply on and after that repeal;
 - (b) may be set aside or varied in accordance with section 126 as if that section had not been repealed.

Note to
Sch. 8 cl. 52(2)
inserted by
No. 14/2026
s. 7.

Note

See also Division 2 of Part 7 of the **Open Courts Act 2013** and section 41A of the **Interpretation of Legislation Act 1984**.

* * * * *

Sch. 8 cl. 47
inserted by
No. 23/2012
s. 9,
repealed by
No. 70/2013
s. 3(Sch. 1
item 27.1).

Sch. 8 cl. 53
inserted by
No. 68/2013
s. 7.

53 Transitional—Courts and Other Justice Legislation Amendment Act 2013

- (1) Despite the amendment of section 4V by the **Courts and Other Justice Legislation Amendment Act 2013**, section 4V, as in force immediately before the commencement of section 5 of that Act, continues to apply to a proceeding that is in the Assessment and Referral List immediately before that commencement.

- (2) Despite the amendment of section 4X(2) by the **Courts and Other Justice Legislation Amendment Act 2013**, section 4X(2), as in force immediately before the commencement of section 6 of that Act, continues to apply to a proceeding that is in the Assessment and Referral List immediately before that commencement.

54 Transitional—Justice Legislation Further Amendment Act 2016

Sch. 8 cl. 54
inserted by
No. 3/2016
s. 7.

Each person who holds the office of Aboriginal elder or respected person immediately before the commencement of section 3 of the **Justice Legislation Further Amendment Act 2016** continues, on and from that commencement, to hold that office on the same terms and conditions as applied to the person immediately before that commencement, as if the person had been appointed by the Chief Executive Officer.

55 Transitional—Family Violence Protection Amendment Act 2017

Sch. 8 cl. 55
inserted by
No. 19/2017
s. 53.

- (1) The amendment made to section 4EA of this Act by section 50 of the **Family Violence Protection Amendment Act 2017** applies, on and after the commencement of section 50 of that Act, to the contravention or variation of a sentence (including any offence constituted by a contravention of a sentence)—
- (a) irrespective of when the offence to which that sentence relates was committed; and
 - (b) in the case of a contravention, irrespective of when the contravention occurred.
- (2) The amendment made to section 4F of this Act by section 51 of the **Family Violence Protection Amendment Act 2017** applies, on and after the commencement of section 51 of that Act, to a proceeding for an offence (other than an offence

constituted by a contravention of a sentence imposed by it) irrespective of when that offence was committed.

Sch. 8 cl. 56
inserted by
No. 33/2018
s. 45.

56 Transitional—Justice Legislation Amendment (Family Violence Protection and Other Matters) Act 2018—Specialist Family Violence Court Division

On and after the commencement of this clause, any reference in any Act, regulation, subordinate instrument or other document to the Family Violence Court Division is to be construed as a reference to the Specialist Family Violence Court Division—

- (a) so far as the reference relates to any period on or after that commencement; and
- (b) if not inconsistent with the subject matter.

Sch. 8 cl. 57
inserted by
No. 33/2018
s. 54.

57 Transitional and savings provisions—Justice Legislation Amendment (Family Violence Protection and Other Matters) Act 2018

- (1) The amendments to sections 57, 58 and 59 made by the **Justice Legislation Amendment (Family Violence Protection and Other Matters) Act 2018** do not affect the validity of any warrant issued in accordance with section 57 as in force immediately before its amendment or any action taken under such a warrant.
- (2) The amendments to sections 16, 57, 58 and 59 made by the **Justice Legislation Amendment (Family Violence Protection and Other Matters) Act 2018** do not affect the validity or operation of any rules of court made under any of those sections as in force immediately before those amendments.

58 Validation of certain actions by protective services officers

Sch. 8 cl. 58
inserted by
No. 39/2019
s. 15.

- (1) The execution by a protective services officer on or after 28 November 2011 and before 1 July 2014 of a warrant to arrest directed to generally all members of the police force is as valid as it would have been had section 63 authorised the execution of such a warrant at the time of execution.
- (2) The execution by a protective services officer on or after 1 July 2014 and before the commencement day of a warrant to arrest directed to generally all police officers is as valid as it would have been had the amendments to section 63 made by the amending Act been in operation at the time of execution.
- (3) In this clause—

amending Act means the **Police Legislation Amendment (Road Safety Camera Commissioner and Other Matters) Act 2019**;

commencement day means the day on which Part 4 of the amending Act came into operation.

59 Transitional—Justice Legislation Amendment (Criminal Procedure Disclosure and Other Matters) Act 2022

Sch. 8 cl. 59
inserted by
No. 1/2022
s. 24.

- (1) An appeal from a final order of the Court in a proceeding in which the Court was constituted by the Chief Magistrate who, at the time the proceeding commenced was a dual commission holder as a judge of the County Court and who, at the time at which the final order was made was a dual commission holder as a Judge of the Supreme Court, is to be made to the Court of Appeal.

- (2) For the avoidance of doubt, an appeal from a final order of the Court in a proceeding in which the Court was constituted by the Chief Magistrate who, at the time the final order was made was a dual commission holder as a judge of the County Court and who, on or after the commencement day is a dual commission holder as a Judge of the Supreme Court, is to be made to the Trial Division of the Supreme Court.
- (3) In this clause, *commencement day* means the day on which Part 3 of the **Justice Legislation Amendment (Criminal Procedure Disclosure and Other Matters) Act 2022** comes into operation.

Sch. 8
cl. 59AA
inserted by
No. 5/2025
s. 60.

59AA Transitional—Justice Legislation Amendment (Committals) Act 2025

The amendment made to section 25(1)(c)(ii) by the **Justice Legislation Amendment (Committals) Act 2025** applies only to a committal proceeding commenced on or after the commencement of that amendment.

Sch. 8 cl. 60
inserted by
No. 54/2025
s. 28.

60 Transitional provision—Justice Legislation Amendment (Community Safety) Act 2025

- (1) The amendments made by Subdivision 2 of Division 3 of Part 4 of the **Justice Legislation Amendment (Community Safety) Act 2025** apply only in relation to an offence alleged to have been committed on or after the commencement of that Subdivision.
- (2) For the purposes of subclause (1), if an offence is alleged to have been committed between 2 dates, one before and one on or after the commencement of Subdivision 2 of Division 3 of Part 4 of the **Justice Legislation Amendment (Community Safety) Act 2025**, the offence is alleged to have been committed before that commencement.

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1 General information

See www.legislation.vic.gov.au for Victorian Bills, Acts and current authorised versions of legislation and up-to-date legislative information.

Minister's second reading speech—

Legislative Assembly: 23 March 1989

Legislative Council: 26 May 1989

The long title for the Bill for this Act was "A Bill to establish the Magistrates' Court of Victoria, to provide for the constitution, jurisdiction and proceedings of that Court, to repeal the **Magistrates' Courts Act 1971** and the **Magistrates (Summary Proceedings) Act 1975**, to amend the **Bail Act 1977**, the **Crimes Act 1958**, the **Evidence Act 1958**, the **Interpretation of Legislation Act 1984** and certain other Acts and for other purposes."

The **Magistrates' Court Act 1989** was assented to on 14 June 1989 and came into operation as follows:

Section 16(4) on 15 June 1989: Special Gazette (No. 32) 15 June 1989 page 1; sections 16(5), 52, 141(3)(a)–(f) on 1 September 1989: Government Gazette 30 August 1989 page 2210; rest of Act on 1 September 1990: Government Gazette 25 July 1990 page 2216.

INTERPRETATION OF LEGISLATION ACT 1984 (ILA)

Style changes

Section 54A of the ILA authorises the making of the style changes set out in Schedule 1 to that Act.

References to ILA s. 39B

Sidenotes which cite ILA s. 39B refer to section 39B of the ILA which provides that where an undivided section or clause of a Schedule is amended by the insertion of one or more subsections or subclauses, the original section or clause becomes subsection or subclause (1) and is amended by the insertion of the expression "(1)" at the beginning of the original section or clause.

Interpretation

As from 1 January 2001, amendments to section 36 of the ILA have the following effects:

- **Headings**

All headings included in an Act which is passed on or after 1 January 2001 form part of that Act. Any heading inserted in an Act which was passed before 1 January 2001, by an Act passed on or after 1 January 2001, forms

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part of that Act. This includes headings to Parts, Divisions or Subdivisions in a Schedule; sections; clauses; items; tables; columns; examples; diagrams; notes or forms. See section 36(1A)(2A).

- **Examples, diagrams or notes**

All examples, diagrams or notes included in an Act which is passed on or after 1 January 2001 form part of that Act. Any examples, diagrams or notes inserted in an Act which was passed before 1 January 2001, by an Act passed on or after 1 January 2001, form part of that Act. See section 36(3A).

- **Punctuation**

All punctuation included in an Act which is passed on or after 1 January 2001 forms part of that Act. Any punctuation inserted in an Act which was passed before 1 January 2001, by an Act passed on or after 1 January 2001, forms part of that Act. See section 36(3B).

- **Provision numbers**

All provision numbers included in an Act form part of that Act, whether inserted in the Act before, on or after 1 January 2001. Provision numbers include section numbers, subsection numbers, paragraphs and subparagraphs. See section 36(3C).

- **Location of "legislative items"**

A "legislative item" is a penalty, an example or a note. As from 13 October 2004, a legislative item relating to a provision of an Act is taken to be at the foot of that provision even if it is preceded or followed by another legislative item that relates to that provision. For example, if a penalty at the foot of a provision is followed by a note, both of these legislative items will be regarded as being at the foot of that provision. See section 36B.

- **Other material**

Any explanatory memorandum, table of provisions, endnotes, index and other material printed after the Endnotes does not form part of an Act. See section 36(3)(3D)(3E).

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2 Table of Amendments

This publication incorporates amendments made to the **Magistrates' Court Act 1989** by Acts and subordinate instruments.

Dangerous Goods (Amendment) Act 1989, No. 48/1989 (as amended by No. 34/1990)

Assent Date: 14.6.89
Commencement Date: 28.6.89: Government Gazette 28.6.89 p. 1558
Current State: All of Act in operation

Magistrates' Court Act 1989, No. 51/1989

Assent Date: 14.6.89
Commencement Date: Sch. 8 cl. 51 inserted on 27.2.13 by No. 5/2013 s. 40: s. 2(1); s. 154 inserted on 25.4.20 by No. 11/2020 s. 38; s. 2 (as amended by No. 27/2020 s. 14); s. 140A(4) inserted on 29.3.22 by No. 1/2022 s. 22: Special Gazette (No. 157) 29.3.22 p. 1
Note: Sch. 8 cl. 51(4) repealed Sch. 8 cl. 51 on 27.2.15; s. 154 repealed Pt 9 (ss 151–154) on 26.4.21; s. 140A(4) repealed s. 140A on 29.3.24
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Second-Hand Dealers and Pawnbrokers Act 1989, No. 54/1989 (as amended by No. 34/1990)

Assent Date: 14.6.89
Commencement Date: S. 35(5) on 10.9.90: Government Gazette 5.9.90 p. 2680
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Children and Young Persons Act 1989, No. 56/1989 (as amended by No. 93/1990)

Assent Date: 14.6.89
Commencement Date: S. 286(Sch. 2 items 11.1, 11.2) on 23.9.91: Government Gazette 28.8.91 p. 2368
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Road Safety (Amendment) Act 1990, No. 5/1990

Assent Date: 3.4.90
Commencement Date: S. 20(4)(a)(b) on 8.5.90: Special Gazette (No. 20) 8.5.90 p. 1
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Occupational Health and Safety (Miscellaneous Amendment) Act 1990, No. 11/1990 (as amended by No. 34/1990)

Assent Date: 24.4.90
Commencement Date: 1.9.90: Government Gazette 15.8.90 p. 2473
Current State: All of Act in operation

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Courts (Children's and Magistrates') Act 1990, No. 34/1990

Assent Date: 13.6.90
Commencement Date: S. 4(Sch. 3 items 1–25) on 1.9.90: Government Gazette 25.7.90 p. 2216
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Magistrates' Court (Amendment) Act 1990, No. 49/1990

Assent Date: 28.9.90
Commencement Date: Ss 1, 2, 5 on 28.9.90: s. 2(1); ss 3, 4 on 1.9.90: s. 2(2)
Current State: All of Act in operation

Courts (Amendment) Act 1990, No. 64/1990

Assent Date: 20.11.90
Commencement Date: Ss 16, 20(Sch. items 4.1–4.5) on 1.1.91: Government Gazette 19.12.90 p. 3750
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Crimes (Sexual Offences) Act 1991, No. 8/1991

Assent Date: 16.4.91
Commencement Date: Ss 12–14, 16(1)(a)(c)(e)(f)(2) on 5.8.91: Government Gazette 24.7.91 p. 2026; ss 15, 16(1)(b)(d) on 20.12.94: Government Gazette 15.12.94 p. 3308
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Crimes Legislation (Miscellaneous Amendments) Act 1991, No. 23/1991

Assent Date: 31.5.91
Commencement Date: 31.5.91: s. 2.
Current State: All of Act in operation

Courts (Case Transfer) Act 1991, No. 43/1991

Assent Date: 18.6.91
Commencement Date: S. 38 on 1.10.91: Government Gazette 17.7.91 p. 1930
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Pollution of Waters by Oil and Noxious Substances (Amendment) Act 1991, No. 46/1991

Assent Date: 25.6.91
Commencement Date: 1.3.92: Government Gazette 19.2.92 p. 378
Current State: All of Act in operation

Sentencing Act 1991, No. 49/1991

Assent Date: 25.6.91
Commencement Date: 22.4.92: Government Gazette 15.4.92 p. 898
Current State: All of Act in operation

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Crimes (Rape) Act 1991, No. 81/1991

Assent Date: 3.12.91
Commencement Date: S. 10(Sch. items 2.1, 2.2) on 1.1.92: Government Gazette 18.12.91 p. 3486
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Crimes (Confiscation of Profits) (Amendment) Act 1991, No. 90/1991

Assent Date: 10.12.91
Commencement Date: S. 35 on 1.9.92: Government Gazette 12.8.92 p. 2179
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Children and Young Persons (Amendment) Act 1992, No. 69/1992

Assent Date: 24.11.92
Commencement Date: S. 35 on 22.2.93: Government Gazette 28.1.93 p. 2179
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Employee Relations Act 1992, No. 83/1992

Assent Date: 24.11.92
Commencement Date: S. 181 on 4.1.93: Special Gazette (No. 63) 27.11.92 p. 1
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Evidence (Unsworn Evidence) Act 1993, No. 12/1993

Assent Date: 11.5.93
Commencement Date: 11.5.93: s. 2
Current State: All of Act in operation

Historic Shipwrecks (Amendment) Act 1993, No. 67/1993

Assent Date: 21.9.93
Commencement Date: 21.9.93: s. 2
Current State: All of Act in operation

Summary Offences (Stolen Cattle) Act 1993, No. 71/1993

Assent Date: 5.10.93
Commencement Date: 5.10.93: s. 2
Current State: All of Act in operation

Crimes (Amendment) Act 1993, No. 129/1993

Assent Date: 14.12.93
Commencement Date: S. 9(3) on 1.6.94: s. 2(3)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Financial Management Act 1994, No. 18/1994

Assent Date: 10.5.94
Commencement Date: Pt 1 (ss 1–8), ss 60, 61 on 10.5.94: s. 2(1); rest of Act on 1.7.94: s. 2(2)
Current State: All of Act in operation

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Equipment (Public Safety) Act 1994, No. 21/1994

Assent Date: 17.5.94
Commencement Date: S. 39 on 1.12.94: s. 2(3)
Current State: This information relates only to the provision/s
amending the **Magistrates' Court Act 1989**

Magistrates' Court (Amendment) Act 1994, No. 33/1994

Assent Date: 31.5.94
Commencement Date: Ss 1, 2 on 31.5.94: s. 2(1); s. 27(5) on 14.12.93:
s. 2(2); ss 3–27(4), 28 on 24.10.94: Government
Gazette 20.10.94 p. 2789
Current State: All of Act in operation

Public Prosecutions Act 1994, No. 43/1994

Assent Date: 7.6.94
Commencement Date: Ss 1–3 on 7.6.94: s. 2(1); rest of Act on 1.7.94: s. 2(3)
Current State: All of Act in operation

Valuation of Land (Amendment) Act 1994, No. 91/1994

Assent Date: 6.12.94
Commencement Date: S. 36(7) on 1.1.95: s. 2(2)
Current State: This information relates only to the provision/s
amending the **Magistrates' Court Act 1989**

Prostitution Control Act 1994, No. 102/1994

Assent Date: 13.12.94
Commencement Date: Ss 1, 2 on 13.12.94: s. 2(1); rest of Act on 13.6.95:
s. 2(3)
Current State: All of Act in operation

Constitution (Court of Appeal) Act 1994, No. 109/1994

Assent Date: 20.12.94
Commencement Date: Pt 1 (ss 1, 2) on 20.12.94: s. 2(1); rest of Act on 7.6.95:
Special Gazette (No. 41) 23.5.95 p. 1
Current State: All of Act in operation

Courts (General Amendment) Act 1995, No. 9/1995

Assent Date: 26.4.95
Commencement Date: Ss 10, 11(3) on 27.4.95: Government Gazette 27.4.95
p. 973
Current State: This information relates only to the provision/s
amending the **Magistrates' Court Act 1989**

Judicial Remuneration Tribunal Act 1995, No. 22/1995

Assent Date: 16.5.95
Commencement Date: S. 27 on 28.9.95: Government Gazette 28.9.95 p. 2731
Current State: This information relates only to the provision/s
amending the **Magistrates' Court Act 1989**

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Equal Opportunity Act 1995, No. 42/1995

Assent Date: 14.6.95
Commencement Date: S. 224 on 5.10.95: Government Gazette 28.9.95 p. 2731; Sch. 2 item 24 on 1.1.96: Government Gazette 21.12.95 p. 3571
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Infertility Treatment Act 1995, No. 63/1995

Assent Date: 27.6.95
Commencement Date: S. 169 on 1.1.98: s. 2(4)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Heritage Act 1995, No. 93/1995

Assent Date: 5.12.95
Commencement Date: S. 218(1)(Sch. 2 item 4) on 23.5.96: Government Gazette 23.5.96 p. 1248
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Miscellaneous Acts (Health and Justice) Amendment Act 1995, No. 99/1995
(as amended by No. 73/1996)

Assent Date: 5.12.95
Commencement Date: 5.12.95
Current State: All of Act in operation

Legal Practice Act 1996, No. 35/1996

Assent Date: 6.11.96
Commencement Date: S. 453(Sch. 1 items 53.1–53.9) on 1.1.97: s. 2(3)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Corrections (Amendment) Act 1996, No. 45/1996

Assent Date: 26.11.96
Commencement Date: S. 18(Sch. 2 items 9.1–9.4) on 6.2.97: Government Gazette 6.2.97 p. 257
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Courts and Tribunals (General Amendment) Act 1996, No. 64/1996

Assent Date: 17.12.96
Commencement Date: Ss 24–40 on 1.4.97: Government Gazette 20.3.97 p. 619
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Firearms Act 1996, No. 66/1996 (as amended by No. 26/1997)

Assent Date: 17.12.96
Commencement Date: S. 201(3) on 31.1.98: s. 2(3)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

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Magistrates' Court (Amendment) Act 1996, No. 70/1996

Assent Date: 17.12.96
Commencement Date: Ss 4, 5(1), 8 on 1.9.90: s. 3(2); ss 6, 7, 9–12 on 14.11.96: s. 3(3); ss 1, 2, 3, 5(2)–(5), 13, 14 on 17.12.96: s. 3(1)
Current State: All of Act in operation

Miscellaneous Acts (Further Omnibus Amendments) Act 1996, No. 73/1996

Assent Date: 17.12.96
Commencement Date: S. 61 on 17.12.96: s. 2(1)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Evidence (Audio Visual and Audio Linking) Act 1997, No. 4/1997

Assent Date: 22.4.97
Commencement Date: Ss 7, 8 on 22.12.97: Government Gazette 18.12.97 p. 3612
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Police and Corrections (Amendment) Act 1997, No. 26/1997

Assent Date: 20.5.97
Commencement Date: S. 55 on 2.10.97: Government Gazette 2.10.97 p. 2731
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Law and Justice Legislation Amendment Act 1997, No. 44/1997

Assent Date: 11.6.97
Commencement Date: Ss 27–31 on 11.6.97: s. 2(1)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Sentencing and Other Acts (Amendment) Act 1997, No. 48/1997

Assent Date: 11.6.97
Commencement Date: Pt 7 (ss 64, 65, 66(2)–(4)) on 1.9.97: s. 2(2); s. 66(1) on 1.7.98: s. 2(4)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Sentencing (Amendment) Act 1997, No. 69/1997

Assent Date: 18.11.97
Commencement Date: Ss 26–29 on 18.11.97: s. 2(1)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Crimes (Amendment) Act 1997, No. 81/1997

Assent Date: 2.12.97
Commencement Date: Ss 12, 13 on 1.1.98: s. 2(2)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

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Law and Justice Legislation (Further Amendment) Act 1997, No. 84/1997

Assent Date: 2.12.97
Commencement Date: S. 52 on 1.8.98: s. 2(8)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Accident Compensation (Miscellaneous Amendment) Act 1997, No. 107/1997

Assent Date: 23.12.97
Commencement Date: S. 75 on 23.12.97: s. 2(1)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Confiscation Act 1997, No. 108/1997

Assent Date: 23.12.97
Commencement Date: S. 154 on 1.7.98: Government Gazette 25.6.98 p. 1561
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Health Services (Amendment) Act 1998, No. 13/1998

Assent Date: 28.4.98
Commencement Date: 28.4.98: s. 2
Current State: All of Act in operation

State Trustees (Amendment) Act 1998, No. 15/1998

Assent Date: 28.4.98
Commencement Date: S. 9 on 1.8.98: s. 2(3)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Miscellaneous Acts (Omnibus No. 1) Act 1998, No. 43/1998

Assent Date: 26.5.98
Commencement Date: Ss 45, 46 on 26.5.98: s. 2(1)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Public Sector Reform (Miscellaneous Amendments) Act 1998, No. 46/1998
(as amended by No. 12/1999)

Assent Date: 26.5.98
Commencement Date: S. 7(Sch. 1) on 1.7.98: s. 2(2)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Classification (Publications, Films and Computer Games) (Enforcement) (Amendment) Act 1998, No. 60/1998

Assent Date: 27.10.98
Commencement Date: S. 17 on 1.1.99: s. 2(2)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Melbourne City Link (Amendment) Act 1998, No. 102/1998

Assent Date: 1.12.98
Commencement Date: S. 44 on 1.12.98: s. 2(1)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

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Magistrates' Court (Amendment) Act 1999, No. 10/1999

Assent Date: 11.5.99
Commencement Date: Ss 21–24, 31(1)(2) on 11.5.99: s. 2(1); ss 4–7, 8(1)–(4), 9–16 on 1.7.99: s. 2(2)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Superannuation Acts (Further Amendment) Act 1999, No. 13/1999

Assent Date: 11.5.99
Commencement Date: Ss 5, 6 on 7.5.96: s. 2(2)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Crimes (Criminal Trials) Act 1999, No. 35/1999

Assent Date: 8.6.99
Commencement Date: S. 36 on 1.9.99: s. 2(3)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Electricity Industry Acts (Further Amendment) Act 1999, No. 36/1999

Assent Date: 8.6.99
Commencement Date: S. 26 on 8.6.99: s. 2(1)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Gas Industry Acts (Further Amendment) Act 1999, No. 39/1999

Assent Date: 8.6.99
Commencement Date: S. 39 on 8.6.99: s. 2(1)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Prostitution Control (Amendment) Act 1999, No. 44/1999

Assent Date: 8.6.99
Commencement Date: S. 34 on 8.6.99: s. 2(1)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Courts and Tribunals Legislation (Amendment) Act 2000, No. 1/2000

Assent Date: 28.3.00
Commencement Date: S. 6 on 29.3.00: s. 2(1); s. 5 on 1.7.00: s. 2(2)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Environment Protection (Enforcement and Penalties) Act 2000, No. 49/2000

Assent Date: 14.6.00
Commencement Date: S. 4 on 9.7.00: s. 2(3)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Courts and Tribunals Legislation (Further Amendment) Act 2000, No. 51/2000

Assent Date: 5.9.00
Commencement Date: Ss 4, 7–9 on 6.9.00: s. 2(1); ss 5, 6 on 1.1.01: s. 2(3)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

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Juries Act 2000, No. 53/2000

Assent Date: 12.9.00
Commencement Date: S. 97 on 1.8.01: s. 2(3)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Electricity Industry Legislation (Miscellaneous Amendments) Act 2000, No. 69/2000

Assent Date: 21.11.00
Commencement Date: S. 57 on 1.1.01: s. 2(4)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Statute Law Revision Act 2000, No. 74/2000

Assent Date: 21.11.00
Commencement Date: S. 3(Sch. 1 item 75) on 22.11.00: s. 2(1)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Magistrates' Court (Committal Proceedings) Act 2000, No. 92/2000

Assent Date: 5.12.00
Commencement Date: Ss 4–10 on 1.7.01: s. 2(2)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Information Privacy Act 2000, No. 98/2000

Assent Date: 12.12.00
Commencement Date: S. 75 on 1.9.01: s. 2(2)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Magistrates' Court (Infringements) Act 2000, No. 99/2000 (as amended by No. 12/2001)

Assent Date: 12.12.00
Commencement Date: Ss 3–14 on 1.7.01: s. 2(3)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Health Records Act 2001, No. 2/2001

Assent Date: 10.4.01
Commencement Date: S. 110 on 1.7.02: s. 2(2)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Statute Law Amendment (Authorised Deposit-taking Institutions) Act 2001, No. 11/2001

Assent Date: 8.5.01
Commencement Date: S. 3(Sch. item 44) on 1.6.01: s. 2(2)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

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Constitution (Supreme Court) Act 2001, No. 12/2001

Assent Date: 22.5.01
Commencement Date: S. 7 on 23.5.01: s. 2(1)
Current State: This information relates only to the provision/s
amending the **Magistrates' Court Act 1989**

Food (Amendment) Act 2001, No. 14/2001

Assent Date: 22.5.01
Commencement Date: S. 34 on 1.1.02: s. 2(3)
Current State: This information relates only to the provision/s
amending the **Magistrates' Court Act 1989**

Judicial and Other Pensions Legislation (Amendment) Act 2001, No. 19/2001

Assent Date: 29.5.01
Commencement Date: S. 16 on 30.5.01: s. 2
Current State: This information relates only to the provision/s
amending the **Magistrates' Court Act 1989**

Gas Industry Legislation (Miscellaneous Amendments) Act 2001, No. 32/2001

Assent Date: 19.6.01
Commencement Date: S. 35 on 1.9.01: s. 2(2)
Current State: This information relates only to the provision/s
amending the **Magistrates' Court Act 1989**

Corporations (Consequential Amendments) Act 2001, No. 44/2001

Assent Date: 27.6.01
Commencement Date: S. 3(Sch. item 77) on 15.7.01: s. 2
Current State: This information relates only to the provision/s
amending the **Magistrates' Court Act 1989**

Corrections (Custody) Act 2001, No. 45/2001

Assent Date: 27.6.01
Commencement Date: S. 43 on 1.3.02: s. 2(2)
Current State: This information relates only to the provision/s
amending the **Magistrates' Court Act 1989**

Drugs, Poisons and Controlled Substances (Amendment) Act 2001, No. 61/2001

Assent Date: 23.10.01
Commencement Date: S. 12 on 1.1.02: s. 2(2)
Current State: This information relates only to the provision/s
amending the **Magistrates' Court Act 1989**

**Classification (Publications, Films and Computer Games) (Enforcement)
(Amendment) Act 2001, No. 69/2001**

Assent Date: 7.11.01
Commencement Date: S. 19 on 8.11.01: s. 2(1)
Current State: This information relates only to the provision/s
amending the **Magistrates' Court Act 1989**

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Road Safety (Further Amendment) Act 2001, No. 92/2001

Assent Date: 11.12.01
Commencement Date: S. 31 on 21.12.01: Government Gazette 13.12.01 p. 3061
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Sentencing (Amendment) Act 2002, No. 2/2002 (as amended by No. 13/2003)

Assent Date: 26.3.02
Commencement Date: S. 10 on 2.5.02: Government Gazette 2.5.02 p. 789; s. 11 on 17.2.03: Government Gazette 6.2.03 p. 190
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Judicial Remuneration Tribunal (Amendment) Act 2002, No. 4/2002

Assent Date: 3.4.02
Commencement Date: S. 12(4) on 1.1.02: s. 2(2)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Statute Law (Further Revision) Act 2002, No. 11/2002

Assent Date: 23.4.02
Commencement Date: S. 3(Sch. 1 item 43) on 24.4.02: s. 2(1)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Electoral Act 2002, No. 23/2002

Assent Date: 12.6.02
Commencement Date: S. 199 on 1.9.02: Government Gazette 29.8.02 p. 2333
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Magistrates' Court (Amendment) Act 2002, No. 26/2002

Assent Date: 12.6.02
Commencement Date: 12.6.02: s. 2
Current State: All of Act in operation

Magistrates' Court (Koori Court) Act 2002, No. 27/2002

Assent Date: 12.6.02
Commencement Date: Ss 4–9 on 13.6.02: s. 2(1)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Criminal Justice Legislation (Miscellaneous Amendments) Act 2002, No. 35/2002

Assent Date: 18.6.02
Commencement Date: Ss 12–24, 28(Sch. item 4) on 19.6.02: s. 2(1)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Environment Protection (Resource Efficiency) Act 2002, No. 37/2002

Assent Date: 18.6.02
Commencement Date: S. 53 on 19.6.02: s. 2(1)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

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Sports Event Ticketing (Fair Access) Act 2002, No. 47/2002

Assent Date: 22.10.02
Commencement Date: S. 45 on 23.10.02: s. 2
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Crimes (Property Damage and Computer Offences) Act 2003, No. 10/2003

Assent Date: 6.5.03
Commencement Date: S. 12 on 7.5.03: s. 2
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Firearms (Trafficking and Handgun Control) Act 2003, No. 28/2003

Assent Date: 20.5.03
Commencement Date: S. 76 on 1.7.03: Special Gazette (No. 130) 1.7.03 p. 1
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Courts Legislation (Amendment) Act 2003, No. 39/2003

Assent Date: 11.6.03
Commencement Date: Ss 5–10 on 12.6.03: s. 2(1)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Australian Crime Commission (State Provisions) Act 2003, No. 52/2003

Assent Date: 16.6.03
Commencement Date: S. 52(Sch. 1 item 8) on 17.6.03: s. 2(1)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Heritage (Amendment) Act 2003, No. 74/2003

Assent Date: 21.10.03
Commencement Date: S. 14 on 22.10.03: s. 2
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Cemeteries and Crematoria Act 2003, No. 80/2003

Assent Date: 11.11.03
Commencement Date: S. 184 on 1.7.05: s. 2
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Road Safety (Amendment) Act 2003, No. 94/2003

Assent Date: 25.11.03
Commencement Date: S. 45 on 1.1.05: s. 2(3)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Fisheries (Further Amendment) Act 2003, No. 108/2003

Assent Date: 9.12.03
Commencement Date: S. 22 on 10.12.03: s. 2(1)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

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No. 51 of 1989
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Courts Legislation (Funds in Court) Act 2004, No. 30/2004

Assent Date: 1.6.04
Commencement Date: Ss 6, 14 on 1.7.04: s. 2
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Courts Legislation (Judicial Appointments) Act 2004, No. 31/2004

Assent Date: 1.6.04
Commencement Date: Ss 3–8 on 2.6.04: s. 2
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Judicial Salaries Act 2004, No. 38/2004

Assent Date: 8.6.04
Commencement Date: S. 14 on 9.6.04: s. 2
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Mitcham-Frankston Project Act 2004, No. 39/2004

Assent Date: 8.6.04
Commencement Date: S. 260 on 24.9.04: Special Gazette (No. 206) 22.9.04 p. 1
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Transport Legislation (Miscellaneous Amendments) Act 2004, No. 49/2004

Assent Date: 16.6.04
Commencement Date: S. 40 on 17.6.04: s. 2(1)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Crimes (Dangerous Driving) Act 2004, No. 59/2004

Assent Date: 12.10.04
Commencement Date: S. 10 on 13.10.04: s. 2
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Sentencing (Superannuation Orders) Act 2004, No. 65/2004

Assent Date: 12.10.04
Commencement Date: S. 4(2) on 13.10.04: s. 2
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Magistrates' Court (Increased Civil Jurisdiction) Act 2004, No. 68/2004

Assent Date: 19.10.04
Commencement Date: 1.1.05: s. 2
Current State: All of Act in operation

Magistrates' Court (Family Violence) Act 2004, No. 77/2004

Assent Date: 9.11.04
Commencement Date: Ss 3–5 on 1.4.05: s. 2(4)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

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Occupational Health and Safety Act 2004, No. 107/2004

Assent Date: 21.12.04
Commencement Date: S. 181 on 1.7.05: s. 3(1)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Public Administration Act 2004, No. 108/2004

Assent Date: 21.12.04
Commencement Date: S. 117(1)(Sch. 3 item 118) on 5.4.05: Government Gazette 31.3.05 p. 602
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Corrections (Transition Centres and Custodial Community Permits) Act 2005, No. 2/2005

Assent Date: 5.4.05
Commencement Date: S. 9 on 1.8.05: s. 2(3)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Courts Legislation (Judicial Appointments and Other Amendments) Act 2005, No. 3/2005

Assent Date: 5.4.05
Commencement Date: Ss 16, 26–28 on 6.4.05: s. 2(1); ss 10–13 on 1.5.05: s. 2(2)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Sentencing (Further Amendment) Act 2005, No. 15/2005

Assent Date: 10.5.05
Commencement Date: Ss 11, 12 on 11.5.05: s. 2
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Courts Legislation (Judicial Conduct) Act 2005, No. 16/2005

Assent Date: 24.5.05
Commencement Date: S. 8 on 28.4.06: Special Gazette (No. 119) 28.4.06 p. 1
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Legal Profession (Consequential Amendments) Act 2005, No. 18/2005

Assent Date: 24.5.05
Commencement Date: S. 18(Sch. 1 item 63) on 12.12.05: Government Gazette 1.12.05 p. 2781
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Magistrates' Court (Judicial Registrars and Court Rules) Act 2005, No. 19/2005

Assent Date: 24.5.05
Commencement Date: Ss 3–5, 7–10 on 25.5.05: s. 2(1); s. 6 on 12.12.05: s. 2(2)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

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Road Safety (Further Amendment) Act 2005, No. 24/2005

Assent Date: 31.5.05
Commencement Date: Ss 29, 30 on 1.6.05: s. 2(1)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Courts Legislation (Miscellaneous Amendments) Act 2005, No. 30/2005

Assent Date: 21.6.05
Commencement Date: S. 3 on 22.6.05: s. 2(1)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Dangerous Goods and Equipment (Public Safety) Acts (Amendment) Act 2005, No. 31/2005

Assent Date: 21.6.05
Commencement Date: S. 36 on 1.7.05: s. 2
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Tobacco (Amendment) Act 2005, No. 45/2005

Assent Date: 16.8.05
Commencement Date: S. 29 on 1.3.06: s. 2(1)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Radiation Act 2005, No. 62/2005

Assent Date: 20.9.05
Commencement Date: S. 143 on 1.9.07: s. 2(2)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Sentencing and Mental Health Acts (Amendment) Act 2005, No. 69/2005

Assent Date: 11.10.05
Commencement Date: S. 28 on 1.10.06: s. 2(3)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Firearms (Further Amendment) Act 2005, No. 78/2005

Assent Date: 22.11.05
Commencement Date: S. 68 on 1.7.06: Government Gazette 29.6.06 p. 1315
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Major Events (Crowd Management) and Commonwealth Games Arrangements Acts (Crowd Safety Amendment) Act 2005, No. 80/2005

Assent Date: 22.11.05
Commencement Date: S. 19 on 23.11.05: s. 2
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

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Investigative, Enforcement and Police Powers Acts (Amendment) Act 2005, No. 87/2005

Assent Date: 29.11.05
Commencement Date: Pt 10 (ss 27–33) on 1.2.06: Special Gazette (No. 31) 31.1.06 p. 1
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Road Safety and Other Acts (Vehicle Impoundment and Other Amendments) Act 2005, No. 93/2005

Assent Date: 29.11.05
Commencement Date: S. 10 on 1.7.06: s. 2(3)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Crimes (Sexual Offences) Act 2006, No. 2/2006 (as amended by No. 76/2006)

Assent Date: 7.3.06
Commencement Date: Ss 39–41A on 1.12.06: s. 2(2)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Rail Safety Act 2006, No. 9/2006

Assent Date: 4.4.06
Commencement Date: S. 159 on 1.8.06: Special Gazette (No. 181) 25.7.06 p. 1
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Infringements Act 2006, No. 12/2006 (as amended by No. 32/2006)

Assent Date: 11.4.06
Commencement Date: Ss 169–176 on 1.7.06: Government Gazette 29.6.06 p. 1315
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Infringements (Consequential and Other Amendments) Act 2006, No. 32/2006

Assent Date: 13.6.06
Commencement Date: Ss 88, 89 on 1.7.06: Government Gazette 29.6.06 p. 1315
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Electoral and Parliamentary Committees Legislation (Amendment) Act 2006, No. 44/2006

Assent Date: 25.7.06
Commencement Date: S. 16 on 26.7.06: s. 2
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

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No. 51 of 1989
Endnotes

Children, Youth and Families (Consequential and Other Amendments) Act 2006, No. 48/2006

Assent Date: 15.8.06
Commencement Date: S. 42(Sch. item 22) on 23.4.07: s. 2(3)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Courts Legislation (Jurisdiction) Act 2006, No. 50/2006

Assent Date: 15.8.06
Commencement Date: Ss 19–21, 35 on 16.8.06: s. 2(1); ss 15–18, 22–34 on 1.7.07: s. 2(3)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Courts Legislation (Neighbourhood Justice Centre) Act 2006, No. 51/2006

Assent Date: 15.8.06
Commencement Date: Ss 3–5 on 2.1.07: Government Gazette 21.12.06 p. 2768
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Crimes (Sexual Offences) (Further Amendment) Act 2006, No. 76/2006

Assent Date: 10.10.06
Commencement Date: S. 9 on 1.12.06: s. 2(4)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Justice Legislation (Further Amendment) Act 2006, No. 79/2006

Assent Date: 10.10.06
Commencement Date: S. 45 on 18.10.06: Special Gazette (No. 273) 17.10.06 p. 1
Current State: This information relates only to the provisions amending the **Magistrates' Court Act 1989**

Major Events (Aerial Advertising) Act 2007, No. 13/2007

Assent Date: 8.5.07
Commencement Date: S. 48 on 9.5.07: s. 2
Current State: This information relates only to the provisions amending the **Magistrates' Court Act 1989**

Courts Legislation Amendment (Judicial Education and Other Matters) Act 2007, No. 24/2007

Assent Date: 26.6.07
Commencement Date: S. 5 on 27.6.07: s. 2
Current State: This information relates only to the provisions amending the **Magistrates' Court Act 1989**

Payroll Tax Act 2007, No. 26/2007

Assent Date: 26.6.07
Commencement Date: S. 114 on 1.7.07: s. 2(1)
Current State: This information relates only to the provisions amending the **Magistrates' Court Act 1989**

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No. 51 of 1989
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Magistrates' Court and Coroners Acts Amendment Act 2007, No. 36/2007

Assent Date: 14.8.07
Commencement Date: Ss 3–7 on 15.8.07: s. 2
Current State: This information relates only to the provisions amending the **Magistrates' Court Act 1989**

Firearms Amendment Act 2007, No. 50/2007

Assent Date: 17.10.07
Commencement Date: S. 59 on 30.6.08: Government Gazette 26.6.08 p. 1388
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Justice and Road Legislation Amendment (Law Enforcement) Act 2007, No. 52/2007

Assent Date: 17.10.07
Commencement Date: S. 3 on 28.2.08: Government Gazette 31.1.08 p. 196
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Justice Legislation Amendment Act 2007, No. 53/2007

Assent Date: 17.10.07
Commencement Date: S. 23 on 8.11.07: Government Gazette 8.11.07 p. 2579
Current State: This information relates only to the provisions amending the **Magistrates' Court Act 1989**

Criminal Procedure Legislation Amendment Act 2008, No. 8/2008

Assent Date: 18.3.08
Commencement Date: Ss 5, 6, 11, 14–16, 20 on 1.7.08: s. 2(5)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Relationships Act 2008, No. 12/2008

Assent Date: 15.4.08
Commencement Date: S. 73(1)(Sch. 1 item 39) on 1.12.08: s. 2(2)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Justice Legislation Amendment (Sex Offences Procedure) Act 2008, No. 18/2008

Assent Date: 13.5.08
Commencement Date: S. 14 on 1.7.08: s. 2(2)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Constitution Amendment (Judicial Pensions) Act 2008, No. 23/2008

Assent Date: 3.6.08
Commencement Date: S. 20 on 4.6.08: s. 2(1)
Current State: This information relates only to the provisions amending the **Magistrates' Court Act 1989**

Magistrates' Court Act 1989
No. 51 of 1989
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Police Integrity Act 2008, No. 34/2008

Assent Date: 1.7.08
Commencement Date: S. 143(Sch. 2 item 8) on 5.12.08: Special Gazette (No. 340) 4.12.08 p. 1
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Courts Legislation Amendment (Juries and Other Matters) 2008, No. 38/2008

Assent Date: 26.8.08
Commencement Date: Ss 8, 9 on 1.12.08: Government Gazette 27.11.08 p. 2755
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Family Violence Protection Act 2008, No. 52/2008

Assent Date: 23.9.08
Commencement Date: Ss 251–255 on 8.12.08: Special Gazette (No. 339) 4.12.08 p. 1
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Stalking Intervention Orders Act 2008, No. 68/2008

Assent Date: 18.11.08
Commencement Date: Ss 78–80 on 8.12.08: Special Gazette (No. 339) 4.12.08 p. 1
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Prohibition of Human Cloning for Reproduction Act 2008, No. 72/2008

Assent Date: 25.11.08
Commencement Date: S. 26 on 1.1.10: s. 2(2)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Research Involving Human Embryos Act 2008, No. 74/2008

Assent Date: 25.11.08
Commencement Date: S. 46 on 1.1.10: s. 2(2)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Assisted Reproductive Treatment Act 2008, No. 76/2008

Assent Date: 11.12.08
Commencement Date: S. 156 on 1.1.10: s. 2(3)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Courts Legislation Amendment (Costs Court and Other Matters) Act 2008, No. 78/2008

Assent Date: 11.12.08
Commencement Date: Ss 16, 17 on 31.12.09: s. 2(3)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

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No. 51 of 1989
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Salaries Legislation Amendment (Salary Sacrifice) Act 2008, No. 83/2008

Assent Date: 11.12.08
Commencement Date: Ss 11, 12 on 11.12.08: s. 2(1)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Relationships Amendment (Caring Relationships) Act 2009, No. 4/2009

Assent Date: 10.2.09
Commencement Date: S. 37(Sch. 1 item 17) on 1.12.09: s. 2(2)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Criminal Procedure Act 2009, No. 7/2009 (as amended by No. 68/2009)

Assent Date: 10.3.09
Commencement Date: Ss 426, 427, 435(1) on 1.1.10: Government Gazette 10.12.09 p. 3215
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Sheriff Act 2009, No. 9/2009

Assent Date: 24.3.09
Commencement Date: Ss 73–76 on 1.10.09: Government Gazette 1.10.09 p. 2539
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Justice Legislation Amendment Act 2009, No. 25/2009

Assent Date: 17.6.09
Commencement Date: S. 18 on 3.9.09: Government Gazette 3.9.09 p. 2331
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Major Sporting Events Act 2009, No. 30/2009

Assent Date: 23.6.09
Commencement Date: Ss 196–198 on 24.6.09: s. 2
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Courts Legislation Amendment (Judicial Resolution Conference) Act 2009, No. 50/2009

Assent Date: 8.9.09
Commencement Date: Ss 12–15 on 16.9.09: Special Gazette (No. 319) 16.9.09 p. 1—see **Interpretation of Legislation Act 1984**
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

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No. 51 of 1989
Endnotes

Criminal Procedure Amendment (Consequential and Transitional Provisions) Act 2009, No. 68/2009

Assent Date: 24.11.09
Commencement Date: S. 97(Sch. item 82) on 1.1.10: Government Gazette 10.12.09 p. 3215
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Statute Law Amendment (Evidence Consequential Provisions) Act 2009, No. 69/2009

Assent Date: 24.11.09
Commencement Date: S. 54(Sch. Pt 1 item 34), (Sch. Pt 2 item 32) on 1.1.10: s. 2(2)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Justice Legislation Miscellaneous Amendments Act 2009, No. 87/2009

Assent Date: 15.12.09
Commencement Date: S. 60 on 17.12.09: Government Gazette 17.12.09 p. 3338
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Accident Compensation Amendment Act 2010, No. 9/2010

Assent Date: 23.3.10
Commencement Date: S. 93 on 5.4.10: s. 2(7)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Magistrates' Court Amendment (Assessment and Referral Court List) Act 2010, No. 12/2010 (as amended by No. 43/2012)

Assent Date: 30.3.10
Commencement Date: Ss 4–7 on 21.4.10: Special Gazette (No. 135) 20.4.10 p. 1
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Health and Human Services Legislation Amendment Act 2010, No. 29/2010

Assent Date: 8.6.10
Commencement Date: S. 63 on 1.7.10: Special Gazette (No. 235) 23.6.10 p. 1
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Justice Legislation Amendment Act 2010, No. 30/2010

Assent Date: 8.6.10
Commencement Date: Ss 85–87 on 26.6.10: Government Gazette 24.6.10 p. 1274
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

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Courts Legislation Miscellaneous Amendments Act 2010, No. 34/2010

Assent Date: 15.6.10
Commencement Date: S. 50 on 16.6.10: s. 2(3); s. 49 on 1.1.11: s. 2(5)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Superannuation Legislation Amendment Act 2010, No. 40/2010

Assent Date: 30.6.10
Commencement Date: S. 109 on 1.7.10: Government Gazette 1.7.10 p. 1359
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Civil Procedure Act 2010, No. 47/2010

Assent Date: 24.8.10
Commencement Date: Ss 88–92 on 1.1.11: Government Gazette 14.10.10 p. 2404
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Personal Safety Intervention Orders Act 2010, No. 53/2010

Assent Date: 7.9.10
Commencement Date: S. 221(Sch. item 7) on 5.9.11: Special Gazette (No. 271) 23.8.11 p. 1
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Justice Legislation Further Amendment Act 2010, No. 64/2010

Assent Date: 28.9.10
Commencement Date: Ss 63, 64 on 1.11.10: Government Gazette 21.10.10 p. 2530
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Bail Amendment Act 2010, No. 70/2010

Assent Date: 19.10.10
Commencement Date: Ss 27–35 on 1.1.11: s. 2(2)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Sentencing Amendment Act 2010, No. 77/2010

Assent Date: 19.10.10
Commencement Date: S. 29 on 1.1.12: s. 2(2)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Justice Legislation Amendment (Protective Services Officers) Act 2011, No. 43/2011

Assent Date: 6.9.11
Commencement Date: Ss 34–36 on 28.11.11: Special Gazette (No. 379) 22.11.11 p. 1
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

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Commercial Arbitration Act 2011, No. 50/2011

Assent Date: 18.10.11
Commencement Date: S. 46(Sch. item 12) on 17.11.11: Special Gazette (No. 369) 15.11.11 p. 1
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Sentencing Amendment (Community Correction Reform) Act 2011, No. 65/2011

Assent Date: 22.11.11
Commencement Date: S. 107(Sch. item 8) on 16.1.12: Special Gazette (No. 423) 21.12.11 p. 3
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Justice Legislation Amendment Act 2012, No. 23/2012

Assent Date: 8.5.12
Commencement Date: Ss 7–9 on 30.6.12: s. 2(5)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Courts and Sentencing Legislation Amendment Act 2012, No. 26/2012

Assent Date: 29.5.12
Commencement Date: Ss 22–25 on 16.7.12: Special Gazette (No. 237) 3.7.12 p. 1
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Criminal Procedure Amendment Act 2012, No. 48/2012

Assent Date: 4.9.12
Commencement Date: Ss 38–40 on 5.9.12: s. 2(1)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Integrity and Accountability Legislation Amendment Act 2012, No. 82/2012

Assent Date: 18.12.12
Commencement Date: S. 293 on 10.2.13: Special Gazette (No. 32) 6.2.13 p. 2
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Courts Legislation Amendment (Reserve Judicial Officers) Act 2013, No. 5/2013

Assent Date: 26.2.13
Commencement Date: Ss 31–40 on 27.2.13: s. 2(1)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Heavy Vehicle National Law Application Act 2013, No. 30/2013

Assent Date: 4.6.13
Commencement Date: S. 60(Sch. item 7) on 10.2.14: Special Gazette (No. 28) 4.2.14 p. 1
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

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Justice Legislation Amendment Act 2013, No. 31/2013

Assent Date: 4.6.13
Commencement Date: S. 6 on 5.6.13: s. 2(2)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Sentencing Amendment (Abolition of Suspended Sentences and Other Matters) Act 2013, No. 32/2013

Assent Date: 4.6.13
Commencement Date: S. 55 on 19.4.14: Special Gazette (No. 122) 15.4.14 p. 2
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Road Safety and Sentencing Acts Amendment Act 2013, No. 56/2013

Assent Date: 24.9.13
Commencement Date: S. 30 on 25.9.13: s. 2(1)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Open Courts Act 2013, No. 58/2013

Assent Date: 22.10.13
Commencement Date: Ss 48–52 on 1.12.13: s. 2(2)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Courts Legislation Amendment (Judicial Officers) Act 2013, No. 63/2013

Assent Date: 6.11.13
Commencement Date: Ss 40–48, 74–79 on 1.2.14: s. 2(2)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Workplace Injury Rehabilitation and Compensation Act 2013, No. 67/2013

Assent Date: 12.11.13
Commencement Date: S. 649(Sch. 9 item 24) on 1.7.14: s. 2(1)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Courts and Other Justice Legislation Amendment Act 2013, No. 68/2013

Assent Date: 19.11.13
Commencement Date: S. 8 on 1.8.13: s. 2(2); ss 4–7 on 1.2.14: Special Gazette (No. 17) 28.1.14 p. 1
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Statute Law Revision Act 2013, No. 70/2013

Assent Date: 19.11.13
Commencement Date: S. 3(Sch. 1 item 27) on 1.12.13: s. 2(1)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

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Court Services Victoria Act 2014, No. 1/2014

Assent Date: 11.2.14
Commencement Date: Ss 72, 73 on 1.7.14: s. 2(2)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Legal Profession Uniform Law Application Act 2014, No. 17/2014

Assent Date: 25.3.14
Commencement Date: S. 160(Sch. 2 item 59) on 1.7.15: Special Gazette (No. 151) 16.6.15 p. 1
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Justice Legislation Amendment (Discovery, Disclosure and Other Matters) Act 2014, No. 25/2014

Assent Date: 8.4.14
Commencement Date: S. 11 on 12.5.14: Special Gazette (No. 136) 29.4.14 p. 1
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Mental Health Act 2014, No. 26/2014

Assent Date: 8.4.14
Commencement Date: S. 455(Sch. item 20) on 1.7.14: s. 2(1)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Honorary Justices Act 2014, No. 32/2014

Assent Date: 13.5.14
Commencement Date: S. 55 on 1.9.14: s. 2(2)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Victoria Police Amendment (Consequential and Other Matters) Act 2014, No. 37/2014

Assent Date: 3.6.14
Commencement Date: S. 10(Sch. item 101) on 1.7.14: Special Gazette (No. 200) 24.6.14 p. 2
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Vexatious Proceedings Act 2014, No. 42/2014

Assent Date: 17.6.14
Commencement Date: Ss 105–107 on 31.10.14: s. 2(2)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Fines Reform Act 2014, No. 47/2014 (as amended by No. 59/2017)

Assent Date: 1.7.14
Commencement Date: Ss 268–276, 280, 281 on 31.12.17: Special Gazette (No. 443) 19.12.17 p. 1; ss 277–279 never proclaimed, repealed by No. 59/2017 s. 105
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

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Courts Legislation Miscellaneous Amendments Act 2014, No. 62/2014

Assent Date: 9.9.14
Commencement Date: Ss 90–95 on 10.11.14: Special Gazette (No. 364) 14.10.14 p. 1
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Crimes Amendment (Abolition of Defensive Homicide) Act 2014, No. 63/2014

Assent Date: 9.9.14
Commencement Date: Ss 5(2), 7(14)–(16) on 1.11.14: Special Gazette (No. 350) 7.10.14 p. 1
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Justice Legislation Amendment Act 2015, No. 20/2015

Assent Date: 16.6.15
Commencement Date: S. 44 on 17.6.15: s. 2(3)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Statute Law Revision Act 2015, No. 21/2015

Assent Date: 16.6.15
Commencement Date: S. 3(Sch. 1 item 32) on 1.8.15: s. 2(1)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Judicial Entitlements Act 2015, No. 29/2015

Assent Date: 11.8.15
Commencement Date: Ss 68–72 on 12.8.15: s. 2(1); ss 84–86 on 1.1.16: s. 2(3)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Justice Legislation Further Amendment Act 2016, No. 3/2016

Assent Date: 16.2.16
Commencement Date: Ss 3, 7, 18–21, 32–38 on 1.5.16: Special Gazette (No. 114) 26.4.16 p. 1; ss 4–6 on 1.7.16: Special Gazette (No. 204) 28.6.16 p. 1
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Judicial Commission of Victoria Act 2016, No. 16/2016

Assent Date: 19.4.16
Commencement Date: Ss 197–200 on 1.7.17: s. 2(2)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Sex Offenders Registration Amendment Act 2016, No. 21/2016

Assent Date: 26.4.16
Commencement Date: S. 22 on 1.2.17: s. 2(2)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

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Justice Legislation (Evidence and Other Acts) Amendment Act 2016, No. 38/2016

Assent Date: 28.6.16
Commencement Date: S. 10 on 12.9.16: Special Gazette (No. 278) 6.9.16 p. 1
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

National Domestic Violence Order Scheme Act 2016, No. 53/2016

Assent Date: 18.10.16
Commencement Date: Ss 103–109 on 25.11.17: Special Gazette (No. 388) 15.11.17 p. 1
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Family Violence Protection Amendment Act 2017, No. 19/2017

Assent Date: 16.5.17
Commencement Date: Ss 50–53 on 16.11.17: Special Gazette (No. 388) 15.11.17 p. 1
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Bail Amendment (Stage One) Act 2017, No. 26/2017

Assent Date: 27.6.17
Commencement Date: S. 24 on 21.5.18: Special Gazette (No. 218) 15.5.18 p. 1
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Justice Legislation Amendment (Court Security, Juries and Other Matters) Act 2017, No. 38/2017

Assent Date: 29.8.17
Commencement Date: Ss 70, 71 on 1.5.18: s. 2(4)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Justice Legislation Amendment (Protective Services Officers and Other Matters) Act 2017, No. 45/2017

Assent Date: 26.9.17
Commencement Date: S. 55 on 1.4.18: Special Gazette (No. 136) 27.3.18 p. 3
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Fines Reform Amendment Act 2017, No. 59/2017

Assent Date: 5.12.17
Commencement Date: S. 125 on 21.12.17: Special Gazette (No. 443) 19.12.17 p. 1
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Oaths and Affirmations Act 2018, No. 6/2018

Assent Date: 27.2.18
Commencement Date: S. 68(Sch. 2 item 81) on 1.3.19: s. 2(2)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

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Justice Legislation Amendment (Access to Justice) Act 2018, No. 15/2018

Assent Date: 29.5.18
Commencement Date: Ss 47, 48 on 30.5.18: s. 2(1)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Legal Identity of Defendants (Organisational Child Abuse) Act 2018, No. 18/2018

Assent Date: 5.6.18
Commencement Date: S. 18 on 1.7.18: Special Gazette (No. 305) 26.6.18 p. 1
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Justice Legislation Amendment (Family Violence Protection and Other Matters) Act 2018, No. 33/2018

Assent Date: 14.8.18
Commencement Date: Ss 35–37, 49–54 on 29.3.19: Special Gazette (No. 114) 26.3.19 p. 1; s. 42 on 11.11.19: Special Gazette (No. 446) 6.11.19 p. 1; ss 41, 43–45 on 1.9.20: s. 2(3)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Justice Legislation Amendment (Police and Other Matters) Act 2019, No. 3/2019

Assent Date: 13.3.19
Commencement Date: S. 30 on 1.12.19: s. 2(3)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

West Gate Tunnel (Truck Bans and Traffic Management) Act 2019, No. 8/2019

Assent Date: 26.3.19
Commencement Date: S. 114 on 19.2.20: s. 2(3)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Guardianship and Administration Act 2019, No. 13/2019

Assent Date: 4.6.19
Commencement Date: S. 221(Sch. 1 item 29) on 1.3.20: s. 2(2)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Police Legislation Amendment (Road Safety Camera Commissioner and Other Matters) Act 2019, No. 39/2019

Assent Date: 6.11.19
Commencement Date: Ss 14, 15 on 7.11.19: s. 2(1)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

COVID-19 Omnibus (Emergency Measures) Act 2020, No. 11/2020

Assent Date: 24.4.20
Commencement Date: S. 38 on 25.4.20: s. 2
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

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Crimes Amendment (Manslaughter and Related Offences) Act 2020, No. 16/2020

Assent Date: 10.6.20
Commencement Date: S. 20 on 1.7.20: s. 2(2)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Justice Legislation Miscellaneous Amendments Act 2020, No. 22/2020

Assent Date: 30.6.20
Commencement Date: S. 7 on 1.7.20: s. 2
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

COVID-19 Omnibus (Emergency Measures) and Other Acts Amendment Act 2020, No. 27/2020

Assent Date: 20.10.20
Commencement Date: Ss 13, 14 on 21.10.20: s. 2
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Justice Legislation Amendment (Drug Court and Other Matters) Act 2020, No. 43/2020

Assent Date: 8.12.20
Commencement Date: Ss 37, 38 on 26.4.21: s. 2(2)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Justice Legislation Amendment (System Enhancements and Other Matters) Act 2021, No. 11/2021

Assent Date: 23.3.21
Commencement Date: Ss 54–56 on 26.4.21: s. 2(2)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Victorian Civil and Administrative Tribunal and Other Acts Amendment (Federal Jurisdiction and Other Matters) Act 2021, No. 31/2021

Assent Date: 10.8.21
Commencement Date: Ss 7, 8 on 29.11.21: Special Gazette (No. 649) 23.11.21 p. 1
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Terrorism (Community Protection) Amendment Act 2021, No. 47/2021

Assent Date: 3.11.21
Commencement Date: S. 27 on 2.9.22: s. 2(3)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Justice Legislation Amendment (Criminal Procedure Disclosure and Other Matters) Act 2022, No. 1/2022

Assent Date: 15.2.22
Commencement Date: Ss 14–24 on 29.3.22: Special Gazette (No. 157) 29.3.22 p. 1
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

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Justice Legislation Amendment (Fines Reform and Other Matters) Act 2022, No. 17/2022

Assent Date: 18.5.22
Commencement Date: S. 77 on 19.5.22: s. 2(1)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Justice Legislation Amendment Act 2022, No. 20/2022

Assent Date: 31.5.22
Commencement Date: Ss 33–35 on 1.6.22: s. 2(1)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Mental Health and Wellbeing Act 2022, No. 39/2022

Assent Date: 6.9.22
Commencement Date: S. 845 on 1.9.23: s. 2(2)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Children and Health Legislation Amendment (Statement of Recognition, Aboriginal Self-determination and Other Matters) Act 2023, No. 17/2023

Assent Date: 27.6.23
Commencement Date: Ss 36, 37 on 28.6.23: s. 2(1)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Bail Amendment Act 2023, No. 28/2023

Assent Date: 24.10.23
Commencement Date: S. 70 on 25.3.24: s. 2(2)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Justice Legislation Amendment (Committals) Act 2025, No. 5/2025

Assent Date: 25.2.25
Commencement Date: Ss 59, 60 on 28.12.25: s. 2(2)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Justice Legislation Amendment (Miscellaneous) Act 2025, No. 20/2025

Assent Date: 18.6.25
Commencement Date: S. 17 on 19.6.25: s. 2
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

Justice Legislation Amendment (Community Safety) Act 2025, No. 54/2025

Assent Date: 9.12.25
Commencement Date: S. 28 on 10.12.25: s. 2(1); s. 25 on 27.2.26: s. 2(3)
Current State: This information relates only to the provision/s amending the **Magistrates' Court Act 1989**

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Justice Legislation Further Amendment (Miscellaneous) Act 2026, No. 14/2026

<i>Assent Date:</i>	14.4.26
<i>Commencement Date:</i>	S. 7 on 15.4.26: s. 2(1)
<i>Current State:</i>	This information relates only to the provision/s amending the Magistrates' Court Act 1989

3 Explanatory details

¹ S. 9 (*repealed*): The amendment proposed to section 9(10) by section 8(1) of the **Courts Legislation (Judicial Conduct) Act 2005**, No. 16/2005 (*repealed*) is not included in this publication as section 9 was substituted by section 11 of the **Courts Legislation (Judicial Appointments and Other Amendments) Act 2005**, No. 3/2005 (*repealed*).

² S. 58(1): Sections 10–13 of the **Magistrates' Court (Amendment) Act 1996**, No. 70/1996 read as follows:

10 Payment of fines

- (1) An arrangement made before 14 November 1996—
- (a) for an extension of time for the payment of a fine referred to in Schedule 7 to the Principal Act; or
 - (b) for the payment by instalments of a fine referred to in Schedule 7 to the Principal Act—

with a person authorised to execute a penalty enforcement warrant or a warrant to seize property or a warrant to imprison issued under clause 8(1) of that Schedule is deemed to be an order referred to in clause 7(1)(a) or (b), as the case may be, of that Schedule.

- (2) An arrangement made before 14 November 1996—
- (a) for allowing time for the payment of a fine referred to in section 62 or 66 of the **Sentencing Act 1991**; or
 - (b) for the payment by instalments of a fine referred to in section 62 or 66 of the **Sentencing Act 1991**; or

(c) for a variation of—

(i) the terms of an instalment order referred to in section 62 or 66 of the **Sentencing Act 1991**; or

(ii) an arrangement referred to in paragraph (a) or (b)—

with a person authorised to execute a warrant to arrest issued under section 62 of that Act or a warrant to seize property issued under section 66 of that Act is deemed to be an order referred to in section 55(a), (b) or (c), as the case may be, of that Act.

11 Transitional

- (1) If, before 14 November 1996, a warrant has been recalled under section 58(1) of the Principal Act and a fresh warrant for the same purpose had purportedly been issued—
 - (a) the recalled warrant is deemed to have been cancelled on the date on which the fresh warrant was purportedly issued; and
 - (b) the fresh warrant and its execution are deemed to be valid despite any lack of power to issue the fresh warrant.
- (2) If, before 14 November 1996, a warrant referred to in section 58(2) of the Principal Act had been executed after its expiry under that section, the warrant and its execution are deemed to be valid despite that expiry.
- (3) If, before 14 November 1996, a warrant referred to in section 58(2) of the Principal Act had expired under that section and after its expiry the amount of the fine in respect of which it was issued or any part of that amount or any amount for associated costs were paid, those amounts are

deemed to have been lawfully demanded and recovered.

- (4) If, before 14 November 1996, a penalty enforcement warrant or a warrant to seize property or a warrant to imprison or a warrant to arrest directed to the sheriff was purportedly issued not in paper form, the warrant is deemed to be valid if its issue would have been valid had it been issued in paper form and signed or otherwise authenticated by the person issuing it.
- (5) A penalty enforcement warrant or a warrant to seize property or a warrant to imprison or a warrant to arrest which—
 - (a) was issued under clause 8(1) of Schedule 7 to the Principal Act or under, or in accordance with an order made under, section 62 or 66 of the **Sentencing Act 1991** and included an amount for costs of execution or warrant costs; and
 - (b) was executed before 14 November 1996—is deemed to have been lawfully executed.
- (6) If, before 14 November 1996, a warrant was issued under clause 8(1) of Schedule 7 to the Principal Act or under, or in accordance with an order made under, section 62 or 66 of the **Sentencing Act 1991** and included an amount for costs of execution or warrant costs, but before execution the amount of the fine and costs were paid, those amounts are deemed to have been lawfully demanded and recovered.

12 No proceedings may be brought

Proceedings, including proceedings—

- (a) seeking damages or compensation; or

- (b) seeking the grant of any relief or remedy in the nature of certiorari, prohibition, mandamus or quo warranto, or the grant of a declaration of right or an injunction; or
- (c) seeking a writ of habeas corpus; or
- (d) seeking an order under the **Administrative Law Act 1978**—

may not be brought in respect of any matter or thing that, by reason of the operation of this Act, is deemed to be valid or lawful or to have been validly or lawfully done.

13 Supreme Court—limitation of jurisdiction

It is the intention of section 12 to alter or vary section 85 of the **Constitution Act 1975**.

³ S. 58(2): Section 28(3) of the **Magistrates' Court (Amendment) Act 1994**, No. 33/1994 reads as follows:

28 Transitional provisions

- (3) The amendments of the Principal Act made by sections 9, 11 and 22(a) to (g) (penalty enforcement warrants) apply to infringement penalties imposed before as well as after the commencement of those sections but if a penalty enforcement warrant is issued with respect to an infringement penalty imposed before that commencement—
 - (a) any warrant to imprison issued with respect to the infringement penalty must be recalled and cancelled in accordance with section 58(1) of the Principal Act; and
 - (b) a fresh demand must be made under clause 8(2) of Schedule 7 of the Principal Act as amended by this Act.

⁴ S. 58(2): Section 5(5) of the **Magistrates' Court (Amendment) Act 1996**, No. 70/1996 reads as follows:

5 Expiry of certain warrants

- (5) Subsections (2) and (3) of section 58 of the Principal Act as in force before 14 November 1996 do not apply, and are deemed never to have applied, to a warrant referred to in those subsections if the warrant was executed before that date or the fine in respect of which it was issued, together with all associated costs, were paid before that date.

⁵ S. 58(2): See note 2.

⁶ S. 58(3): See note 4.

⁷ S. 60(1): See note 3.

⁸ S. 60(2): See note 3.

⁹ S. 82(2): S. 12 of the **Evidence (Audio Visual and Audio Linking) Act 1997**, No. 4/1997 reads as follows:

12 Transitional provisions

- (1) An amendment made by a provision of this Act to the **Evidence Act 1958**, the **Supreme Court Act 1986**, the **County Court Act 1958**, the **Magistrates' Court Act 1989** or the **Children and Young Persons Act 1989** applies to a proceeding that is commenced to be heard on or after the twenty-first day after the commencement of that amendment, irrespective of when the proceeding was commenced or when any offence to which the proceeding relates is alleged to have been committed.
- (2) For the purposes of subsection (1) in its application to criminal proceedings—
- (a) a trial is commenced to be heard on arraignment of the accused person; and

- (b) a hearing of a charge for an offence is commenced to be heard on the taking of a formal plea from the accused person.

¹⁰ S. 100: See section 3(1) def. of *jurisdictional limit*.

¹¹ Pt 5 Div. 3A: Section 47(2) of the **Courts and Tribunals (General Amendment) Act 1996**, No. 64/1996 reads as follows:

47 Magistrates' Court Act 1989—transitional provisions

- (2) The amendments made by section 35 to the **Magistrates' Court Act 1989** applies to proceedings, whether commenced before or after the commencement of that section.

¹² S. 115(3) (*repealed*) and (7)(a) (*repealed*): Section 28(6) of the **Magistrates' Court (Amendment) Act 1994**, No. 33/1994 reads as follows:

28 Transitional provisions

- (6) The amendments of the Principal Act made by section 16 (removal of compulsory age retirement for JPs) apply to any person who immediately before the commencement of that section held the office of justice of the peace.

¹³ Sch. 4 (*repealed*):

Sch. 4 amended by Nos 25/1989 s. 8(3), 48/1989 s. 18 (as amended by No. 34/1990 s. 7(6)), 54/1989 s. 35(5) (as amended by No. 34/1990 s. 7(7)), 11/1990 s. 12(2) (as amended by No. 34/1990 s. 7(8)), 34/1990 s. 4(Sch. 3 items 20, 21), 8/1991 s. 14, 46/1991 s. 48, 81/1991 s. 10(Sch. item 2.1), 90/1991 s. 35, 67/1993 s. 26, 129/1993 s. 9(3), 21/1994 s. 39, 102/1994 s. 96, 63/1995 s. 169, 93/1995 s. 218(1)(Sch. 2 item 4), 99/1995 s. 24 (as amended by No. 73/1996 s. 63), 35/1996 s. 453(Sch. 1 item 53.7), 66/1996 s. 201(3) (as amended by No. 26/1997 s. 35(1)), 73/1996 s. 61, 26/1997 s. 55, 48/1997 s. 65(3)(a)–(c)(e)(f), 107/1997 s. 75, 108/1997 s. 154, 13/1998 s. 16, 60/1998 s. 17, 36/1999 s. 26, 39/1999 s. 39, 44/1999 s. 34, 49/2000 s. 4, 53/2000 s. 97, 69/2000 s. 57, 98/2000 s. 75, 2/2001 s. 110, 14/2001 s. 34, 32/2001 s. 35, 61/2001 s. 12(1), 69/2001 s. 19, 11/2002 s. 3(Sch. 1 items 43.1, 43.2), 23/2002 s. 199, 35/2002 s. 28(Sch. item 4.1), 47/2002 s. 45, 10/2003 s. 12, 28/2003 s. 76, 52/2003 s. 52(Sch. 1 item 8), 74/2003 s. 14, 80/2003 s. 184, 59/2004 s. 10, 107/2004 s. 181(1), 24/2005 s. 29, 31/2005 s. 36, 45/2005 s. 29, 62/2005 s. 143(1), 78/2005 s. 68, 9/2006 s. 159(1), 44/2006 s. 16, 50/2006 s. 22(3), 13/2007 s. 48, 50/2007 s. 59, 52/2007 s. 3, 53/2007 s. 23,

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72/2008 s. 26, 74/2008 s. 46, 76/2008 s. 156, 30/2009 ss 197, 198, repealed by No. 7/2009 s. 427(2) (as amended by No. 68/2009 s. 54(m)).

¹⁴ Sch. 5 (*repealed*): The amendment proposed by section 143(Schedule 2 item 8) of the **Police Integrity Act 2008**, No. 34/2008 (*repealed*) is not included in this publication because of the earlier substitution of clause 8(1)(b) of Schedule 5 by section 9 of the **Courts Legislation Amendment (Juries and Other Matters) Act 2008**, No. 38/2008 (*repealed*).

¹⁵ Sch. 5 (*repealed*):

Sch. 5 amended by Nos 34/1990 s. 4(Sch. 3 item 22(a)–(g)), 49/1990 s. 4, 64/1990 ss 16, 20(Sch. item 4.4(a)(b)), 8/1991 ss 15, 16, 23/1991 ss 11, 12, 81/1991 s. 10(Sch. item 2.2), 33/1994 s. 20, 43/1994 s. 56(Sch. item 3.2), 35/1996 s. 453(Sch. 1 items 53.3, 53.8), 81/1997 s. 12, substituted by No. 10/1999 s. 4, amended by Nos 35/1999 s. 36(2), 92/2000 ss 7–9, 35/2002 ss 22, 23, 37/2002 s. 53, 108/2003 s. 22(2), 107/2004 s. 181(2), 30/2005 s. 3, 62/2005 s. 143(2), 2/2006 ss 39–41, 9/2006 s. 159(2), 50/2006 ss 27–34, 79/2006 s. 45, 36/2007 s. 6, 8/2008 s. 16, 18/2008 s. 14, 38/2008 s. 9, repealed by No. 7/2009 s. 427(2) (as amended by No. 68/2009 s. 54(m)).

¹⁶ Sch. 7 (*repealed*):

Sch. 7 amended by Nos 5/1990 s. 20(4), 34/1990 s. 4(Sch. 3 items 24, 25), 64/1990 s. 20(Sch. item 4.5), 49/1991 s. 119(7) (Sch. 4 item 13.8), 33/1994 ss 21–24(1), 64/1996 s. 40, 70/1996 s. 9, 44/1997 s. 30, 43/1998 s. 46, 102/1998 s. 44(2)(3), 10/1999 s. 31(2), 99/2000 ss 7, 8, 9, 10, 11 (as amended by No. 12/2001 s. 9), 12, 13 (as amended by No. 12/2001 s. 10), 44/2001 s. 3(Sch. item 77.2), 92/2001 s. 31, 26/2002 ss 5, 6, 39/2003 ss 8, 9, 94/2003 s. 45, 39/2004 s. 260, 49/2004 s. 40, 2/2005 s. 9, 3/2005 ss 27, 28, 24/2005 s. 30, 87/2005 ss 28–32, repealed by No. 12/2006 s. 176(2) (as amended by No. 32/2006 s. 53(2)).

¹⁷ Sch. 7 (*repealed*): The amendment proposed by section 15(5) of the **Courts Legislation (Jurisdiction) Act 2006**, No. 50/2006 (*repealed*) is not included in this publication due to the earlier repeal of Schedule 7 by section 176(2) of the **Infringements Act 2006**, No. 12/2006.